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Cyprus:
Understanding Conflict 2009
Student Field Trip to Cyprus

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Table of Contents

Introduction	I. William Zartman
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Part I: The Two Sides of the Problem

1. Deconstructing the Wall: Reconciliation in a Divided Cyprus	Cecily Brewer
2. A Renewed Push for Bi-Communal Activities	Hak Lim Lee
3. Preparing the People for Compromise: Confidence-Building Measures and the Prospects for a “Yes” Vote.....	Angela R. Mazer
4. Winning the Cypriot Hearts and Minds	Mathias Huter
5. The Pitfalls of Bi-Zonality: A Governance Alternative for a Future Unified Cyprus.....	Aart Geens
6. Youth and Their Education in Cyprus: Is the Future Perpetuating the Past? An Analysis of a Cause of the Endemic Conflict in Cyprus.....	Lydia Sizer
7. Obstacles to an Overarching “Cypriot” Identity	Krystle Veda Kaul
8. Mutual Gains and Misperception: Bringing Cyprus into Focus through the Lens of Nicosia.....	Julia Romano
9. The Economic Dimensions of the Cyprus Problem and its Solution	Ryan Marshall

Part II: The Outsides of the Problem

10. Mediating the Cyprus Problem: Challenges and Prospects.....	Brian Stout
11. Political Parties and the Cyprus Problem: The Way Forward	Rose McGovern
12. Turkish Settlers in Cyprus: Legality, Reality, and Possibility	Joshua Scharff
13. Security, Psychology, and the Role of Guarantees.....	Niv Elis
14. The Role in Turkey in Cyprus	Katherine Herbst
15. The Cyprus Problem and the EU	Melissa Chadbourne
16. Rapprochement From Without?: How External Powers Exacerbated the Cyprus Problem And What Can Be Done to Ameliorate It	Rajiv D’Cruz
17. Dynamics of Non-Recognition: Considering Recognition and a Two State Solution to the Cyprus Problem	Sarah Johnston-Gardner
Conclusion	P. Terrence Hopmann
List of Interviews	
Bibliography	

Introduction: Cyprus Report

I William Zartman

The lovely Isle of Cyprus, land of Venus and Othello, is a land frozen in conflict. Violence has been exorcised by the presence of UN peacekeeping forces, UNFICYP, who have kept the conflict managed but unresolved, hardening rather than bridging the division of the island. Cyprus is a clear case of that situation referred to as S⁵, a soft, stable, self-service stalemate, continually resistant to repeated efforts to resolve it and yet once again the subject of a renewed attempt to unite its two halves. Thus, the beginning of 2009 was an intriguing time to take a “conflict management look” at the situation

Eighteen graduate students and two faculty members from the Johns Hopkins University’s School of Advanced International Studies (SAIS) took the fourth Conflict Management Field Trip to Lefkosia/Lefkose (Nicosia) and some neighboring towns in search of a deep understanding of the situation and answers to the basic question, “How to explain the endemic conflict in Cyprus?” During the week of 11-18 January 2009, the group interviewed some 36 individuals ranging from the leaders of the two halves of the island to local civil society NGOs and many other who graciously gave of their time. These interviews provided a three-dimensional insight into the situation in Cyprus and are the basis of the following report; individual interviews are unattributed but the group owes a strong debt of gratitude to the people we met for their frankness and openness.¹ A special mention of inspiration is due to Ourania Dionysiou (SAIS ’08), a determined diplomat and special representative of her entire country. Each student in the group was asked to address the basic question using a particular term of analysis; the following chapters are the result.

There are few unqualified Cypriots; just about everyone is a Greek or a Turk, with “Cypriot” added afterward. People do not walk around without their qualifier showing, despite the fact that the same people commonly refer to times past as times when both types of Cypriots lived side by side in harmony. Identity tends to be zero-sum, so that

¹ The full list is given at the end of this report. We are particularly grateful to Dean Myron Kunka, Isabelle Talpain-Long, and the Embassy of the Republic of Cyprus and the mission of the Turkish Republic of Northern Cyprus for their great support that made the trip possible.

one cannot be oneself without denigrating the other, although the differences are not exactly mirror-images. People in the North protest that they do not want to be Hellenized; people in the South protest that they do not want the Turkish-Cypriot “minority” to achieve equality. This strained or qualified identity poses a major problem for island unity.

As a result, the very names for the two halves of the island become value-laden and electric-charged. To the South, the North is an “occupied territory” and the Turkish Republic of Northern Cyprus does not exist, nor must any action be taken that gives it symbolic status. To the North, the Republic of Cyprus does not speak for them, despite its European Union (EU) membership on behalf of the whole island, and indeed its constitutional status without northern representatives under its own constitution is viewed as dubious. Caught in this crossfire, this report will follow international practice and refer to the constituent entities by the names they use for themselves.

There is no telling when the conflict began. Historians would trace it back to the Greeks and Persians, in inspiration more than in actual application to the island. More immediately, both sides begin their account in 1974, but with reference to different events that year. Greek Cypriots point to the Turkish invasion; Turkish Cypriots point to the Greek coup against the (Greek) Cypriot government to enforce *enosis* (union with Greece) that triggered the invasion. Thus the narratives of either side are strikingly different, posing another major problem for island unity.

If these are the symptoms, what accounts for the endemic conflict? The conflict exists on two levels—a difficult technical level and a deeper underlying societal level. Current talks between the two leaders are addressing the technical level to implement the consensual formula for an agreement that is on the table for a bi-zonal bi-communal federation. Already at this level, the challenge is great, as institutional expressions are sought for problems of status, governance, security, and authority. The Annan Plan, mediated in the early 2000s, made major strides to a solution but was rejected in a referendum by the Greek Cypriots although accepted by the Turkish Cypriots in 2004. But underneath the table is a morass of social attitudes, some of which were alluded to above, that trash trust, skew communication, and demonize participants. As long as the table is mired in this morass, it will take enormous skill and will to craft a technical

agreement whereby Cypriots can live and work together—not impossible, no doubt, but enormously difficult, as the following chapters bring out in depth.

The following chapters also bring their recommendations for breaking this soft, stable, self-serving stalemate, for making both parties realize the uncomfortableness of their position, for helping them see a better promise in effective unification, for providing conditions that preserve separate identities under the umbrella of a common identity, and for reaching across the border to clasp each other's hands. There are no guarantees but there are some good and original ideas, and some highlights on some old standbys. Outside of the mainstream of analysis based on the consensual formula, two chapters strike out on their own by thinking the unthinkable—recognition of the TRNC, and adoption of a cantonal rather than a bi-zonal bi-communal federation. At least these may shock readers into reevaluating the current endless path, and confronting ways either to make it arrive at the goal or to discover an alternative. It's a beautiful island (probably because of its weather) that deserves a beautiful future.

Part I: The Two Sides of the Problem

1. Deconstructing the Wall: Reconciliation in a Divided Cyprus

Cecily Brewer

*Something there is that doesn't love a wall,
...There where it is we do not need the wall:
He is all pine and I am apple orchard.
My apple trees will never get across
And eat the cones under his pines, I tell him.
He only says, 'Good fences make good
neighbors'.
Spring is the mischief in me, and I wonder
If I could put a notion in his head:
'Why do they make good neighbors? Isn't it
Where there are cows?
But here there are no cows.
Before I built a wall I'd ask to know*

*What I was walling in or walling out,
And to whom I was like to give offence.
Something there is that doesn't love a wall,
That wants it down.' I could say 'Elves' to him,
But it's not elves exactly, and I'd rather
He said it for himself. I see him there
Bringing a stone grasped firmly by the top
In each hand, like an old-stone savage armed.
He moves in darkness as it seems to me~
Not of woods only and the shade of trees.
He will not go behind his father's saying,
And he likes having thought of it so well
He says again, "Good fences make good
neighbors." – Robert Frost, *The Mending Wall**

Something there is that doesn't love a wall, and yet, once built, it remains. Who is to say when the threat, against which the wall protects, is sufficiently subsided so as to tear down the wall? And over time, that threat tends not to diminish, but to grow in public imagination. The wall that was created to prevent further conflict becomes party to its perpetuation. By cutting communication and interaction between conflicting groups, the wall solidifies, strengthens even, the new generation's identification of those opposite as "other," easily portrayed as "savage" in the darkness created by separation. This entrenches the conflict and enhances the desire to maintain the wall, resulting in a population unwilling to accept the risk of reconciliation either politically level or individually level. Cyprus' division, while initially a means to mitigate conflict, has become antithetical to its resolution.

Reconciliation at the Level of the Individual

The Cyprus reconciliation process can be analyzed at two levels: the political, consisting mainly of the leaders' and working groups' negotiations, and the individual, driven by people's desires and experiences. Much analysis of the Cyprus Problem focuses on the political level. What are the leader's underlying interests? What could a negotiated

settlement look like? It is implied that the leadership, in reaching an agreement, will pull the people with it. Alvaro de Soto, who led the 1999-2004 negotiations for the UN, repeated this conception when he compared the Cyprus Problem to a padlock requiring four keys, held respectively by the Greek Cypriots, the Turkish Cypriots, Greece and Turkey. He neglected to mention that the people hold the power to push their leaders toward a settlement; the people choose what kind of solution the padlocked door opens and whether anyone will be bold enough to walk through the newly opened door into the unknown. The referendum process bridges the political and individual, making each reliant on the other. Thus, popular desire for a solution is equally important to the structure of the presented solution. As was evident with the Annan plan, the people hold the power to accept or reject a solution.

If the Cyprus Problem is to be solved, not only must the leaders support the agreement, but also the sentiment among the majority of the population must be one of trust in the reconciliation process. A “yes” vote will require the momentum of a people committed to reconciliation, for it will always be possible to find fault in the details of a proposed settlement. Taking Germany as an example, the reunification process has been an effort not only of the leadership, but also one supported in principle, albeit with reluctance at times, by the people. Further - as has been proven time and again in agreements signed by leaders and broken by the people - when it comes to the implementation process that follows an agreement, it is the will of the population that is paramount to success. Thus, a solution to the Cyprus Problem rests to a large part on the people’s reconciliation with their past and their desire for reconciliation with each other.

The Wall in the Mind

As the political negotiations move slowly, ostensibly in a positive direction, the wall in the populations’ imaginations continues to solidify despite the fact that, physically, the Green Line has been porous since 2003 (ICG, 2008, pp. 24-25). This is evidenced by a recent UN survey. “While 30 percent of Turkish Cypriots cross fairly regularly, mostly to shop or ‘enjoy the countryside,’ a majority of Greek Cypriots have never crossed at all, and a majority of Turkish Cypriots no longer do so. On the Greek Cypriot side, 88 percent say they now never go to the north” (ICG, 2008, p. 19). Further, “some 90

percent of Turkish Cypriots and 87 per cent of Greek Cypriots say they have no contact whatsoever with the other community” (ICG, 2008, p. 20). Another survey by the International Peace Research Institute, Oslo (PRIO) is more positive, reporting that 56 percent of people interviewed have crossed to the other side more than five times. Yet, increased accessibility is not a solution to resolving ethnic divisions in and of itself. For example, many Greek Cypriots crossed initially to visit their family’s property in the North or to vacation (Sitas, Latif, and Loizou, 2007). They may have had little interaction with the Turkish Cypriots or experienced a difficult encounter with their past. In fact, 45 percent of Greek Cypriots according to one poll have a somewhat or much worse opinion of Turkish Cypriots since 2003 (ICG, 2008, p. 25). Both groups cross the border to shop and many Turkish Cypriots work in the South. Yet, these actions cannot be assumed *a priori* to enhance the desire for reconciliation.

If the answer is not opening more transfer points, what is it? In examining individual groups, one gets a better picture of Cypriot roadblocks and accelerators to reconciliation with the past and each other. PRIO’s survey of Cypriot attitudes toward reconciliation, forgiveness, and coexistence sheds light on the groups most supportive of and opposed to reconciliation. Strong supporters of reconciliation tend to have greater exposure to the other side, more education, more active civic participation, and less religiosity. Surprisingly, the group also includes victims of trauma. Also, Turkish Cypriots in general tend to be less in favor of reconciliation despite their majority vote for the Annan Plan. Only one third of Turkish Cypriots believe reconciliation possible compared to half of Greek Cypriots. And, youth are a key group of reconciliation detractors. Almost 40 percent of the younger generation is against reconciliation compared to 29 percent of the older generation. Another key group wary of reconciliation are those who have lost loved ones (Dilek Latif and Natasa Loizou 2008).

Youth and Missing Persons: the Present and the Past of the Future

The fact that youth, the future of the country, are against reconciliation in such large numbers is concerning, and is likely a consequence of the Cypriot wall. A Cypriot explains the phenomenon: “Old people feel the way they felt before, but the younger generation doesn’t identify with them, they are proud but they don’t know ‘the other

people' they have not seen the beauty of the past" (Dilek Latif and Natasa Loizou 2008). Young Cypriots are called traitors by their friends for crossing. Youth have no personal memory of a shared existence. Having grown up in a divided Cyprus, they are largely reliant on their education, propaganda, and family stories to shape their awareness of "the other." They have no stories of personal kindness, no experience of common humanity to counter the images painted by their leaders of the threat of military (in Greek Cyprus) or political domination (of Turkish Cyprus). In essence, youth have little other than blind faith to reinforce notions of the potential for peaceful co-existence.

Another group worthy of special focus in the quest to understand reconciliation are those who have lost loved ones through the conflict, especially those who do not yet know the fate of their relatives. Although a relatively small group (the Greek Cypriots officially list 1493 missing and the Turkish Cypriots 500), the dynamics of the missing persons issue shed light on the greater challenges of Cypriot reconciliation. Here too youth play an important role. The dysfunctions generated by an unresolved grieving process - a fear of the other side for example - are often transferred from the older to the younger generation. People without confirmation of a loved one's death often find it difficult to accept their missing as dead. In the same way, children who have not yet come to terms with that loss find it difficult to forgive. President Talat stated that the past is best forgotten for the sake of the future; it is a box that, once opened, may be impossible to close. With regard to missing persons, however, perhaps the past is better compared to an open coffin waiting to be closed, nailed, buried, and to have flowers placed on top of it, paving the way for reconciliation.

Interestingly, the dynamics that delay the resolution of the missing persons issue mirror those of the greater Cyprus Problem: divergent Greek and Turkish Cypriot versions of their shared history, including starting the historical narrative at different dates; different conceptions of the problem; a politicization of the issue and a mutual fear of any information provided being politicized in propaganda by the other side; and an over-shadowing of individual concerns by the interests of the political leadership. The Greek Cypriots consider missing persons as those who have disappeared in 1974 with the entry of the Turkish army whereas the Turkish Cypriots cite the period of 1963-1974, including the events of the Greek coup d'état. Turkish Cypriots use the Turkish word

kayip, which translates to disappeared, dead, or lost. Greek Cypriots use the Greek word *agnoumen*, which does not have the same finality and retains a sense of not-yet-recovered. Paul Sant Cassia, an Anthropologist, suggests that the word choice is political: Turkish Cypriots highlight that the missing were murdered and are martyrs for the victimized North, while Greek Cypriots keep the issue open as a reminder of the ominous threat of the Turkish military.

Both sides have politicized what could be a humanitarian issue ripe for cooperation. After the Committee on Missing Persons began its work in 1984, the parties were slow to submit names to be investigated and the cases submitted were often not the most uncertain or unclear, but rather those of most embarrassment to the other side. Cassia (2001, p. 193) suggests that this politicization is an intentional tool to barbarize the other: “a means whereby each side has constructed an image of victimhood for dubious propaganda purposes, and a justification of the maintenance of an unyielding stance in negotiation.” As long as leaders continue to find benefit from the projected image of victimization at the negotiating table, humanitarian issues and reconciliation with the past will be subservient concerns.

Further, the issue of missing persons has not been resolved because the interests of the political leadership have over-shadowed the concerns of individuals. While the Committee on Missing Persons’ work has stopped and started over the years with the ebb and flow of the leadership’s spirit of collaboration and reconciliation, the willingness of those with missing relatives to know more and receive the bones of the missing has ostensibly not wavered. Cassia (2001, p. 230) blames “powerful institutional interests” for the lack of appetite for collective self-examination. As with many aspects of the Cyprus Problem, politics have prevented potential progress on reconciliation.

Is literally unearthing bones already buried, and simultaneously digging into a sordid past, cathartic? While controversial, this approach may be a necessary step toward healing the still open wounds that prevent the greater Cypriot population, and especially hard-liners, from embracing a reconciled future. Grief not fully processed can result in a victimization complex. In the case of Cyprus, this victimization complex on both sides generates a fear of deconstructing a wall that for 35 years has been a means to both protection and division. Former Turkish Cypriot President Rauf Denktash has made the

case for division: “separation has stopped the bloodshed, brought peace and stopped them from gobbling up the north. Why insist on bringing us together?” (International Crisis Group 2008, p. 25). But is this not a shortsighted and unworthy goal for the Cypriot people? That suggested, reconciliation requires facing inner demons, withstanding jabs by friends, and questioning the narrative of the older generation.

The evils of history are more easily reiterated and remembered than the good acts of man. “The evil that men do lives after them, The good is oft interred with their bones,” Shakespeare wrote (Julius Caesar, Act 3, Scene 2). Thus, a conscious and dedicated effort is required by the people of Cyprus, their leaders, and the international community to proclaim the potential for reconciliation on, and of, the island. While the hope of political reconciliation is maintained through the negotiation process, simultaneous efforts to work toward reunification on the individual level should be encouraged and supported. At best, these efforts will prepare the way for the implementation of a political solution. But even if no political resolution is imminent, popular reconciliation can serve to reverse the concerning trend toward partition until the people are able to push their leaders toward agreement.

Recommendations: Ending the Mending of the Wall

If Cyprus is to solve its problem, the **initiative will likely have to come from the people**. By electing Presidents Talat and Christofias, the Cypriots indicated their desire for a resolution. Yet, as in the past, the process of negotiation has led the leadership toward polarized positions. Especially on issues related to negotiations but not directly involved in them, such as missing persons, reconciliation is jeopardized for political maneuvering. As a result, **international donors and governmental funds should increase their attention to small-scale, grassroots initiatives focusing on individual reconciliation**. While the results of Track III reconciliation efforts are less glamorous and tangible than Track I, and the impact will likely be slow, the results will be more consistent and sustainable than the fickle negotiation process. Also, as stated above such efforts are an essential parallel to the political reconciliation process.

Due to the polarization of the current dynamic, in the short-run, **the Committee on Missing Persons should focus on returning bones to the relatives** and largely down play the explosive aspect of uni-lateral investigation. In the medium-run, the third, neutral, member of the Committee could select cases for a fuller investigation by both sides based on their uncertainty and not their propaganda potential. In the long run, once trust finds a foothold, a **reconciliation commission** such as that suggested in the Annan Plan could begin exploring more controversial issues in the past. Realistically, this process would best be begun after an agreement is reached so as to decrease politicization to the greatest extent possible. The examples of the Rwandan Gacaca community courts and the South African Truth and Reconciliation Commission and other forms of transitional justice could provide inspiration on how to construct a process focused not on punishment, but founded on the goal of unearthing past events in a collective effort to move forward.

As discussed, **youth** play a key role in breaking down the mental barrier that divides the island. The surveys show that youth who have studied abroad tend to be more reconciliation minded. They should **enter and create organizations and programs that aim to foster reconciliation among Turkish and Greek Cypriots**. The key to such programs is turning the current social dynamics and media attention on its head. Using the media, these programs could play up the reconcilers as the “in” group. Thus, instead of reporting on Greek vs. Turkish Cypriot activities, the programs would group reconcilers vs. non-reconcilers. Through careful planning, media attention, and word of mouth, these activities could take on a mantle of being “cool.” Such an approach has been an effective with youth elsewhere. Youth would be actively recruited and trained in conflict resolution in general (see SAIS PeaceKidZ manual) in order to encourage thinking outside of the Cyprus box. They could develop publicity materials and distribute them to generate momentum around the cause of tolerance. The U.S. anti-smoking campaign is an impressive illustration of turning a social norm on its head in a short period of time.

In the short-run, these kinds of projects, with both youth and the older generation, could begin by **drawing on cultural aspects common to both sides in intra-group dialogues** and slowly branch out across the border as they become established. Several

excellent NGOs in Cyprus are already doing this, and their efforts can be strengthened and expanded. The American civil rights movement and reconciliation process in Bosnia may be good sources of inspiration for further programs.

A grassroots effort could be instigated at the major Cypriot universities in both the North and the South. These groups could **compare the elementary school history books of each side and produce a pamphlet or children's story** that could serve as a substitute to the current textbooks. This would be a difficult, but greatly important, challenge. While difficult to measure the tangible success of such grassroots activities, they play a vital role in changing how Cypriots perceive the future of their country from the ground up. The political level, with the uncertainty of a solution and its limited scope, should not be the only path pursued to a reconciled Cyprus.

Tearing Down the Wall

What will it take for Cypriots to wonder aloud, as Frost is tempted to do, whether their divisions have out-served their usefulness? When does one stop wishing that the other side would think of deconstructing the wall and have the courage to take the initiative of action oneself? How can the past be remembered in a way that allows youth to go behind their parents' and leaders' pretenses that good fences make good neighbors? An agreement would significantly speed the reconciliation process, but the individual reconciliation process should not be limited to, or dependent on, a bi-communal, bi-zonal political solution. The physical and perceived division of the island must be deconstructed - one stone at a time

2. A Renewed Push for Bi-Communal Activities

Hak Lim Lee

A simple metaphor is often used to describe the protracted conflict on an island believed to be the mythical birthplace of Venus. It is that of a separated couple continually quarreling over the keys to the house. Although the metaphor does not capture the geopolitics of having powerful neighbors involved in the conflict, it does illustrate what the conflict is about at the core: a deep-rooted mistrust between the Greek Cypriot and Turkish Cypriot communities. For over thirty years, determined citizens from both sides of the community have come together to break this cycle of mistrust and restore the mythological reputation of the island. Although these bi-communal groups, workshops, and projects have done much to foster a spirit of reconciliation between the two communities, the rejection of the Annan Plan in 2004 by the Greek Cypriot community, the subsequent accession to the European Union by the Republic of Cyprus, and the continued elusiveness of a final resolution to the conflict warrant a timely assessment of the challenges that bi-communal activities have had and continue to face.

The History of Bi-Communal Activities

Following years of inter-communal violence between the Greek and Turkish Cypriot communities after 1963, a failed coup d'état by the Greek junta triggered a Turkish intervention on the Cyprus island, leading to a de facto division of the island along the Green Line by 1974. Although communication and contact between the two communities never fully ceased, the restriction of movement across the Buffer Zone made non-political contact on the island difficult, resulting in a cessation of nearly all contact between the two communities from 1974 until 2003.

From the late 1970s onwards, small bi-communal activities began to take place in order to bring the two communities together to re-build trust and cooperation. Made possible mainly through international community support and funding, these activities ranged from political contacts, business and professional meetings, conflict resolution workshops, citizen gatherings and exchanges, ongoing bi-communal groups, and special projects. These bi-communal points of contact slowly gained momentum and

proliferated, reaching a high point from 1994 to 1997. By this time, bi-communal problem-solving workshops, conflict resolution skills training, interactive design workshops, and mediation training sessions had led to numerous bi-communal groups of conflict resolution trainers, professionals and businessmen who addressed a particular professional area, sector society or special task. A small group of thirty Turkish and Greek Cypriot conflict resolution trainers began to take ownership of the work (Hadjipavlou and Kanol 2008). Between 1994 and 1997, bi-communal groups met regularly, reaching at least one bi-communal group meeting every day of the week.

For thirty years until 2003, bi-communal groups and activities were the only points of contact between the citizens of the two communities, where each side's views of the conflict and distorted perceptions of the other could be contested and challenged in a safe environment. These activities, by creating space for both communities to initiate and sustain deep dialogue based on mutual understanding with the other, became platforms for building trust, confidence, and future cooperation. By 2003, they had become significant enough to play an instrumental role in pressuring the Turkish Cypriot authorities to partially lift restrictions to travel across the Buffer Zone (Broome 2005). Yet, the very nature of *bi-communal* contacts as an organic and dynamic process in a social system riddled by deep mutual mistrust and grievances is also what makes it difficult to sustain, "particularly when both sides refuse to engage in activities they believe might grant legitimacy to the other's political institutions" (Broome 2005, p. 18).

Obstacles to Bi-Communal Activities

The history of bi-communal activities in Cyprus highlight how politically destabilizing these activities can be for the political leaders in the two communities. In December of 1997, for example, the Turkish Cypriot leader, Denktash, banned all bi-communal activities at the Ledra Palace Checkpoint by restricting exit permits to its citizens. The ban came shortly after the EU agreed to negotiate with the Republic of Cyprus on accession into the EU while excluding Turkey from the countries it would consider. The North ceased all official and unofficial contact with the South, using the bi-communal activities as a political tool to demand being seen as an equal and recognized partner, to have Turkey placed on the list of candidates for EU membership, to gain leverage with

the international community, and to dampen pressures from opposition groups that supported bi-communal activities.

Yet the decision to ban bi-communal activities was also in part, a reaction to the manner in which the Greek Cypriot community politicized bi-communal activities. The Greek Cypriot community began to cite the increasing success and growth of bi-communal contacts as corroborating evidence of their long-held belief that the Cyprus problem was never an inter-communal affair but one that stemmed directly from what they considered an “invasion” by Turkey in 1974. The Greek Cypriots saw the productiveness of the bi-communal activities as concrete evidence that the two communities had always lived in peace and cooperation. The link began to appear in “political rhetoric and in the media, and [was adopted] even by some extreme nationalists” (Broome 2005, p. 43). Such propaganda was unacceptable to the North as it saw the conflict dating back to 1963 when President Makarios proposed thirteen amendments to the Constitution. Even today, politicians from both sides of the community continue to date the beginning of the Cyprus conflict differently.

The decision to ban bi-communal activities by the North also stemmed from the dissatisfaction it had with the limited scope of bi-communal activities which centered on cultural and educational activities. The limited scope of bi-communal activities, in turn, however reflected the South’s concerns over “recognizing” and legitimizing the North that prevented business partnerships from reaching a level of sustained partnership with institutions. In fact, the degree of sensitivity and preoccupation the Greek Cypriot community has had with the non-recognition of the Turkish Cypriot community is profound- it pervades all levels of the community, “including business exchanges and institutional relations. The Greek Cypriots continue to be afraid of a ‘domino’ effect that might result from giving even a hint of recognition to any level of Turkish-Cypriot society...extending to sports teams, community organizations, business ventures, and even to academic institutions” (Broome 2005, p. 46). The South blocks bi-communal business groups from practicing business together, does not invite academics from the North to attend seminars where the South has presence, and prevents the North from joining international offices or organizations (Broome 2005). Even today, Turkish

Cypriots are barred from participating in sports events such as the Commonwealth Games even without their flag and national anthem (House of Commons 2009).

The issue of recognition, however, is a two way street and did not solely concern the South; the North also had a strong concern over recognizing the North as the sole, legitimate representative of the island. The Turkish Cypriot leadership rejected EU funds available under the 'Fourth Protocol' because the project funds required the activity to be sanctioned by the planning bureau of the Republic of Cyprus. Out of fear that accepting these funds might indicate the recognition of the Republic of Cyprus as the sole legitimate representative to the international community, the Turkish Republic of Northern Cyprus prevented many viable projects dealing with environmental, educational, health, and cultural issues from going forward (Broome 2005, p. 46).

As such, the politics and legalities of recognition fundamentally impeded the implementation of official funded bi-communal activities, such as ones funded by the UNDP. The UN Security Council Resolutions that recognized the Republic of Cyprus as the sole legitimate governing power on the island meant that the UNDP was largely restricted to managing bi-communal cooperation projects, where concerns over recognition by both the Turkish and Greek Cypriot communities also began to percolate into UNDP funded activities, including the celebrated Nicosia Master Plan, the archetype of bi-communal cooperation where mayors, city-planners, architects, sociologists, and economists on both sides meet regularly to develop the city. The politics of recognition meant that cooperation between the two sides was in effect "non-cooperation," as the mayor of Nicosia put it; that is, mayors from both sides could not meet using their official titles. In short, for 37 years, UNDP bi-communal activities became a forum for "recognition paranoia" on the Greek Cypriot side and "recognition mania" on the Turkish Cypriot side (Hadjipavlou 2002).

In addition to the fear of recognition, the high level of criticism the media on both sides had for bi-communal group participants was another limitation to bi-communal activities. The Turkish-Cypriot media condemned participants in 1994 conflict resolution seminars; Greek Cypriot press ridiculed participants in a ten day 1993 conflict resolution workshop in Oxford. Participants were often labeled as 'traitors,' 'friends of the enemy,' and 'unpatriotic.' Such disparagement in their respective communities not only frustrated

participants of bi-communal activities but also created a level of fear of collaboration. In short, both communities stigmatized bi-communal activities as a source of opprobrium that created psychological and social barriers to social cooperation. One civil society capacity project implemented by the Management Centre faced such societal pressures, resulting in the publishing of two books to mollify concerns by participants in the South that they would be seen as collaborators (with the North).

In fact, during the 2004 Annan Plan referendum, there was a “well-orchestrated campaign against people engaging in bi-communal work” (Hadjipavlou and Kanol 2008, p. 36). The Greek Cypriot leadership did little to facilitate contacts between citizens on both sides to promote trust and confidence building. Supporters of the referendum on the Greek Cypriot side were seen as “unpatriotic” and labeled pejoratively as “*nenekides*,” or traitors, by the president in the South. Politicians, nationalist Greek Cypriot groups, and the Greek Church made a concerted effort to pursue a negative campaign, dissuading the public from supporting the referenda, demonizing the bi-communal process, and persuading their own side to believe they had no blame in the conflict (Hadjipavlou and Kanol 2008). The difficult and hostile environment often meant that it was only the more educated and academically-oriented elites, and not the common citizenry, who participated in bi-communal activities, defying being marginalized within their own communities. While the media has softened their negative criticism of bi-communal participants today, positive support is still not forthcoming (Broome 2005).

Perhaps the greatest obstacle to the success of bi-communal activities became apparent during the Annan Plan referendum in 2004 when the Greek Cypriot community overwhelmingly rejected the Annan Plan. Although the reasons for the opposing vote were many, one significant reason was the lack of linkage between bi-communal groups and the macro-level track I process in the Greek Cypriot community. To be sure, many ideas that sprung from bi-communal workshops and seminars became heeded by UN officials, eventually making their way into the Annan Plan. However, external third parties saw a limitation in the reach and capacity of bi-communal groups to communicate effectively on a broader level within their respective communities: “they were not thinking as a movement; they were thinking as little groups or individual groups” (Hadjipavlou and Kanol 2008, p. 50). While bi-communal activists were able to mobilize

the Turkish Cypriot community - and only when they joined with public sector unions with strong public constituencies such as doctors, teachers, and civil servants - the bi-communal groups found it much more difficult to do so in the South. Bi-communal activities in the Greek Cypriot community did not incorporate methods to achieve such linkage (p. 53). In fact, many bi-communal group participants could not find sufficient local funding, lacked specific programs to spread their message effectively, and were fragmented in their efforts.

A Changing Environment

Since the Annan Plan referenda and the subsequent accession into the European Union by the Republic of Cyprus, bi-communal projects have lost momentum. The opening of the checkpoint in 2003 has not produced the positive benefit that many had hoped for. Even though the opening has created an unprecedented level of movement between the two communities, a substantial percentage of Cypriots from both communities have not crossed the line into the other's community for a variety of reasons, such as the refusal to show their passport in their own country, fear, nationalism, and reluctance to acknowledge the occupied Turkish Republic of Northern Cyprus (Hadjipavlou and Kanol 2008). In fact, one Greek Cypriot journalist commented that among the Greek Cypriots that do visit the North, many visit as tourists, creating a deceitful picture of coexistence. Many in the South find the status quo comfortable, and "no one is campaigning for people to take the risk of change" (House of Commons 2009).

Turkish-Cypriots, on the other hand, have become increasingly "disenchanted with the EU" since the referenda (Economist, "No Love Lost," May 29, 2006), with many feeling that there are far fewer incentives for the South to compromise with the North since the Republic of Cyprus's accession into the European Union. Poll figures indicate that the Turkish Cypriot community has become increasingly distrustful of their counterparts to the South, resulting in a marked drop on all indicators of willingness to coexist with the Greek Cypriot community.

While relations between the two communities have not completely soured, the lack of bi-communal activities suggests that each community is starting to lose its

connection with the other. Attitudes of a shared Cypriot commonality have dropped in both communities (Cyprus Polls, 2006). Moreover, pre-election polls by VPRC Public Issue in May 2006 showed that 61 percent of the Greek Cypriots in the 18-24 year old age bracket would be happy if the island were permanently divided, while the figure was 40 percent for all age groups (WRME, August 2006). One Greek Cypriot woman in her early twenties commented that Greek Cypriots don't really care much about living together with the Turkish Cypriots.

Recommendations

With a slight but noteworthy negative shift in both Turkish and Greek Cypriot attitude toward mutual coexistence, the Greek and Turkish Cypriot leadership, as well as the international community, **should push for a resumption of bi-communal activities with a focus on circumventing the limitations of the past.** Here a quote from the Report of Secretary General on the United Nations Operations in Cyprus on December 2007 should be the basis for future policy regarding bi-communal activities: "The maintenance of economic, social, cultural, sporting or similar ties or contacts does not amount to recognition. On the contrary it will benefit all Cypriots by building trust." The South is a full-fledged EU member that enjoys international recognition as the legitimate governing force on the island as well as a much stronger economy than the counterparts to the North. In this position of strength, the South need not worry about recognition and should take the first step forward.

Short Term

Greek Cypriot and Turkish Cypriot leaders **should encourage the full scope of meaningful economic, social, cultural, and educational bi-communal interaction and exchanges,** publicly commit to refraining from cutting any bi-communal activities and pushing forward their political interests through **bi-communal exchanges.** The Greek and Turkish Cypriot **media can encourage friendly exchanges between communities,** portray the other community in a positive light, and pay more positive attention to bi-communal activities, especially ones that continue to be models of cooperation such as

the Nicosia Master Plan. **Leaders from both sides should acknowledge that both sides share mutual responsibility for the conflict, recognize the grievances of the other,** and abstain from accusatory rhetoric. In particular, the Greek Cypriot community can publicly acknowledge that the Turkish Cypriots believe the origins of the conflict go back to 1963. The EU and UN should put more pressure on both communities to support bi-communal activities in the most neutral manner possible. The international community should continue to fund bi-communal activities, but also focus on strengthening the capacity of existing bi-communal groups and associations to have a greater voice with policymakers.

Medium Term

It is important to **solidify the linkages and partnerships enjoyed between the two communities** in order to bring shorten the “geographical and psychological distance” and create trust between the policy-makers and their constituency (Hadjipavlou 2002). As such, both the Greek Cypriot and Turkish Cypriot leaders should refrain from using the bi-communal activities for their own political interest and allow sustained working partnerships between bi-communal businesses and institutions. Bi-communal development projects in the North should be emphasized, allowing the distribution of financing of the projects to reflect the development needs of the North. Moreover, these partnerships should be headed by existing bi-communal groups as much as possible, as well as be linked closely to other bi-communal groups, NGOs, professional, and political networks.

The opening of the Ledra Crossing is an illustrative example of future cooperation. Shopkeepers were initially opposed to the idea of the opening of the Ledra crossing in the beginning, since they were worried about price competition across the border. Yet now, the vast majority of shopkeepers on both sides of the city are quite happy with the development. The opening of the Ledra street crossing has worked to increase commercial activity considerably.

Bi-communal projects on the Preservation of Cultural Heritage Sites and sustainable tourist development on areas currently not affected by the property issue

should be encouraged. Tourism is a source of economic development not only in the North, but also on both sides if reunification takes place. Moreover, economic development creates wealth for the North to shoulder the costs of reunification, including compensation on the property issue. Although the Turkish army bases may be off limits, the Turkish Cypriot community and the Turkish policymakers can do much more to **prevent the future degradation and looting of cultural heritage sites** as well as to help restore these sites. The Greek Cypriot community can be more supportive by securing enough funds for the North to receive international technical expertise.

Long Term

Since the long term goal for bi-communal activities is for the reconciliation of the two communities, **bi-communal activities need to self generative and institutionalized.** Bi-communal activities will continue to be a necessity even if a political solution to the conflict is found in the short term. The bi-zonal, bi-communal framework agreed to by both communities will not resolve the underlying mistrust and suspicion nor bring the two communities together under a common Cypriot identity. Bi-communal activities will continue to provide the space where both communities continue to meet to address the painful past, form renewed relationships, and articulate a common, connected future. It will play a crucial role in resocializing both communities into a common state apparatus.

If there is a political solution, the existing bi-communal groups should be consolidated and formally institutionalized into all levels of the governance structure, especially the central government. If there is no political solution, formal bi-communal institutions can be created in the buffer zone to circumvent issues of recognition (Wolleh 2001). These new institutions should model governance structures that have been agreed upon in the working committees under the current negotiations and in future negotiations.

3. Preparing the People for Compromise: Confidence-Building Measures and the Prospects for a “Yes” Vote

Angela R. Mazer

Among the many factors contributing to the protracted conflict on the island of Cyprus, the lack of trust between the Turkish Cypriot and Greek Cypriot community figures prominently. This dearth of trust manifests itself in many ways and at all levels, often at the insidious root of self-serving narratives defined by both communities to explain the status quo or as the explicit cause of failed negotiations. The lack of trust is further expressed vis-à-vis the ‘motherlands’ of Greece and Turkey, at its most acute in the Cypriot obsession with security and the real or perceived threat that permeate to the core of negotiating positions and within the communities at large. Mistrust is also directed at actors such as the United Nations, the European Union and the United Kingdom, who as a result of their direct engagement, have become entangled in the web of suspicion and accused of duplicity or partiality by each community when convenient.

This chapter will first highlight the origins of mistrust in Cypriot society. It will then turn to a discussion of more recent manifestations of this lack of confidence as demonstrated by failed attempts at rapprochement and the futility of confidence building measures, known more commonly as CBMs, to build trust. The final section will propose that a redefined role for CBMs still exists in light of recent political developments on the island and despite some of their limitations. In conclusion, a specific set of CBMs will be proposed that are fundamental for narrowing the gaps between the two communities and establishing the critical mass of support necessary on both sides to approve a comprehensive settlement.

The Origins of Mistrust in Cypriot Society

The antecedent of mistrust in Cypriot society is found in Britain’s ‘divide and conquer’ colonial strategy. As Greek Cypriots agitated for independence in the 1950s, the British fostered the loyalty of the Turkish Cypriots, who, “being in the minority, stood more to gain from British patronage,” and divisions between the groups were amplified (Frendo

1993, p. 157). The consociational constitution of 1960 was formed on this basis, when a power-sharing agreement was imposed on a people not ready or not willing to govern collaboratively.

Post-Colonial Politics

Mutual suspicions were already in place when the Turkish Cypriots were “forced out” (or, according to the Greek Cypriots, “walked out”) of the government in 1963. When inter-communal violence broke out, Turkey became involved and a United Nations peacekeeping force, UNFICYP, was established in 1964. Yet inter-communal violence persisted, increasing in severity and continuing through 1967, when international pressure and a Turkish ultimatum pushed Greece into reducing its forces. The calm was short-lived, and in July 1974, under the Greek-backed coup d’état of the Cypriot government and Turkish fears of achieving *enosis*, Ankara authorized its troops to invade the island on behalf of the Turkish Cypriots.

The Crisis of 1974

The crisis of 1974, viewed as a humanitarian intervention by the Turkish Cypriots and an illegal occupation by the Greek Cypriots, established the presence of around 21,000 Turkish troops on the island (the number of troops is in fact widely disputed). As a result, Cyprus experienced massive population displacement, with 165,000 Greek Cypriots fleeing from north to south, and 45,000 Turkish Cypriots fleeing from south to north. This population movement was a hugely traumatic experience for both communities, as “refugees” (or more accurately, Internally Displaced Persons, IDPs) were forced from their homes into a status of limbo overnight. Indeed, the question of refugees and ‘abandoned’ property remains hugely contested to this day, and the emotional trauma of displacement echoes as a persistent theme of victimization.

The Perils of Partition

The events following the Turkish invasion also include the de facto separation of the island with the UNFICYP establishing the Turkish and Greek Cypriot ceasefire lines and

assuming responsibility for patrolling the Buffer Zone, also known as the Green Line. Until 2003, it was almost impossible to cross between the sides, and both communities followed quasi-independent trajectories from 1974 onwards. While Turkish and Greek Cypriots peace activists made isolated attempts to meet in London and discuss the Cyprus problem, broad-based communal interaction was simply eliminated. Subsequent generations were raised in homogenous Turkish and Greek Cypriot communities, reared on polarized ethnic narratives and denied the chance to form an opinion of “the other” based on personal interaction. The inter-communal violence may have ceased, but fear, mistrust and anger raged on.

CBMs and the Failed Pursuit of Rapprochement

Increased Polarization

The period of 1974-1993, following the militarized and UN monitored partition of the island, was characterized by almost complete communal isolation and a series of failed attempts to reach an agreement. Partition was compounded on November 15, 1983 by Rauf Denktash’s unilateral declaration of the *Turkish Republic of Northern Cyprus*. Despite their attempted independence, only Turkey granted the Turkish Cypriots recognition, and the *Republic of Cyprus*, effectively the Greek Cypriots, maintained internationally recognized sovereignty of the entire island. The lack of recognition granted to the Turkish Cypriot community and their de facto exclusion by the Republic of Cyprus in international fora established asymmetrical power dynamics balanced only by the presence of Turkish forces. Serious confidence-building measures, while suggested, were not attempted in this period and tediously reached agreements on demilitarization or the status of Varosha were never implemented, thus reifying the status quo.

Political Deadlock

In 1993, three years of intense negotiations between Denktash and Greek Cypriot president George Vassiliou ended inconclusively and without any consensus on Boutros-Ghali’s proposed “Set of Ideas.” In recognizing that “substantive negotiations were deadlocked,” Boutros-Ghali proposed a package of confidence-building measures as an

avenue for continued dialogue (Security Council Research Report 2008). The main elements of these CBMs included the reopening of Nicosia international airport, the transferring of Varosha to direct UN control, and cooperation between the two sides in water management, education, health and the environment, etc. It also included enabling the meeting of political leaders from both sides and the opening of the Green Line to journalists. Despite the Secretary General's efforts and the endorsement of the Security Council, the parties failed to reach agreement on the implementation of the CBMs, thus squandering functional cooperation and furthering disillusionment.

Failure of the Annan Plan

In April 2004, after more than three years of direct negotiations and vigorous United Nations involvement, a comprehensive plan on the establishment of a bi-zonal, bi-communal federation was submitted to simultaneous referenda. Turkish Cypriots voted in favor of the plan by a margin of 65 percent; Greek Cypriots rejected the plan with a 74 percent majority. The defeat of the Annan Plan has been attributed to the lack of incentives on the Greek side as a result of an unconditional European Union accession framework, compounded by a powerful "No" campaign against the referendum that included the president himself. While the Turkish Cypriots voted "yes" on the referendum, the role of their leadership, primarily under Denktash, in stalling the negotiations hardly served to catalyze momentum to reach a settlement earlier. The ascension of Mehmet Ali Talat, an outspoken supporter of the Annan Plan, shifted this tide among Turkish Cypriots. In reflecting on the tragically missed opportunity, the report of the Secretary General (2004) cites the insufficient efforts made by certain parties to the conflict to "prepare the people for a compromise."

Renewed Negotiations, Persistent Mistrust and the Need for CBMs

A Mixed Record for CBMs

A new round of negotiations began in 2008, the product of fortuitous elections that brought former left-wing allies to the leadership of their respective communities. In this context of renewed momentum, the role of CBMs remains in question. Lessons drawn

from past failures demonstrate a pattern: whenever there has been a setback to the negotiations, the idea of negotiating CBMs is put on the table and generally leads nowhere except to a major diversion of energy. Most observers regard the opening of the Green Line, a unilateral action taken by the Turkish Cypriots, as being one of the most effective CBMs, and arguably an action that may not have been achieved had it been negotiated (ICG 2006, Kaymak, Lordod and Tocci 2008). Other locally driven CBMs attempted through negotiation have proven unsuccessful, and there is a consensus that in this moment of renewed hopes for a comprehensive settlement, it would be foolish to divert attention to complex negotiated CBM packages.

Yet such reflection does not automatically invalidate the utility of CBMs, let alone suggest that one can dismiss the lack of confidence between the communities in the peace process at large. On the contrary, it suggests that unilateral initiatives, or those requiring little negotiation, may be the most effective way to build confidence. It also suggests that exclusively political CBMs hold little value for engendering confidence at an individual level. Yet there is broad recognition that a dire need exists for efforts to build confidence, trust and social capital, “within and between the communities as well as between Cypriots, Turkey, Greece and the EU, calling for CBMs between and by all actors” (Kaymak, Lordod and Tocci 2008, p. 46).

Persistent Mistrust

Unsurprisingly, levels of mistrust have not subsided, as both communities have continually adapted the narrative of victimization to suit their immediate reality and affirm their negotiating position. One could argue that “the sources of intractability are not the same as the original causes of the conflict” and that the mistrust of today is in many ways related more to the forced separation and the mythologized narrative of oppression than the lived experience of violence (Zartman et al. 2009, p. 496). In the post-Annan Plan period, trust has been increasingly damaged within the Turkish Cypriot community, as high hopes for a settlement were crushed in the “magnitude of the Greek Cypriot rejection” (ICG 2006).

According to a recent opinion poll of both communities, Cypriots are “fundamentally distrustful,” characterized by high levels of mistrust among Greek and Turkish Cypriots at the intra- and inter-communal setting as well as displaying serious mistrust of various international actors (Kaymak, Lordod and Tocci 2008). Large percentages in both communities deem the ‘lack of trust’ as a factor in the creation and perpetuation of the conflict (Hadjipavlou 2007). Greek Cypriots often claim that their problem is not with Turkish Cypriots but rather with Turkey, and exhibit extremely high levels of mistrust for Turkish institutions such as the government and the army. By extension, there is very little trust among Greek Cypriots of the Turkish Cypriot leadership whom they construe as weak puppets of Ankara. Conversely, Turkish Cypriots demonstrate fairly high levels of mistrust in Greek Cypriots and their leadership, and in particular, mistrusting the role of the Orthodox Church in the Greek Community (Kaymak, Lordod and Tocci 2008). Polls also suggest that there is a lack of confidence in the United Nations and its mediation efforts, whereas Turkish Cypriots are additionally skeptical of the European Union and their role in resolving the conflict. (see PRIO: Prospects of Reconciliation, Co-existence and Forgiveness in Cyprus in the Post-Referendum Period 2007).

Recommended CBMs

As in 2004, a comprehensive settlement will be put to a simultaneous referendum in both communities and the people themselves will decide the fate of their island. It would be irresponsible to assume that a “yes” vote on both sides is a guaranteed outcome at this point in time. Incentives in both communities, but particularly on the Greek Cypriot side, tend to favor the status quo. It is critical, therefore, to engage in activities that shift the tide, increasing awareness in both communities about the benefits of a comprehensive settlement while simultaneously ensuring that the information coming from local leadership confirms a good-faith sentiment. Herein lies the role for a new set of confidence-building measures, conceived not as political agreements but rather tactical supplements to the larger negotiation process. The following CBMs can be grouped into two broad categories: those focused on strengthening inter-communal contact and those aimed at promoting strategic communication of the negotiation process to the public.

Other CBMs, which include joint de-mining activities, the opening of additional crossings along the Green Line and demilitarization, while important, are not the focus of these suggestions. On the Greek Cypriot side, CBMs face the inevitable tension surrounding perceived “recognition” of the other community, though it is hoped that the following recommendations would require only nominal adjustments of the status quo.

Promoting Inter-Communal Contact

There exists a need to enable as many individuals as possible to engage in positive, “strong” encounters with the other side as a stepping-stone towards shifting one’s disposition in favor of reconciliation and co-existence.

While the opening of Ledra Street in April 2008 was a major step in linking the two communities and perhaps the most important CBM to date, there is conflicting information on the degree to which Turkish Cypriot and Greek Cypriot communities now interact at a ‘person-to-person’ level. Certain politicians proclaim there to be no problems on the ground, and that the issues are strictly political. Others claim that the communities are deeply divided, and that there is little reason to even cross to the other side. Between these polarized views lie the various moderates, those that may cross the Green Line on occasion, or perhaps the rare individual involved in bi-communal activities. It is indeed difficult to gage the exact degree of interaction between the two communities, yet one thing is clear: there remains a notable physical and psychological divide between the two communities that continues to foster mistrust and fear of the other.

Polls carried out between the two communities indicate that those individuals with the strongest disposition towards reconciliation and coexistence correlate strongly with those who claimed to have had “strong and intense encounters” with people on the other side. Those individuals engaged in civil society, and in particular, bi-ethnic NGOs, are equally correlated with strong dispositions to reconciliation, co-existence and forgiveness. Of course, the direction of causality is hard to determine: do people engage in such activities because they already hold moderate views, or do such encounters cause them to moderate their views? Civil society activists have cited that bi-communal activities tend to be frequented by the “usual suspects” and fail to reach a critical mass. However, it has been

demonstrated that strong encounters in the North or South swing a person 35 percent above the norm in their view of reconciliation, second only to those involved in bi-communal NGOs who demonstrate a 38 percent swing above the norm. (PRIO: Prospects of Reconciliation 2007). Specific CBMs to advance quality inter-communal contact include:

- **Increase the visibility and scope of the existing United Nations Development Program Action for Cooperation and Trust Program (ACT).** Since 2005, the UNDP ACT program has been facilitating opportunities for Greek and Turkish Cypriots to work together on concrete projects for the benefit of the island as a whole (UNDP 2008). Strengthening civil society, building inter-communal advocacy on issues of common concern and enabling cooperation, the ACT program is an effective tool for fostering such “strong encounters.” As such, efforts should be made by UNDP to broaden the cohort of Cypriots in these activities, avoiding reliance on the “usual suspects” and targeting communities where levels of mistrust and isolation are most acute. It is also crucial for ACT to publicize their achievements across the island, promoting the legitimacy and necessity of such inter-communal activities and serving as a counterweight to forces of skepticism and fear.
- **Launch inter-communal sporting events that bring young people together in a non-confrontational environment for sport and fun.** On an island where soccer (or in European terms, football) is central to both communities’ social space, particularly among men of all ages, efforts should be made to utilize the sport for inter-communal contact. One must be highly aware, however, of the ethnic overtones found in allegiance to teams and avoid activities that could entrench or even instigate ethnic rivalry. One option would be to encourage a premier international soccer team, ideally from England (where Cypriots of both sides have strong ties) to host a training camp on the island. While basing the program on skills development and the chance to meet top players, young people would indirectly be able to interact and develop comfort with one another in a non-confrontational setting. Such activities could be held in the Buffer Zone, supported by coaches from both communities and sold not on the grounds of “peacebuilding,” but rather, on the opportunities for “skills-building” and international recruitment. One caveat is that such an activity would

likely be geared towards men and boys, yet women and girls often hold higher levels of mistrust (PRIO 2007). It is imperative that opportunities for their participation be considered in the use of sport for inter-communal contact, whereby women and girls are provided with their own unique forum to engage with one another and develop skills.

Promoting Strategic Communication

The second type of concerted confidence-building measures is the transfer of accurate information from the politicians to the people. As a wry editorialist in the *Cyprus Daily* (Dec. 6, 2008) suggests, “Christofias and Talat have met 11 times so far, and more or less each time they do something really strange occurs. While UN officers reflect a positive account of each meeting and the respective leaders exit and it’s all smiles and handshakes, something else tends to happen by the time of the evening news.” Indeed, there appears to be a serious campaign within the media, and from elements of the respective governments themselves, to undermine the credibility of the negotiations and the leadership. As an outsider observer, it is not entirely clear what degree of autonomy the media possesses, and indeed, many media outlets are loyal to parties that are less supportive of an agreement; nevertheless, it is abundantly clear that the message is being muddled. According to the same editorialist (Sept. 20, 2008), “It seems more negotiation occurs outside the talks, in the press, on TV and radio shows, and provides an atmosphere of disillusionment, even loss,” detracting from the efforts of the negotiators and poisoning the environment. In order to address the severe gaps in communication and information, CBMs should include:

- **A coordinated media strategy to organize joint press conferences under the auspices of the United Nations, broadcasting important developments in the negotiations (presented in English and translated simultaneously in Turkish and Greek).** The value of these joint press conferences would be to prevent the misinterpretation of negotiations and the squandering of political capital when important milestones are met in the process. A joint media unit supported by the European Union would be empowered to fill this information vacuum, not designed to get ahead of the political process, but rather to get in tune with and broadcast its

status to the public. Joint-press conferences are critical to ensuring that slight differences are not spun out of proportion, and would demonstrate the good-faith efforts of both leaders in the process. It would also serve to mitigate some of the “mutual recriminations and negotiation through the media,” which have been criticized by Secretary-General Ban Ki Moon as thwarting the objectives of the negotiations (Report of the Secretary General, November 2008). As such, a tacit agreement is needed from Talat and Christofias, urging them to bolster the image of the other in their respective communities and refrain from comments that undermine their interlocutor.

- **Launch a variety of public information initiatives on both sides that engage academic and civil society to promote the benefits of a settlement and the realities of compromise.** As was cited in the Secretary General’s report and in other assessments on the failure of the Annan Plan, insufficient attention was given to an active public information campaign that outlined the settlement and highlighted the incentives for a “yes” vote. One notable exception was PRIO, which sought to fill this gap with objective summaries of the plan and forums for dialogue, but it was too little too late. Such efforts are needed immediately and on a much larger scale. While the formal text of the negotiated settlement is still being defined, the outlines of the agreement are well known. Thus, it is the responsibility of those genuinely seeking a “yes” vote, including political parties, academics and civil society, to develop a strategy for explaining the parameters, the benefits of a “win-win” solution as well as the unavoidable compromises that will need to be made. In a barrage of propaganda, factual information is missing, and the risks of a second defeated referendum lurk in the background.

While the need for the aforementioned confidence-building measures are clear, implementation requires political will and financial support. The financial support is easily provided by the United Nations and the European Union, as both seek to promote bi-communal engagements and are deeply vested in reaching a final settlement. The political will is more difficult, and in the past, measures to build confidence have been cynically skewed as a self-serving mechanism for increased recognition or credit.

Thus, the onus is on both sides to seize current momentum and engender public confidence in the peace process to improve the prospects for a “yes” vote.

4. Winning the Cypriot Hearts and Minds

Mathias Huter

The Greek Cypriots' "no" to the Annan plan in 2004 highlighted the role of public opinion in the process towards a solution of the Cyprus issue. Whatever a new compromise for peace might look like, the people on both sides will have the last say. Only a proposal that wins a majority of votes in referenda on both sides can be implemented. This chapter aims to analyze trends in the Greek Cypriot and Turkish Cypriot public opinion, to identify potential spoilers who might campaign against a unification, and finally outline some strategies on how a majority of people on both sides could be convinced to vote in favor of a solution.

Ensuring a widely supportive public opinion for a new compromise to solve the Cyprus conflict will be one of the most difficult challenges the leaders in the South and the North have to face during and after the negotiations. In the North, president Mehmet Ali Talat cannot take the 65 percent "yes" vote of 2004 for granted, as frustration about the slow negotiations with the Greek Cypriot community is spreading, creating an environment that might allow nationalist forces to gain momentum. In the South, the Greek Cypriot president, Demetris Christofias, faces the difficult challenge of turning the South's 75 percent "*oxi*" ("no") votes against the Annan plan into a majority for a new solution, while several powerful spoilers are likely to lobby against a new compromise, as they successfully did five years ago. Two hawkish and influential parties, the Democratic Party (DIKO) and the Movement of Social Democrats (EDEK), for the moment are paying lip service to the president, stating their support for new negotiations. But if a new agreement were in sight, those groups might decide to mobilize a large part of their supporters to vote against a reunification if they are not satisfied with the compromise. To shift public opinion towards a broad support of a solution, the president will also have to ensure a factual, balanced public debate about the negotiations as well as the support of leading media outlets.

Five years ago, the referendum on the Annan plan was preceded by a well organized and well funded "no"-campaign. The climax of this vast lobbying effort against the UN-negotiated solution was a two-hour interview broadcast on all major TV

stations with president Papadopoulos. The popular leader shed a tear and in an emotional speech warned his people of voting for the Annan plan. In this interview, which had significant impact on Greek Cypriot public opinion, Papadopoulos implied that after the country's accession to the European Union, the South would be able to press for a more favorable deal. "From my experience, such proposals or plans do not disappear, they are revived and reproduced", Mr. Papadopoulos said in 2004.² This has raised expectations among many Greek Cypriots that a new peace proposal will be much more favorable to their interests. It is not going to be easy for the current Greek Cypriot leadership to lower those expectations and sell a proposal to the public that still remains a compromise of both sides' positions.

The well-financed campaign opposing the Annan plan relied on the support of several newspapers and television channels with close ties to the political parties rejecting the solution. While critics were given plenty of airtime to agitate against the Annan plan, most media outlets did not provide supporters of the proposal nor UN and EU officials with the same opportunities to speak out in favor of the plan.³ Diplomats and "yes"-campaigners accused Greek Cypriot broadcasters of unbalanced reporting and of highlighting only the plan's disadvantages for the Greek Cypriot side. In the heated discourse, proponents of a "nai" ("yes") vote were bullied and branded as "traitors" and "Turk lovers". President Papadopoulos used the state apparatus to support the "no"-campaign: There were reports of civil servants being pressured to vote "*oxi*"; the minister of education even ordered schoolchildren to leave the classrooms and distribute "no"-leaflets and stickers on the streets. "It's embarrassing and absolutely shameful," George Vassiliou, a former president, criticized this campaign. "What we have seen is an industry of misinformation at work – a special kind of police state where people have been told what to vote and indirectly threatened."⁴

In the South, objective and high qualitative reporting of all voices and opinions can be compromised by the influence of businessmen and politicians who have control

² The Guardian, "Greek Cypriot voters set to derail UN plan for island's reunification," April 24, 2004.

³ Economist, "A chance for peace and unity wasted," April 26, 2004.

⁴ The Guardian, "Greek Cypriot voters set to derail UN plan for island's reunification," April 24, 2004.

over a significant share of advertisement spending. Significant financial support for the “*oxi*”-campaign allegedly came from hotel owners and the construction sector, as both industries feared increased competition after the opening of the North. The small volume of the advertising market and the large number of newspapers per capita, seven national daily papers and approximately 20 weeklies, made it easy for interest groups to put pressure on media owners, publishers and journalists by threatening to withdraw their support and advertisement budgets. Major television stations as well as the Cyprus News Agency have a record of adopting the (in the past mostly nationalist) line of the Government in their reporting of the Cyprus issue.⁵

Despite this often biased reporting on the Annan plan and the conflict in general, Greek Cypriots show a remarkably high confidence in their media outlets: According to the Eurobarometer survey of spring 2008, 50 percent of Greek Cypriots state that they trust newspapers; 66 percent say that they trust what they see on television, a level of trust that is among the highest in Europe.⁶

In the North, independent reporting is even more difficult to find. Eight daily newspapers, most of them directly linked to political parties, are competing with popular papers from the Turkish mainland in a tiny market of 200,000 inhabitants⁷ which makes it hard if not impossible for independent voices to survive, politically as well as economically. “There is nothing like real journalism in the North, there is hardly any real press”, says one international observer. However, 55 percent of Turkish Cypriots trust television and 49 percent have confidence in what they read in the written press, according to the Eurobarometer. Thus, as the media enjoys quite some trust on both sides, the press still remains an important vehicle that could influence public opinion over a new agreement.

One complaint raised in the South was the insufficient time frame to present the final version of the Annan plan to the people and to have an intensive public debate about the proposal before the referendum. Some international observers question the legitimacy

⁵ Economist Intelligence Unit – Country Profile Cyprus 2008.

⁶ Eurobarometer 69 (2008): National Report Cyprus – Executive Summary.

⁷ European Journalism Center: http://www.ejc.net/media_landscape/article/cyprus/.

of this argument, stating that most relevant points of the agreement had already been known, as they were included in previous versions of the document. However, an intensive, public debate on a compromise and the timely availability of all relevant information should ensure that people feel that they know what they are voting on.

Furthermore, the leadership on both sides will have to refrain from using the negotiation process to score political points among its constituency. In order to maximize the chances of achieving positive referenda on both sides, the negotiation process must not be pictured as a zero-sum game, where one party only gains what the other side loses, as it has been communicated by politicians from both sides in the past, but as a process from which both sides can gain economically, politically and culturally.

Another lesson learned from the Annan referendum is that in the South, a bottom-up movement will be necessary to convince people to vote for a new peace proposal. If the solution looks like a top-down approach, a deal being “imposed” from outside powers like the UN, the EU or Great Britain, resentments against such a deal might rise again. Thus, the EU and other outside actors should endorse a new proposal cautiously; an intensive public relations campaign in favor of a deal could become counter-productive.

Greek Cypriots show a high level of trust in their political institutions. 65 percent trust their government, 63 percent trust their parliament, according to the Eurobarometer survey of fall 2008. This confidence emphasizes the role of the president and the major political parties in creating public support for a solution for the Cyprus issue. Only two parties in the South supported a “yes” in the 2004 referendum: the centre-right, pro-European Democratic Rally (DISY) and the liberal United Democrats (EDI) of former president George Vassiliou. However, those two parties seemed unable to convince most of their supporters to vote for the Annan plan.

The formally Marxist Progressive Party of Working People (AKEL), which had helped bring President Papadopoulos to power in 2003 by entering a coalition with his Democratic Party, came out against the Annan plan only a couple of days before the referendum, even though a remarkable part of their constituency was strongly in favor of a solution. Although only 29 percent of Greek Cypriots state that they trust political parties, several observers agree that official party lines on a proposed solution still provide important guidance for the parties’ supporters. This is especially the case for

AKEL, described by several observers as a “highly disciplined party.” AKEL’s new head tries to rebut such expectations: “[In a referendum] people do not vote along party lines”, says Andros Kyprianou. “But some parties can influence the mood. It is important how the president and parties address the issue. If the president and most parties support a solution, people will vote for it.”

If President Christofias manages to successfully negotiate a proposal with president Talat, his AKEL party would enthusiastically support the deal. With its organized youth, farmers and women, its labor union, and its good connection to left-wing organizations in the North, AKEL has the potential to set up an effective grass-roots campaign in the South, engaging many Greek Cypriots in personal discussions about a new proposal and reaching out directly to young Greek Cypriots by using innovative ways of communication such as online social networking platforms. Convincing Greek Cypriots under the age of 45 of the advantages of a reunification of the island will be one of the major challenges in the process of securing a majority vote for a new proposal. However, there are arguments that might appeal to young people, such as the abolition of conscription after a reunification.

Greek Cypriots who have memories of the bi-communal experiment of the 1960s as well as emotional attachments to the North and its people have shown more goodwill to reach a solution and were relatively less opposed to the Annan plan in 2004. Among young people, opposition to the plan was significantly higher than among older people, as many youngsters have no interest in a common future with the Turkish Cypriot community. As most young Cypriots from the South hardly ever engage with people their age from the North, increased social interaction and trust building measures directed to this peer group might be able to raise support for a reunification. One way this could be done is by building bridges between youth sub-cultures from both sides.

When the Greek Cypriot government announced plans to revise history schoolbooks last year, it faced heavy criticism, not only from nationalist parties but also from leaders of the teachers’ union and the head of the Cyprus Orthodox Church, Archbishop Chrysostomos II.⁸ The Orthodox Church, not only a spiritual but also an

⁸ Agence France Presse (AFP), “Cyprus history book rewrites spark outcry,” October 26, 2008.

economic stronghold in the South, has played a central role in the opposition to the Annan plan. Historically an opponent of a reunification with the North, high level representatives of the Church called the plan “satanic” and threatened supporters with “eternal damnation.” (ICG 2006) Fifty-five percent of Greek Cypriots consider themselves practicing Orthodox Christians and state that they try to follow the dictates of religion as well as they can; another 39 percent state that they consider themselves Orthodox Christians but do not follow the rituals of the religion very much.⁹ These numbers indicate the authority the Orthodox Church has for large parts of the southern population. Despite its past opposition, Archbishop Chrysostomos II stated in mid-2008 that he would support the efforts of president Christofias to engage in new negotiations and that he no longer had concerns that the new initiative would compromise Greek Cypriot interests – a commitment that will be put to a test if an agreement is reached.¹⁰

In contrast, religious leaders do not have a strong impact on public opinion in the North, a mostly laic society, like in Turkey. Civil society organizations which probably would, however, be able to deliver a “yes” vote in the North are the chamber of commerce and trade unions. These organizations would be able to create an important momentum through their large membership and their economic capacities. For Turkish Cypriots, the prospect of fully joining the European Union has not lost its appeal. According to the Eurobarometer survey of fall 2008, 58 percent of Turkish Cypriots think that the Turkish Cypriot Community would benefit from the full application of EU legislation in their part of the island, and 53 percent think that the implementation would, in general, be “a good thing”.¹¹

President Talat, however, recently has not been quite supportive of pro-European sentiments, insisting that “the EU is not treating us friendly.” The president is not supporting speculations that an agreement could be reached in the not too distant future and dismisses such thoughts by publicly accusing the Greek Cypriots of aiming to control the whole island and being unwilling to share power. However, the president seems

⁹ Center for European Policy Studies, “Building Confidence in Peace. Public Opinion and the Cyprus Peace Process,” 2008.

¹⁰ Associated Press (AP), “Cyprus Church leaders backs reunification effort,” July 31, 2008.

¹¹ Eurobarometer 70, National Report – Executive Summary, Turkish Cypriot Community, 2008.

confident that the North could deliver another “yes” vote if a new solution was put to a referendum: “The Turkish Cypriots are moderate, they are easily persuaded. The Greek Cypriots are just the opposite character.”

Mistrust remains a major problem in this unsolved conflict. In line with the mainstream Greek Cypriot narrative, 61 percent of Southerners support the view that “our problem is not with the Turkish Cypriots but with Turkey” and state that they trust Turkish Cypriots. Eight out of ten Greek Cypriots state that they would not mind having a Turkish Cypriot neighbor. Their suspicion focuses mainly on the Turkish army (99 percent distrust it) and the Turkish government (97 percent). Because Turkish Cypriot political actors are regarded as puppets of Turkey by Greek Cypriots, 83 percent distrust the Turkish Cypriot leader, Mr. Talat, and 87 percent distrust political parties in the North.¹² These numbers support opinion polls, stating that 80 percent of the “no” voters in the South rejected the Annan plan out a fear that Turkey would not deliver the promised commitments – a fear that was fueled by several actors, as described above. However, surveys indicate that one quarter of voters might have switched from “no” to “yes” if there had been stronger security guarantees and a more rigid timeframe for the withdrawal of the Turkish army.¹³

In the North, however, trust in the Southern neighbors is small: 72 percent of Turkish Cypriots state that they mistrust Greek Cypriots, 74 percent mistrust president Christofias, and only 20 percent trust the AKEL party and its pan-Cypriot vision. Only six out of ten Turkish Cypriots state that they would not mind having a Greek Cypriot neighbor. Despite the historic narratives on both sides, there is a willingness to acknowledge that mistakes have been committed by both communities – 85 percent of Greek Cypriots and 50 percent of Turkish Cypriots agree on that. A large majority of people on both sides, 81 percent of Greek Cypriots and 69 percent of Turkish Cypriots, recognize that a solution needs to be based on mutually acceptable compromises. About

¹² Center for European Policy Studies, “Building Confidence in Peace. Public Opinion and the Cyprus Peace Process,” 2008.

¹³ International Crisis Group, quoting a presentation by George Vassiliou, presented at the 4th Annual EU-Turkey conference in June 2004, 2006.

nine out of ten Cypriots, on both sides of the buffer zone, absolutely oppose an armed struggle to solve the conflict.¹⁴

“There has never been a Cypriot nation, we never had a common goal. And we still don’t”, says Serdar Denktash, leader of the Turkish Cypriot Democratic Party. Mr. Denktash and his supporters do not believe that negotiations about a bi-zonal, bi-communal federal solution with equal representation of both groups will ever be successful and thus argues in favor of a two-state solution. If the Democratic Party is successful in convincing Turkish Cypriots that the Greek Cypriots will continue to negotiate without actually wanting a solution that would meet the Turkish Cypriot demands, there is the potential for frustration about the unsuccessful negotiations to spread, weakening the position of president Talat during negotiations. Another group of potential spoilers are Turkish nationalist groups such as the Grey Wolves, who have been able to mobilize several hundred people in the past and have physically threatened journalists and other opponents of their radical views. Such relatively small groups could become relevant spoilers in they were purposefully used by forces opposed to a peace deal and fuel fears that a unified island without Turkey’s protection would become a Hellenic one.

Another worrying development is the rapidly decreasing life satisfaction among Turkish Cypriots. According to Eurobarometer surveys, in 2005 79 percent of Northern Cypriots were satisfied with their lives; this number had fallen to only 51 percent in fall 2008 – before the global economic downturn had started to affect the people in the North. Rising levels of frustration might contribute to a political destabilization of the North and could strengthen nationalist forces in parliamentary elections this spring, making it more difficult for president Talat to negotiate a new compromise.

In order to win the Greek and Turkish Cypriot’s hearts and minds for a future proposal to solve the Cyprus issue, **leaders on both sides should aim to create a positive environment for public debates on the proposed settlement.** Implementing

¹⁴ Center for European Policy Studies, “Building Confidence in Peace. Public Opinion and the Cyprus Peace Process,” 2008.

the following approaches might help them in securing public support for a new set of referenda:

- The **negotiations should be presented to the public as a process in which**, after both groups have committed to some painful compromises, **both sides will gain** politically, culturally and economically in the long run.
- During an extensive, factual public debate, **potential spoilers like the hotel and the construction lobbies might be convinced that a unified island offers numerous potential business opportunities to them**, such as the remodeling of restituted houses or the construction of new hotels on the North's beautiful beaches – many of which would be owned by Greek Cypriots who already run hotels, bars and restaurants in the South.
- As there is no deep hatred between Greek and Turkish Cypriots, several confidence building measures could be implemented quite easily if both sides had the political ambition to do so. **Joint restoration and preservation of cultural and religious sites on both sides** could be carried out by NGOs and volunteers, even if there is little funding available. **National sports teams**, for example the Cypriot national football team, **could be assembled with players from both sides**; a joint football league for the whole island would foster interaction between both societies.
- **To build trust between young people from both communities**, the Greek Cypriot government as well as the European Union **could support sports events or music festivals in the South** that appeal to certain youth cultures existing separately on both sides. These occasions would allow young people to meet and bond over the passions they share. Concrete examples for such events could be a festival for reggae, hip hop or electronic music or sport events like surfing, skateboard, street soccer or basketball competitions with international as well as local youngsters from both sides participating.
- As media outlets on both sides have a tendency to mirror their government's view or the opinions of political parties they are affiliated with, **there is a striking need for a media outlet that provides both sides with the same quality reporting and**

tells the same story to both audiences. A role model for such a media outlet could be the French/German public television program “Arte”, which broadcasts all its programs, including live news, parallel in both languages. Although the costs of such a TV channel are high, such a program, supported with public funds, would be a worthy investment and could significantly increase the understanding of each other’s views and finally counter ethnic, nationalist narratives.

- Because the Cypriot media in the past has been incapable of offering a sufficient public sphere to all voices and of moderating between different opinions and arguments, **the leadership on both sides should pay more attention to steering the public debate.** Borrowing the concept of ‘town hall meetings’ from the PR tool-box of U.S. President Barack Obama, **regional and national (opinion-) leaders should engage in open, public debates where they answer to the concerns of the people and explain all the aspects of a compromise.** Broadcast on television, such events can be an appropriate way of engaging a wider public in a debate about what an acceptable solution to the Cyprus problem could look like and at the same time create a sense of ownership among the people.
- **Outside actors like the European Union should endorse a new reunification proposal cautiously to avoid the impression of a “solution imposed from outside”.**

As pointed out in this chapter, there are several potential spoilers, posing a threat to the positive outcome of a second referendum – especially on the Greek Cypriot side. However, it should be possible to limit the influence of such opponents to a new compromise, if the leaders identify them in time and manage to offset their intentions by engaging in an open discussion to challenge their views and plans. It is not going to be an easy task for either of the two presidents to secure a majority vote for a new agreement, but if they fail a second time, the prospects of ever reaching a negotiated reunification of the island look gloomy.

5. The Pitfalls of Bi-Zonality:

A Governance Alternative for a Future Unified Cyprus

Aart Geens

The goal of this chapter is to provide some new thoughts about governance alternatives for a future unified Cyprus. Since the High Level Agreements of 1977 and 1979, the framework of every negotiation has been to reach a settlement that provides for a bi-communal and bi-zonal federation. This is also the case in the current negotiations that take place since the process was revived after the election of Mr. Christofias. Both leaders, Mr. Talat and Mr. Christofias, seem very committed to finding a solution and that is a hopeful sign in itself.

Nevertheless, here, it will be argued that in the Cypriot context a bi-zonal solution has very limited chances to create a viable and stable democratic state on the island. The proposed alternative is a solely bi-communal state, with built-in centripetal mechanisms to prevent a quick dissolution from happening. We will therefore look at electoral mechanisms to give these centripetal impulses to the future state.

This argument is neither an attempt to derail the negotiation process, nor an endorsement of the viewpoints of either side. It should be viewed as an encouragement to remain creative and open to new ideas, and as a call to remain vigilant after – hopefully – a new agreement based on the High Level Agreements has been reached.

Bi-Zonality and its Pitfalls for Cyprus

Since 1977, a bi-zonal and bi-communal federation has been the scope of every negotiation that has ever been held. It has shaped the minds of the negotiating leaders and of the Cypriot people. It should never be forgotten however, that the meaning both sides have given to those terms has varied widely over the years.

The Comprehensive Settlement of the Cyprus Problem, commonly known as the Annan-Plan, gives us the most clear and detailed idea of what that bi-zonal and bi-communal federation might look like. However this plan is not the result of a total

consensus on the island, as it was presented to both populations in April 2004 and rejected by a clear majority among the Greek Cypriot community.

The Annan-plan provided for a federal government with a minimal role; the federal government of the United Cyprus Republic would exercise legislative and executive competence mainly in the matters of external and EU-relations, defense policy and central bank functions (including currency).¹⁵ On their territories the Greek Cypriot Constituent State and the Turkish Cypriot Constituent State would exercise all competences and functions not vested in the federal government. There would also be two entirely separate judiciary systems (complemented by a federal Supreme Court) and two separate police forces (complemented by a federal police force only responsible for border control, and the protection of federal property and foreign diplomats) (art. 31). In addition the United Cyprus Republic would have a single sovereignty and an overarching Cypriot citizenship complemented by the two citizenships of the Constituent States. Not touching upon the debate whether it should be called a federation or a confederation, this very well elaborated and detailed Annan-plan traced out one of the most – if not the most – decentralized states in the world. Finding examples that resemble this bi-zonal bi-communal federation is not easy, nor hopeful.

In the Foundation Agreement in the plan itself (art. 1), it is stated that the status and relationship of the federal government and the two constituent states is based on the statues and relationships found in the Swiss federal government and the cantons. As to the viability of the state and the prospects for a workable federal government, the comparison with Switzerland cannot be drawn much further: Cyprus would have only had two zones – not 26 cantons – and two main ethnic communities with a violent past – and not three main ethnic communities with a peaceful history of 700 years.

¹⁵ In addition to those matters, the federal government was supposed to exercise control over **a.** the federal finances and budget; **b.** the natural resources; **c.** meteorology, aviation, international navigation, and the continental shelf and waters; **d.** communications; **e.** the Cypriot citizenship and immigration; **f.** combating terrorism, drug trafficking, money laundering and organised crime; **g.** pardons and amnesties (other than for crimes only concerning one Constituent State); **h.** intellectual property and weights and measures; **i.** antiquities; *Comprehensive Settlement of the Cyprus Problem – Constitution of the United Cyprus Republic*, art. 14.

Another example that is referred to in the Foundation Agreement (art. 2) is the **Belgian model**, more specifically when sketching the possibility for Cooperation Agreements between the Constituent States. The most striking parallel with the Belgian model, however, is probably the attribution of all the non-enumerated competences to the federated entities, as is the case in article 35 of the Belgian Constitution (since 1993). This is merely a theoretical resemblance though, as the Belgian Constitution states that this article will only apply when an agreement is reached on which competences to attribute to the federal state, which is not yet the case. Though Belgium is technically a tri-communal tri-zonal federation, the presence of two main ethno-linguistic groups make the system susceptible to the same dynamics as a bi-zonal system.¹⁶

Another relevant example might well be **Bosnia and Herzegovina**, whose constitution is very similar to the Cypriot one in the Annan plan. The federal government is given almost the same powers as the United Cyprus Republic federal government, with all the other competences belonging to the federated entities. These federated entities are only two in Bosnia and Herzegovina, namely the Republika Srpska and the Federation of Bosnia and Herzegovina, which makes it a bi-zonal system. This is where the comparison ends however, as it is also a tri-communal and asymmetric system in which the Federation consists of ten cantons.

It is of the utmost importance that every state system be regarded in its own right, with its own intricacies and characteristics. However, Belgium and Bosnia and Herzegovina bear a very specific relevance to the Cypriot case, and they show the shortcomings of a traditional consociational state structure in countries with 2

¹⁶ Belgium consists of three regions (zones): the **Flemish Region** (44.3 percent of the Belgian territory, comprising 57.8 percent of the Belgian population), the **Walloon Region** (55.2 percent of the Belgian territory, comprising 32.0 percent of the Belgian population) and the bi-communal **Brussels Capital Region** (0.5 percent of the Belgian territory, comprising 10.1 percent of the Belgian population). These three regions have own parliaments and governments, exerting full authority over the territory-related competences assigned to them (agriculture, environmental planning, extended economic competences, ...). Belgium also counts three communities: the **Flemish Community**, the **French Community** and the **German-speaking Community**, all three with own governments and parliaments. The Flemish community provides education and other cultural services in Dutch, on the territory of the Flemish Region and the Brussels Capital Region; the French community does the same in French, in the Walloon Region and the Brussels Capital Region; the German-speaking community does the same in nine municipalities within the Walloon region (only 0.7 percent of the Belgian population).

geographically separated ethnic communities, where the inherent dynamics of the system are centrifugal.

The theory behind consociational political systems has been elaborated most prominently by the Dutch-American political scientist Arend Lijphart (1977). He argues that in plural societies, the most desirable form of government is a grand coalition representing all the different segments of society. In addition, an ideal consociational system is characterized by a mutual veto of the different segments, a proportional parliamentary representation and a high degree of autonomy for each segment to run its own affairs. Lijphart argues that in such a system, the elites of the different segments of society will always compromise, because a compromising attitude in the grand coalition government ensures them of a share of the power.

This model proved its value in the religiously divided society in the Netherlands until religion lost its importance in the 1980s, and still does so in Switzerland until today. In bipolar societies with two geographically separated ethnic communities however, this model leads to governmental impasse and eventual dissolution of the state. In these cases, the federal government becomes merely a platform for negotiation between elected leaders of both communities. Even if they are willing to compromise within the government, there will be no electoral reward for that compromise because the geographical separation of the two communities results in mono-ethnic constituencies. The leaders are only accountable to their own community, in their own separate zones. A process of “ethnic outbidding” will often reward nationalist parties that oppose the compromises made by the governing elite of a community (Horowitz 1985). In such a process even the traditional elite parties will eventually feel obliged to partake in the ethnic outbidding process and adopt parts of the nationalist agenda, out of conviction or not, generating even more nationalist feelings within their community. If these traditional parties are still tacitly committed to the federal state, their compromising behavior in government will frustrate the nationalist feelings they helped to generate themselves, making voters move over to nationalist parties even more. The other possible outcome is that these traditional elite parties genuinely lose their faith in the federal state. In that case dissolution and partition become even more probable, exactly because the bi-zonal

division of the ethnic communities has already provided them with a non-violent alternative for their non-rewarded efforts within the federal government: partition.

In conclusion, consociational bi-zonality in ethnically divided societies generates a centrifugal dynamic that is detrimental to the state. Whereas in Lijphart's cases, elites of the different segments of society are rewarded for compromise by a share of governmental power, in bi-zonal ethnically divided societies elites are punished for compromise.

The Belgian example might be the most telling example of these mechanisms at work, though similar dynamics are visible in Bosnia and Herzegovina, between the federated entities and within the Federation. In Belgium, since the final demarcation of the linguistic border between Dutch speakers in the North and French speakers in the South in 1962 and through the gradual allocation of competences to the federal entities within those linguistic zones, the Belgian consociational system Lijphart still specifically adulated in 1981 (Lijphart 1981) has slowly but surely become subject to the centrifugal pitfalls of bi-zonality described above. The complete geographical – and subsequently increasingly cultural – separation of both ethnic communities removed the need for national parties to exist, and after the split of the three major parties (Christian-Democrats, Socialists and Liberals) in the late 1970s the centrifugal process began in earnest. Through the gradual dissolution of the federal level in 1980, 1988, 1993 and 2001, the state has since 2007 ended up in a regime crisis that has yet to be resolved. Traditional parties on both sides do not allow each other to defect from the strongest ethnic stance, a process that has interacted with the voters' increased reward for those positions.

The fact that such an evolution takes place between two communities that have no history of deadly violence makes the hopes for a viable and lasting united Cyprus under a bi-zonal bi-communal regime even slimmer. In Cyprus, more elements are present than in Belgium to strengthen this centrifugal process, of which two stand out. First and most importantly there is a history of violence, but in addition to that the separation of the past 35 years has led to the creation of two entirely different historical narratives. Greek Cypriots would always stress the traumatic experience of the Turkish military intervention of 1974 and the casualties and refugee movements that occurred along with

it. Turkish Cypriots, on the other hand, would always stress the period of 1963 to 1974, when a Greek Cypriot movement to “hellenize” the island and attach it to Greece caused interethnic violence that targeted the Turkish Cypriot minority on the island, bringing about Turkish Cypriot reprisals. The total separation since 1974 has strengthened the solipsism on either side, making both communities very susceptible to “ethnic outbidding” of their respective politicians.

The Alternative: A Bi-Communal Federation with Centripetal Mechanisms

The proposed alternative needs to deal with the two main problems that would cause a consociational system of two geographically separated communities to fail: the single narrative that determines the behavior of the voters, and the lack of reward in the electoral system for constructive behavior of the political parties.

A solely bi-communal federation would be the preferable solution to the first problem. This would be a state in which a Turkish Cypriot community authority and a Greek Cypriot community authority can exercise power over the entire island to provide educational, cultural, etc... services to the citizens of their respective communities. This solution would allow for citizens over the entire island to move to the place where they would prefer to live. This would naturally and slowly create a population distribution of both communities over the island that is more similar to the pre-conflict distribution prior to 1963, when both communities lived spread over the entire island. This would not only foster intercommunal understanding on a personal level, it would also eliminate the international legal problems of quotas that would have to be imposed upon the influx of Greek Cypriot or Turkish Cypriot citizens in one of the two zones.¹⁷ The federal government in this case would be responsible for a broader range of issues than in the Annan-plan. Within this federal government, the principle of political equality between the Turkish Cypriots and Greek Cypriots would not be touched upon, and that could be translated in whichever power-sharing agreement both parties might agree upon.

¹⁷ As stated in article 2 of the Draft Act of Adaptation of the Annan Plan.

In order to tackle the problem of ethnic outbidding within each community, even in a solely bi-communal state, a centripetal impulse via the electoral system is desirable. Authors such as Benjamin Reilly (2001) have opposed Lijphart's conception of consociationalism and broad proportional representation, proposing the concept of centripetalism. According to Reilly, centripetalism can describe a situation in which (i) electoral incentives are provided to attract votes from another ethnic group than the own; and/or (ii) an arena of bargaining is present for political parties to cut deals; and/or (iii) centrist, aggregative and multiethnic political parties are being formed.

Especially in the deeply divided context of Cyprus, such a centripetal initiative is absolutely necessary to prevent the centrifugal evolution from happening. In the Cypriot case, the alternative vote (AV) or single transferable vote (STV) solutions proposed by authors such as Horowitz (1991) and Reilly (2001), currently present in Bosnia and the Fiji-islands, do not seem very useful. In case three or fewer main ethnic groups are present, those systems need multi-ethnic districts to be drawn up (Reilly 2001). As future populations movements are very hard to predict, especially in the Cypriot case, that exercise can easily lead to a total delegitimization of the voting system (Belloni 2004). This argument works against designing a cantonal state system as well.

Perhaps the most interesting proposal that has been made about Cyprus so far was done by Keskiner and Loizides (2004), who designed the system for a bi-zonal framework. It could well be applied in a solely bi-communal system as well. They propose a system in which the voters for the federal parliament would vote twice; once for a party of their own community, and then once for a party of the other community. The votes a party gets from voters of the other community count for an additional tenth of their own total of votes, adapted for the population difference between the two communities (assuming that the Greek Cypriot community is about four times the size of the Turkish Cypriot community).¹⁸ Popularity within the other community could

¹⁸ Loizides and Keskiner use 5 as the multiplier/divider, in this model we will use 4, based upon the assessment that of all the people residing on the island with a citizenship of the Republic of Cyprus or of the Turkish Republic of Northern Cyprus, 79 percent carries a citizenship of the former, while 21 percent carries a citizenship of the latter; *Is the Turkish Cypriot Population Shrinking?*, M. Hatay, PRIO Cyprus Center Report, 2 (2007), p. 45. Purely for theoretical purposes, we assume that those people will become

therefore mean a small but important difference in their own amount of “total votes”¹⁹, as follows:

For a Greek Cypriot party: “Total votes” = votes from GC community + [(votes from TC community X 4) / 10]

For a Turkish Cypriot party: “Total votes” = votes from TC community + [(votes from GC community / 4) / 10]

A numerical example will make the impact clearer. Suppose that there are 800,000 Greek Cypriots and 200,000 Turkish Cypriots who go to the polls. The Greek Cypriot party Alfa receives 200,000 Greek Cypriot votes (25 percent). After having voted for their own parties, the Turkish Cypriots are asked to vote for a party from the other community and 70,000 of them (35 percent) chooses Alfa as their choice among the Greek Cypriot parties. The “total votes” Alfa will receive, on the basis of which the attribution of MPs in the federal parliament will happen, is thus calculated as following: $200,000 + [(70,000 \times 4) / 10] = 228,000$ votes. Where in a normal proportional representational system the attribution of Greek Cypriot seats for Alfa would happen on the basis of its 200,000 Greek Cypriot votes out of 800,000 (25 percent), in this cross-voting system the seats would be attributed on the basis of its 228,000 Greek Cypriot “total votes” out of the 880,000 Greek Cypriot “total votes” (25.9 percent). If a Greek Cypriot party Bèta receives the same 25 percent of the votes from the Greek Cypriot side, but only 15 percent from the Turkish Cypriot side, it would end up with 24.1 percent of the “total votes” on the Greek Cypriot side.²⁰

The consequence of this system is not only that politicians can be held accountable by people of the other community, but ideally it could foster the creation of cross-communal pre-election coalitions. To avoid losing the election to Alfa, party Bèta might want to create a coalition BètaGT with a Turkish Cypriot party of similar ideology.

the members with voting right of a Turkish Cypriot and Greek Cypriot community in a future bi-communal united Cyprus.

¹⁹ These “total votes” would be used for attributing the seats allocated to each of the communities in the two Houses of Parliament, as defined by the Constitution.

²⁰ $200,000 + [(30,000 \times 4) / 10] = 212,000$ “total votes” (out of 880,000 “total votes” = 24.1 percent).

Such cross-communal coalitions provide exactly the centripetal impulses that can transform a deeply divided society into a working democracy.

There are at least two main objections that could be brought up against this system. The first objection is that the system deliberately handicaps the non-moderates, separatists or partitionists on either side. Conceptually, this is a very legitimate concern, because after all the system has been designed with the aim to reward moderation. On a technical level though, partitionist political parties can put the system to their own use, if they want to, by making a pre-election coalition with a partitionist party from the other side. Partitionist voters could on the other hand be smart and give their ‘other community’-vote to an extremist party from the other side.

Another important problem is of course the ethnic census that the elections would practically become. Some Turkish Cypriots or Greek Cypriots could object that they do not want to commit themselves to only one of the two communities, but would rather vote as a Cypriot, and this could constitute a problem. Another consequence is of course that in this system the three small minorities, namely the Maronites, the Latin and the Armenian population, would be forced to commit to one of the two communities. The small German speaking population in Belgium might be compared to them. They ended up becoming a part of the Walloon Region, but have an own Germanophone community with educational and cultural powers.

What Stands in the Way: Distrust

The proposal of a bi-communal federation with a centripetal electoral system on the federal level is no attempt to dismiss some of the very legitimate concerns of both communities that lead them to desire a bi-zonal federation.

From the Turkish Cypriot side, the main reasoning behind the demand for a territorially defined and strong own Constituent State with a guaranteed Turkish Cypriot majority among the population is the fear of domination by the Greek Cypriot majority. However, the proposed solely bi-communal system could provide for exactly the same safeguards against majority domination on the federal level as those the Turkish Cypriot agreed to in the 2004 referendum on the Annan Plan. The deeper root of this fear is the

physical security concern that stems from the strong collective memory the Turkish Cypriots have of the traumatic 1963-1974 period. This is a very understandable fear that will need time to ebb away. It also explains why the Turkish Cypriots are more reluctant to consent to quick and total demilitarization of the island, as they see the Turkish army partly as a protecting force.

For the Greek Cypriots, on the other hand, that Turkish military presence is exactly the reason to demand a strict bi-zonal solution. It is the expression of their desire to screen off the entity where the Turkish military resides until it has completely left the island – the Turkish military that caused such a strong collective memory among the Greek Cypriots by carrying out a full-scale military intervention in 1974 and remaining present until today.

Conclusion

It should be clear that the bedrock of democracy is the general acceptance of the electoral system and the results it produces. It is for the Cypriots to decide how they want to design the state they want to live in, and it is not up to the international community to impose a system that seems foreign to all of the Cypriots. If Bosnia and Herzegovina is an example of one thing, it is not only that bi-zonality can paralyze the federal level, but also that overzealous “neutral” international authorities can totally delegitimize a state by making too many adaptations, *ad libitum* (Belloni 2008).

This might lead one to believe that the governance alternative we proposed in this article will never be implemented, as it is so different from the framework in which both leaders are negotiating at this moment. Nevertheless, a working state is in the interest of everyone on the island: too often it is forgotten that non-cooperation on the federal level will always curtail the ambitions of both communities. Therefore, once the distrust that stands in the way now has subsided, the need for a change in the bi-zonal bi-communal system will hopefully become clear to both communities in the newly created state. The most important question is whether the bi-zonal bi-communal federation will be able to reform itself before the centrifugal mechanisms described above have torn it apart.

6. Youth and Their Education in Cyprus:

Is the Future Perpetuating the Past?

An Analysis of a Cause of the Endemic Conflict in Cyprus

Lydia Sizer

Several elements of life in Cyprus perpetuate the endemic conflict including the education systems of the North and South and the attitudes of youth on either side toward reconciliation. Those youngsters educated within intolerant education systems are now old enough to vote and implement a settlement in Cyprus. One of the key reasons why there has not been a successful solution to the conflict between the two communities is that Cypriot youth have not been adequately immersed in a culture of mutual understanding, integration, and peace. The mistrust that plagues efforts for peace could be stemmed if leaders within Cyprus and in the international community nurture a new generation of cooperative Cypriot citizens. The powerful momentum towards reconciliation initiated by the emergence of Mehmet Talat and Dimitris Christofias as pro-solution leaders will stagnate if the citizens of future Cyprus, today's youth, do not have the same conciliatory spirit. Just as sustainable development can only occur when efforts focus on the future natural environment, sustainable peace can only occur when efforts focus on the future political environment.

Youth in Cyprus

“Youngsters will have the great responsibility, particularly in this new phase which will follow the agreement, because the young people will live the future. They have to work for that, they have to build peace on this island.” — Mehmet Talat, September 15, 2008, at a bi-communal youth event on World Peace Day.

In Cyprus, youth have been more reluctant to find a solution than their parents' generation, especially in the South. The youth of Cyprus are less likely to vote in favor of a solution in Cyprus because they have not had the opportunities to forge relationships

with members of the other community. Political parties in Cyprus often have youth contingents that could be affected by the negative statements given by members of more extreme political parties. In addition, the hatreds felt by their parents feed the mistrust Cypriot youth have for each other. Children hear stories of atrocities committed by the other side that they take with them into adulthood. Because they have no memory of an undivided Cyprus, the Cypriot youth feel little attachment to the island of Cyprus as a whole. Even after the opening across the Buffer Zone in 2003, few Greek Cypriot youth have been to the North. Those who have visited sometimes face criticism from other Greek Cypriots and rarely return to the North.

Due to the environment in which the people of Cyprus raised their children, the youth of Cyprus often have extreme feelings about what their country should look like in the future that may spoil attempts for a lasting peace on the island. The youth vote was one of the most important drivers behind the rejection of the Annan Plan by the Greek Cypriots in 2004. According to Alvaro de Soto, who was the UN Secretary General's Special Adviser in charge of shaping the Annan Plan, individuals under the age of forty-five voted against the settlement more than their elders. When Greek Cypriot youth travel to Europe, they are often looked upon as the group that stood in the way of settlement. Still, many in the South feel they can function well as a nation without the North. Youth from both communities have grown up learning about the atrocities of the other side, but it appears as though the Greek Cypriot youths tend to be more extreme in their rejection of a compromised solution to the Cyprus problem.

Civil society entities such as the Cyprus Youth Council, which was founded in 1996, aim to promote peace building through dialogue and cooperation between Turkish and Greek Cypriot youth. This organization and those like it on the island appear to be just what the country needs to develop a culture of peace and integration among the future generations of Cypriots; but representatives of civil society on the island are less optimistic. They lament that these non-governmental organizations (NGOs) tend to attract what they call "the usual suspects" every time an organization creates an event or program to promote peace. The same individuals participate in every event, illustrating the need for civil society organizations and schools to reach out to those youths who may be less eager to meet with the other side. Talking about the issues and building

relationships and trust between the same people over and over again prevents these groups from developing bonds between the two communities on a larger scale. These “usual suspects” often already have a conciliatory attitude and thus are not the main target of NGOs that emphasize reconciliation.

Yet at the same time those “usual suspects” could be the leaders of a new era in Cyprus and that potential should not be taken for granted. During the 1990s, bi-communal youth camps served to break stereotypes and build cross-community understanding and friendships. Those who were most affected by the experiences at the camps stayed in touch via the internet even after the authorities in the North banned Turkish Cypriots from entering the Buffer Zone in 1997. These “usual suspects” helped recruit more campers as well, showing that these youth have the power to lead others towards a new culture of integration. (Ungerleider 2001, pp. 583-89) Therefore, there are precedents of young people developing relationships conducive to reconciliation between the two communities.

Education

The populations of Cyprus have had trouble agreeing on many issues — including when the conflict on the island actually began. The Greek Cypriots of the South use 1974 as the starting point of their description of the Cyprus problem, when the Turkish army arrived on the island following an attempted coup supported by Greece. The Turkish Cypriots of the North argue that the problem emerged in the 1960s, during which time there were disappearances of Turkish Cypriots and threats to their political rights. This disagreement over the history of the conflict parallels how the education systems on either side of the Buffer Zone distort the history of the island to victimize themselves and demonize their neighbors. As long as these distortions continue, Cypriot youth will tend to adopt their parents’ prejudices towards the other major ethnic group, and a solution to the problem on the island will be long out of reach. Without a reformation of the education systems in the North and South of the country, the conflict could endure or reignite in the future. Education may not be the initial cause of the conflict, but it is a part of the perpetuation of the problem and should be part of the solution. The educational system in Cyprus is the ideal place to develop an atmosphere of peace and tolerance among the people who

will shape the future of Cyprus. In schools it is possible to teach tolerance to children who may not receive that education at home.

School Recognition: The diplomas handed out by the Northern schools are not recognized in the South or in most countries other than Turkey. While in the view of the South and many interested parties in the international community, the lack of diploma recognition in the North of Cyprus has legitimate roots in international law concerning practices within unlawful states, the impact of this policy could increase tensions already raw among Cypriot youth because of the inequality the rejection of the Northern diplomas implies. The fact that schools in the North are delegitimized exemplifies the wounding inequality that exacerbates the long-held animosities on the island. The prospects of obtaining gainful employment are therefore much gloomier for the Turkish Cypriots than for the Greek Cypriots. The issue of recognition of the North also inhibits possible iterated interaction between Cypriot youths because it complicates efforts to create university and secondary school exchanges.

Language: Communication between the communities in Cyprus is also hindered because the majority of Cypriots do not speak the language of the other community. The Turkish language is not widely taught in Greek Cypriot schools and few Turkish Cypriots speak Greek. Therefore, only English-speakers are able to communicate with each other across community lines. The understanding necessary to ensure the success of a solution cannot be fostered without wider interaction.

Textbooks: In the North and the South of Cyprus, history textbooks have focused on the suffering of each community and legitimized their political goals. Within the same texts, the suffering and historical legitimacy of the other community is questioned. Since 2004, the Turkish Cypriot leftist party associated with Mehmet Talat has attempted to change history teaching in the North to focus on developing a culture of peace while acknowledging the historical facts of the divided island. Whereas in the past textbooks have focused on single nationalist historical narratives, the current Turkish Cypriot approach emphasizes a unified Cypriot identity developed in the 19th and 20th centuries. Both sides still have much work to do improving the textbooks to emphasize the history of Cyprus instead of the history of the two communities separately. The Greek side of

Cyprus has done less to change their history textbooks than the Turkish side, according to PRIO, a NGO observing textbook reform in Cyprus. (Papadakis 2008)

Textbooks in the South tended to note that the history of Cyprus is an extension of the history of Greece and on the North side that the history of Cyprus is an extension of the history of Turkey. While Turkish Cypriots have attempted to change their textbooks to become less inflammatory, the Greek Cypriots were outraged in 2007 when a history textbook was published in the South that appeared to downplay the suffering of Greek Cypriots at the hands of the Turkish Cypriots. (Papadakis 2008) The attitude of the Greek Cypriots towards revision of textbooks needs to improve for the youth of the island to receive a fair and balanced education on the history of their peoples. Greek Cypriot textbooks currently emphasize the suffering the Turks inflicted on the Greek Cypriots and use stereotypes to describe their northern neighbors. This type of ethno-centric education is pervasive not just in history teaching, but in the entire educational system of the South of Cyprus, possibly a result of the legacy of the control over Greek Cypriot education by the Greek Orthodox Church. Teachers in the North tend to have a more pan-Cypriot approach to their teaching, which could influence the behavior of their students. In the South, however, there have been instances in the past of teachers instructing their students to sing about killing Turks.

Recommendations

The long-term goal of the leaders of the education system and those interested in youth relations in Cyprus should be to create an environment in which Turkish and Greek Cypriots are able to coexist together peacefully and learn to humanize each other. This could require **bi-communal schools and eventually an integrated education ministry**. In the short term, in the absence of a solution to the Cyprus problem, there is no blueprint that outlines what ministries in a new unified government will look like. Therefore, the goal in the short-term should be to **increase tolerance among the young people of the communities, the variety and amounts of interactions within the existing bi-communal education systems, and language education**. Revisions of the history books need to continue, especially in the South. **Working with Greek Cypriot youth in particular in efforts to bridge gaps between the youth of the two communities** should

be paramount to creating an environment conducive to a lasting solution. **Involving Turkish Cypriot youth in peace building** is also important because mistrust is high on both sides in Cyprus and only grows the longer a solution is not found. Actors within Cyprus and in the international community have an opportunity to mitigate the environment for a lasting solution on the island by focusing on developing new attitudes among youth and reforming education. **Moderate political parties on both sides of the divide should reach out to the young people of their communities.** These parties have an opportunity to serve as examples for young people of how to work with the other side and what attitudes they should adopt in the current political climate. These leaders should **encourage young people to become active members of political parties working for reconciliation** in order to learn how to become efficient and knowledgeable politicians in the future. European organizations and moderate parties should convince the youth that the argument that the status quo is tolerable on the island is not in their best interest.

It also is necessary to **engage young people who are not as actively involved in bi-communal reconciliation efforts.** This will create a culture of tolerance between the communities, not just a select few activists. The best place to do this is in schools, where the young populations of Cyprus are concentrated. **Setting up field trips to the other side of the Buffer Zone for young people on both sides** would give them a better idea of what it means to be from Cyprus — not just from the North of Cyprus or the South of Cyprus. **The schools systems in the North and the South should ask NGOs to go to schools and speak to the students periodically about the negotiation process between leaders of the two communities.** Turkish and Greek Cypriots agree on some things and can get along well when the conflict is not the topic of conversation, but it is necessary to talk about the conflict in a structured way in order to help people, in particular the youth, to overcome obstacles to a solution.

Creating a way for Turkish Cypriot students to meet with Greek Cypriot students without requiring the South to recognize the North is very important to overcoming historical grievances and humanizing the other side. Increasing interactions between young Turkish and Greek Cypriots could decrease the stigma placed on trips to the North by some Greek Cypriots and increase youths' ability to experience, investigate, and appreciate the whole of Cyprus, some for the first time. Eventually **leaders of the**

education systems should come together to devise ways of bringing together students from the different schools in the North and South. The leaders should search for a way to meet and have the children meet without encountering recognition issues. Trips to Europe should be encouraged to help expose young Cypriots to support for a settlement from their European neighbors.

The educational leaders should meet as representatives of their communities to avoid the problems of recognition and look to the interaction between the two leaders of Nicosia as an example of how this process could unfold. For now, **Turkish Cypriot schools should interact with the Greek Cypriot schools as individuals.** While this type of interaction may imply that Turkish Cypriot representatives are not acting as equals with the Greek Cypriot representatives, these meetings could provide the two sides with an opportunity to build relationships now that could lead to a solution providing Turkish Cypriot schools with recognition in the future. The Turkish Cypriot population has demonstrated that it is willing to accept compromises as a means of ending their prolonged international isolation and exclusion from the wider European economy. **Teachers and educational leaders should meet and attempt to develop mutual understanding because their actions and attitudes influence those of their pupils.**

While it is important to engage youth in reconciliation efforts who do not usually participate in bi-communal events emphasizing mutual understanding, it is also imperative to **recognize the potential of the young men and women who participate regularly in the reconciliation** — the “usual suspects”. **NGOs should help these young people have stronger voices in their communities** through providing spaces for them to meet and encouraging independent efforts by these young people for reconciliation. The organizers of summer camps between Cypriot youth should teach their campers how to approach the question of reconciliation in their own communities on the island and provide them with skills to persuade others to think more critically about a realistic solution. The European Union should encourage these interactions between the “usual suspects” and help publicize them. NGOs should contact former campers and organize reunions to keep friendships alive, bringing people together who might work together in the future for peace.

Language barriers hinder the process of reconciliation between members of the Greek and Turkish Cypriot communities. It may be difficult to implement programs in which Greek Cypriots are required to learn Turkish and Turkish Cypriots are required to learn Greek. **English**, though the language of the colonizer, Great Britain, **should become a required language in schools throughout** Cyprus in addition to the language of the majority of the student population because it could help the reconciliation process. Even though there is a history of bitterness towards the British colonizers, if one reframes English as the language of commerce, foreign policy, and world communication, the possibility that it will be accepted as a required language in schools on either side of the Buffer Zone increases.

Within the education system, there is also a **need for textbooks used by both sides that neither excuse the violence of the past nor emphasize the suffering of one group over another. These textbooks should focus on the history of Cyprus as its own entity and not as merely an offshoot of the histories of Greece or Turkey.** This endeavor does not require devising a new way to write history textbooks. The textbooks being developed in the North can be used by the textbooks writers and editors as examples of what messages the textbooks in Cyprus should send. The leaders of the Greek Cypriot and Turkish Cypriot education systems should meet unofficially to discuss the proper format that the textbooks of Cyprus should adopt. Certain member states of the European Union have their own histories of reforming textbooks to cope with violence in their pasts. Leaders in France and Germany recently created a history textbook together about the post-World War II era and new textbooks have been created in Bosnia and Herzegovina in the aftermath of the deadly conflict of the 1990s. Representatives from these states should set up a committee to encourage textbook reform in the South and support further efforts to create a population ready for reconciliation in the North. In particular, the European Union should appoint a respected leader like former French President Jacques Chirac or former German Federal Chancellor Gerhard Schröder, who have both been advocates of textbook reform in France and Germany, to facilitate negotiations over textbook reform in Cyprus. The textbooks should emphasize moments in history when the Greek and Turkish Cypriots worked together while acknowledging the responsibility of all history textbooks to portray an accurate history of the island.

There should be a balance between creating an accurate and full depiction of Cyprus' past and preventing the promotion of animosities between the two communities due to incendiary language and dwelling on the issues that divide the island. The textbooks should not identify Turks or Greeks as the enemy. The Greek Orthodox Church should also continue to be separated from the education ministry, which has been the case only since the most recent elections.

The conflict in Cyprus will not be resolved overnight. The leaders of the two sides may be replaced in the future by individuals who do not value a solution as much as their predecessors. As the youth of Cyprus have been more reluctant to agree on a solution than other members of their communities, **it is important to educate them to become more conciliatory in the future when they lead the communities.** The current climate in Cyprus is one in which parents with sore wounds from the past tell their children of the evils of the other side with little balancing information from schools. This is not conducive to a sustainable peace. As a Turkish Cypriot intellectual recently opined:

I am absolutely convinced that unless we somehow manage to integrate both sides' youth [into the] currently running negotiations, we will not be able to survive at least the next generation. The seeds should be planted from now, [because] I have very little hope as far as today's young generation is concerned.²¹

²¹ Mustafa Abitoglu, e-mail to Lydia Sizer, 10 February 2009.

7. Obstacles to an Overarching “Cypriot” Identity

Krystle Veda Kaul

What is a “Cypriot?” For decades the Greek and Turkish Cypriots have been battling a common, overarching identity. History reveals that these two groups were more similar and united prior to the ethnic cleansing of 1963, but following this period, the Greek Cypriots and the Turkish Cypriots have undergone a process of great separation within their communities.

This chapter seeks to assess the assimilation that has permeated the Cyprus border, highlighting the Hellenic and Turkish roots of the Cypriot cultures, the role of religion and the ethno-linguistic differences between the Greek and Turkish Cypriots. Cypriots face serious identity crises and struggle to identify and differentiate themselves from the “other.” In examining a comparative case study where this phenomenon has occurred — Jammu and Kashmir — parallels will be made to the Cyprus situation of how people living in a conflict zone struggle to identify themselves.

Understanding the challenges to a greater Cypriot identity, the European Union plays a significant role as a potential unifier of the Greek and Turkish Cypriots. Furthermore, a few key recommendations for action will be provided of how to bring the Greek and Turkish Cypriots together in an effort to create a “Cypriot” identity.

The reality remains that Cyprus has become an island of two identities. But, Cypriots can overcome the challenges to an overarching Cypriot identity to finally resolve the endemic conflict by bringing these two divided groups under the Cypriot title.

A Return to History — Frankish Cyprus to Today

In order to properly understand the cultural underpinnings of Cyprus, it is important to go back in time and view the Frankish era of Cyprus to see how this island has adapted, absorbed and created a unique “Cypriot” culture, whether or not it is recognized today.

1191 marks the year when Richard the Lionheart seized control of the island and, subsequently sold it to Guy de Lusignan. This was a turning point for Cyprus — the Lusignan kingdom of Frankish Cyprus lasted until the island was annexed by the

Venetians in 1489. During these three centuries, the local Greek Orthodox population comprised the majority of the island, while waves of refugees and others from the Crusader mainland (until 1291) mixed with newcomers from both the East and the West (Schryver 2009).

The “War of Cyprus” (1570-1573) depicted a major turning point in Cypriot history when the Ottomans defeated the Venetians and Cyprus became an Ottoman province. Three centuries later in 1878, the British assumed control of Cyprus from the Ottomans and Cyprus was an official British colony from 1925 until its “independence” in 1960.

During this period, the British politicized the communal differences between the Greeks and Turks of Cyprus to serve their own strategic interests in the Middle East. This politicization of ethnic identity paralleled the rise of antagonistic nationalisms. Each ethnic community thus came to nurture a different vision for its homeland resting on its ‘primordial attachments’ to the respective ‘motherlands,’ Greece and Turkey. (Hadjipavlou-Trigeorgis and Trigeorgis, p. 343)

This “motherland attachment” syndrome has been a thorn in the Cyprus Conflict since its inception and will continue to remain so until such time when Cypriots can cut the invisible umbilical cord to both Greece and Turkey respectively.

The transition of Cyprus over this period is not only symbolic but crucial in order to grasp the “societal end product” — which is modern-day Cyprus. “The society that resulted — if we can even speak of one society — was neither static nor mono-cultural and the identities within it were just as fluid.” (Schryver, p. 228) The society’s ethno-linguistic-culture slowly developed over time and it was as early as “the second half of the fourteenth century that we can begin to speak of one overarching ‘Cypriot society’.” (Schryver, p. 228)

While under Britain’s thumb, Cyprus, was a “strategic pawn in the colonial chess game.” The British are mainly to blame for the dual Cypriot identity today because, under their strategy of divide and rule, they created the titles, “Greek Cypriot” and

“Turkish Cypriot” placing it in the Constitution, aggravating tensions in the region which later led to the violence and ethnic cleansing of 1963.

The Greek Cypriots advocated *enosis* — to have Cyprus become a part of Greece. As a reaction, the Turks and the Turkish Cypriots were prepared to initiate *taksim* — partitioning Cyprus between Turkey and Greece. Both of these groups had once lived as brothers on the island, but because of imperial Britain they were pitted against each other as enemies.

With the revival of this militant campaign for *enosis* in 1963, the Turkish Cypriots looked to Turkey for support. Turkey opposed the idea of *enosis* given that they viewed the island as strategically located close to the “soft underbelly” of Asia Minor. The Turkish Cypriots immediately withdrew from the Cyprus government, removing themselves from the Cypriot socio-political economy. It was at this point that two identities solidified in Cyprus — the Greek Cypriot and the Turkish Cypriot.

To be honest, for me it doesn't matter at all that we share the same meze [Mediterranean/Middle Eastern appetizer] with the Greeks. In the end, neither did they say. ‘We eat the same meals, we drink the same drinks like the Turks, so let's not kill them’ in 1963. (Ramm, p. 4)

In order to define a “Cypriot,” it is necessary to first ask — What is a Greek and Turkish Cypriot? Today, the island of Cyprus consists of two major ethnic groups — the Greek Cypriots in the South (80 percent) and the Turkish Cypriots of the North (18 percent) with the remaining 2 percent comprised of Armenians, Maronites and Latins.

The Cypriots struggle over their identity today because they lay victim to three major powers — Greece, Turkey and primarily colonial Britain. The 1950s was a period characterized by stereotyping, misperceptions and discrimination. And, the 1960 settlement (which was basically imposed on Cyprus by the three, aforementioned major external powers) completely disregarded local psycho-social concerns. “Instead, the constitutional provisions granted in 1960 intensified and institutionalized ethnic/identity differences and gave rise to further mistrust...antagonism and an unwillingness to express loyalty to the newly established state.” (Hadjipavlou-Trigeorgis and Trigeorgis, p. 343) The constitutional provisions for separate communal chambers on education and

culture, "...fostered diverging psycho-cultural ties with Greece and Turkey" further dividing these two communities (Hadjipavlou-Trigeorgis and Trigeorgis, p. 343). The failure of the institutional arrangements to create one unified Cypriot identity has led to competition over power-sharing, distrust, discrimination and adverse inter-communal relations.

A Greek Cypriot is one who focuses on ancient ties to Greek mainland and holds a semi-detached "Greek" identity modified to fit a Cypriot framework, whereas a Turkish Cypriot is much more influenced by heavy Turkish military presence. Furthermore, Turkish Cypriots, being in the minority on the island, are much more insecure about their status and threatened identity. Hence, with the creation of two distinct Cypriot identities comes the Identity Disorder, which in this case will be considered the lack of recognition of a common national identity posing the greatest threat to a Commonly-Shared Identity (CSI), which in this case is the greater Cypriot identity (Dionysiou 2008).

Cultural Influence on the Cypriots — Hellenic and Turkish Ties

"Cypriot identity is very much Hellenic...Cypriotness is everywhere — in the Greek flag, culture etc...but if they are Greek and I am Turkish this is what I respect." - Member of Parliament, National Unity Party (TRNC)

Cyprus is a melting pot of cultures and has historically been a bridge where the Mediterranean meets the Near East. The Mycenaean-Achaean Greeks brought Greek culture and civilization to the island around 1200 B.C., "...and despite many conquests, Cyprus has retained its Hellenic character and culture." (Coufoukadis, p. 1)

In ceramics, sculpture, and jewelry, the Cypriots followed the styles of the Hellenistic koine, inspired by the Alexandrian school. During this period, the capital was moved from Salamis to Paphos, and later moved to Lefkosia or Nicosia there the Greek architecture developed, including forums, theatres and market places although little remains today. Hellenistic influence is evident throughout Cyprus with the national flag, ancient artwork and local customs.

However, when the Ottomans entered in 1571, Cyprus' socio-political culture was greatly altered, introducing the Islamic faith, Turkish language and a new culture. This

new wave of Turkish influence transformed the historically homogenous Hellenic and Christian Cyprus that once existed. Throughout the Ottoman period, the main bazaar in Lefkosia remained the east-west axis and flourished to become the center of social and commercial life. The bazaar hosted particular trades to cobblers and traders whose names now color the streets. Furthermore, Islamic influence began to shape architecture in the region with mosques replacing churches and more of the Near East entering this Mediterranean island.

In the 19th and 20th centuries, Cypriot peasants shared a mixed culture, but as the push towards *enosis* and *taksim* grew stronger these groups became further divided and those similar cultural traits slowly faded. As a result, two identities have arisen on the island—Greek and Turkish Cypriots. “As both groups identified with their mainland ‘brothers,’ their respective cultures were transformed in ways that drew them apart from each other. This process began with the identification of each group with the history of the ‘motherland’ rather than the history of Cyprus per se.” (Culture of Cyprus 2007) Folklorists on both sides highlighted ties to ancient Greece and Turkey to focus on the purity and authenticity of both groups. “These attempts at proving a group’s purity and authenticity often were accompanied by attempts to prove the impurity and mixed culture (and blood) of the other community in order to deny those people an identity and even existence as political actors who could voice demands.” And, the British only exacerbated the situation by trying to further divide the two communities for its own self-interest. What is left are two nationalisms and two patriotisms in the state of Cyprus.

The Role of Language

Although the Cypriot syllabic script continued to be used and the native “Eteocypriot” tongue survived, largely as a spoken language, Greek became the dominant language. In present-day Cyprus, Standard Modern Greek is the official language of the South and Standard Modern Turkish is the official language of the North. However, there are linguistic differences between mainland Greek and Turkish from the Cypriot dialects that have formed on the island.

Cypriots use their own dialects to communicate on a more informal level—Greek Cypriot Dialect and Turkish Cypriot Dialect. Many Turkish Cypriots speak fluent Greek and some Greek Cypriots speak Turkish — the dialects have also become quite mixed and dissimilar from mainland Greek and Turkish. In fact, nearly 200 Greek words are used by the Turkish Cypriots today. Because of the high degree of literacy on the island much of the population is able to communicate in English, especially the Cypriot youth. English has become the diplomatic language of peace (despite its historic connection with British colonialism) that is not just spoken in the UN Buffer Zone, but also on both sides of the border — it has become a neutral language that both the Greek and Turkish Cypriots can use for communication.

The Role of Religion

Religion has also mutated and manifested in different forms over the centuries. The once Hellenic-Christian ideals of Cyprus became mixed with Sunni Muslim influence. And, for a period of time, a group of cross believers known as the ‘Cotton-Linens’ (Linopambakoi), who practiced both religions at once, were characterized as Muslim-Christians. These people attended mosque prayer and church services. In fact, some Muslims would at times frequent Christian churches to pray and provide offerings to Christian saints.

Even more widespread commonalities existed with regard to folk religion and medicine. Cypriots would visit a local healer or spiritual leader of either creed to cure an illness, solve a personal problem, or remove a curse. However, these commonalities were eventually eradicated when strict Orthodox Christianity and Sunni Islam became stronger.

Creating an Overarching “Cypriot” Identity

“Cypriots might be Greek and Turkish nationals by association but they do share a common land and heritage.” (BBC 2002)

While many hyperfocus on the differences between Greek and Turkish Cypriots, the reality is that they are not as different as they imagine. Hence, the question remains —

how does one unify the two Cypriot communities that exist on this conflicted island? Action needs to be taken to first bring the two communities together and then dissolve notions of historic ties with both Greece and Turkey. A tri-part plan needs to be instituted to create a unified “Cypriot” identity: 1) **The European Union must play a key role, as a third party actor, in the creation of one whole “Cypriot” identity;** 2) **A tri-lingual educational system of Greek, Turkish and English should be instituted to try to enhance communication within Cyprus;** 3) **And, the Turkish military should be removed from the North and replaced, if necessary, by an EU force, to remove Turkish presence and to create a more secure and stable environment** (and, in turn, the Greek officers should pull out of the RoC National Guard).

How Can the European Union Help Promote a “Cypriot” Identity?

The European Union is the key connector between the Greek and Turkish Cypriots. It is the prime force that can assist the creation of a cohesive “Cypriot” identity mainly acting as a paradigm of an organization that promotes the unifying of several nations on one continental bloc. Hence, Cypriots, who reside on a tiny island, should be able to come together under one identity with the logic — If the EU can do it then why can’t we? The Greek and Turkish Cypriots have had an amicable relationship: they share similar foods, customs, ceremonies and have mixed languages. Hence, they should be able to drop the “Greek” and the “Turkish” from their Cypriot title while still retaining their Greek and Turkish heritage. The divided identity of “Greek Cypriot” and “Turkish Cypriot” is only further perpetuating a conflict that has been able to (for the most part) put arms to a rest. Cyprus is a clear case of ‘negative peace’ where violence has ended and now the two isolated societies need to come together under an umbrella identity and claim their “Cypriotness” to the world.

The EU can push Cyprus to obtain a Cypriot identity with the hope of later adopting a greater EU identity. While the North is considered by some a part of Turkey (although not internationally recognized), if the EU grants Turkey EU accession then advocating for a Cypriot identity under the EU wing will be a much more feasible task. **The EU can also implement English in all schools along with mandatory Standard**

Modern Greek and Standard Modern Turkish for all Cypriots, so that English can be used as the linking language.

Cyprus also started participating in the European Heritage Days in 1995. The festivities focus on the traditional activities and social life through exhibitions, lectures and artwork that permeates throughout the island. The objective is to promote the mutual recognition among all cultures and also provide a “European Cultural Passport” for all young peoples. **The Cypriots should model after the EU mentality in bringing both the Greek and Turkish cultures together to create a harmonious ethno-cultural identity in the state of Cyprus.**

The EU’s role is essential in an effort to resolve the identity crisis in Cyprus. As a Union of European states, the EU has the ability to appease everyone allowing the Greeks to be Greek, the Cypriots to be Cypriots (whether ethnically Greek or Turkish) and perhaps with Turkish accession into the EU the Turks can be Turks — and hence no identity is lost in the process of becoming an EU citizen.

The divided identity in Cyprus must come to an end because after all individuals belong to communities that make up nations. Cyprus just needs to accept that it is a nation comprised of mixed identities as are most states, hence, the internal tensions need to be put to rest for stability and peace to occur. And, in a European Unionesque fashion both of the Greek and Turkish Cypriots should put their differences aside and embrace their commonalities as most of Europe has already done.

Remove Turkish Military Presence in Northern Cyprus

One of the greatest barriers to a unified Cyprus is the Turkish military which not only bars a peace settlement, but it isolates the Turkish Cypriots hindering the creation of a greater “Cypriot” identity. The Turkish military was supposed to protect the Turkish Cypriots in the North, but instead it has driven the Greek and Turkish Cypriots farther apart and created more distrust and hostility with its presence.

This is where the EU can intervene — **if Turkey is granted entrance into the European Union it will have to remove its military from Northern Cyprus.** The economic incentive for Turkey to withdraw from Cyprus is far greater than any gain that

it receives from staying in Cyprus. And, with regard to security, there is no real looming threat given the presence of the UN in the region and the lack of fighting by both Greek and Turkish Cypriot soldiers. In fact, it is more of an economic strain on the Turkish government to remain within Cyprus. Moreover, there is no need for Turkish soldiers to be present in Cyprus because there is no fighting. With the Turkish military gone, the Greek Cypriots will feel more comfortable traveling up to the North and the Turkish Cypriots can more freely engage in Southern Cyprus' activities.

Comparative Case Study — International Identity Crisis in Jammu and Kashmir

When analyzing the Cyprus Conflict, especially regarding the issue of a disjointed identity, it is important to compare the identity crisis in this conflict area with another region facing a similar crisis, which in this case is Jammu and Kashmir.

Jammu and Kashmir, commonly referred to as just Kashmir, is a classic example of a conflict region (between India and Pakistan) where the people predominately view themselves, first and foremost, as Kashmiri before Indian or Pakistani. Kashmiri people advocate their 'Kashmiriyat' identity, an ancient ethno-national social consciousness of cultural values of the Kashmiri people. The idea of being Kashmiriyat supercedes religion and nationalistic attachment to India or Pakistan because it is a prideful notion of an ancient identity that has slowly been stripped away by India and Pakistan. Applying the Jammu and Kashmir case to Cyprus, it seems that Cypriots need to detach their notion of identity as dependent on Greece and Turkey and begin to mold a new identity—one that blends Greek and Turkish customs, language and history.

Kashmir exemplifies a conflict area where the peoples hold onto their historic roots and ancient culture proudly calling themselves Kashmiriyat. Both of these cases are prime examples for the Cypriots that even peoples living in conflict zones can overcome minor differences and take pride in having one overarching identity.

Moving Towards a Unified “Cypriot” Identity

The Cypriots, both Greek and Turkish, should think 'futural' — **eventually Cyprus will have to completely break away from Greece and Turkey and attain an independent**

identity, a “Cypriot identity” that starts with a Cypriot feeling and a sense of connectedness between the two cultures that populate the island.

Some efforts to instill this identity are already in place, such as the ‘Nicosia Master Plan,’ which aims to bring members of both the Greek and Turkish Cypriot communities together jointly working on bi-communal projects to support the rehabilitation of the Walled City of Nicosia and the conservation of its architectural and cultural heritage.

Southern Cyprus should stop clinging onto mainland Greece in the search for its roots and just accept its mottled history of conquerors who have introduced and fused various cultures into Cyprus. Hellenism is only one chapter of Cyprus’ multi-colored history. Similarly, Northern Cyprus needs to break away from Turkey, accept its position in Cyprus and embrace its Greek Cypriot brothers. In fact, the reality today is that most Turkish and Greek Cypriots harmonize quite well together with minimal tension on a day-to-day basis. The two communities, especially the youth, do not hold great animosity towards the other. And, hence, the foundation is laid for a joint identity to surface in the plausible future. Perhaps the true answer to the identity issue in Cyprus is not creating a new identity, but rather having the Cypriots realize that an overarching Cypriot identity does indeed already exist and there is no need for this conflict to persist.

8. Mutual Gains and Misperception: Bringing Cyprus into Focus through the Lens of Nicosia

Julia Romano

In the case of the “Cyprus Problem,” an adage of Nelson Mandela, South Africa’s post-apartheid president, holds true: “If you want to make peace with your enemy, you have to work with your enemy. Then he becomes your partner.” (Mendela 1995) But what if your enemy is less motivated than you to make peace? How to attract him to partnership, to a more mutually gainful solution, if the status quo is all too comfortable? The goal of this analysis is to outline methods by which the South and North can develop long-term resolution.²² To that end, the year 2009 is considered by many to be crucial. The leaders of North and South Cyprus are currently in negotiation, with the aid of United Nations administered Working Groups,²³ over substantial issues like power-sharing and property rights. While other essays in this series tackle such issues, mine is a more grassroots focus, seeking to understand how on-the-ground cooperation can inform cooperation at the national level. Last year’s reengagement in negotiations reflects dramatic positional change on the part of North and South. In the case of Cyprus, changing position involves a change in the perception of payoff (as well as the perception of loss), even more than changing the payoffs themselves. Clarifying perception of payoffs is facilitated by improving means of communication, and by shedding light on certain, shared, day-to-day realities that make the cost of non-cooperation more evident. Perceived insecurity has historically constrained positional change. Only through cooperation can each side’s

²² Despite admittedly hollow attempts to achieve peace in the past, this analysis assumes that both parties are actually currently interested in resolution, and that between them exists a zone of possible agreement. Some argue that the end goals of each party are inherently, or at least immediately, irreconcilable, but rather than debate that point, the goal here is to understand better the ripe situations which produce resolution, taking as given that resolution is indeed the goal.

²³ Ozdil Nami, representative of Turkish Cypriot leader Mehmet Ali Talat, must have read Nelson Mandela before beginning this latest round of negotiations. On the first day of talks, Nami said publicly, “Together we have to achieve what could not be achieved in 44 years and reach a comprehensive settlement to the Cyprus issue. To achieve this ambitious goal, we will have to change our ways. We will have to start thinking as a team and not as rivals.”

qualitative perception of the security dilemma evolve, while providing for quantitative gains which then, in turn, support further trust-building. Civil society can help focus this process.

Cyprus' capital, Nicosia, has lessons for an island-wide resolution. Cooperating since 1974 because of the realities of shared infrastructure, Nicosian leadership has constructed a framework for cooperation known as the Nicosia Master Plan, which reflects, as well as enables, each side's dependence on the other. The Plan acts both as a blueprint, and as a cast within which broken bones are set so they may mend. The divided city is an impressive example of collaboration despite, or perhaps because of, great difficulty. One can harvest the ingredients that have fed relationship-building in Nicosia, in order to understand how they might be cultivated to nourish cooperation on the national level. In what specific issue areas has cooperation in Nicosia flourished, and what similar areas can be tended island-wide? Because Greek and Turkish Cypriots within the small central island enclave have been working together continuously since partition, their means of communication, their perceptions of each other and of their shared problems are more clearly in focus. These factors have played a major role in why cooperation has been for the most part effective in Nicosia; their absence in the rest of the island is one reason why, until now, the parties have not been able to reach a negotiated agreement. Where the Nicosian solution and the Cyprus Problem diverge is, therefore, also the subject of this analysis.

The Divided City: A Model for Resolution

"There will come a time when Nicosia will be united. We don't want to wake up on the morning of unification and find that we have a street in the South blocked by a building in the North."²⁴ This, according to Mayor Eleni Mavrou of Nicosia's Greek Cypriot South, is the logic behind the cooperation that has existed between North and South Nicosia since 1974, just after the attempted coup by the Greek junta seeking to unite Cyprus with Greece prompted an invasion by Turkey, one of the island's constitutional

²⁴ Mayor Eleni Mavrou was interviewed in-situ on January 12, 2009. All subsequent statements from Mayor Mavrou were collected on that date.

guarantor powers, resulting in the full partition of the island and the creation of the “United Nations Protected Area,” or the “Buffer Zone.” Though known as “Europe’s last divided city,” as Mavrou says, “underground pipes don’t recognize Buffer Zones and constitutional problems.” And so, very early in the city’s division, representatives from both sides agreed “not to try to decide the Cyprus issue,” but rather “to try and understand what both communities needed.” As of 1974, teams of town planners, architects, civil engineers, sociologists, economists, conservationists and transportation experts from both communities have been meeting regularly, yet unofficially, to discuss many of the literally foundational issues that connect the two municipalities. They began engaging in, if you will, a concrete and steel manifestation of trust-building. In 1979 the two communities formally agreed there “should be close cooperation between the two sides for the purpose of examining and finally reaching conclusions for a master plan of Nicosia.”²⁵

Though under the supervision of the United Nations Development Programme, this “Nicosia Master Plan” (NMP) is administered by local Nicosia leadership. Its goal is twofold: to “increase the capacity of the city’s services and to improve the existing and future human settlement conditions of all the inhabitants of Nicosia, while [acting] as a means of building confidence between the two communities,” writes Agni Petridou, Greek Cypriot Team Leader for the Nicosia Master Plan.²⁶ Petridou and his Turkish Cypriot counterparts work “under present day political circumstances,” but with the idea that political change will one day “allow the development of the city as one entity,” he writes. In the meantime, Nicosia’s framework requires projects to be planned and directed by bi-communal teams, providing young Greek Cypriot and Turkish Cypriot professionals the opportunity to meet and work together regularly. “Underlying the

²⁵ UNDP Website,

http://www.undp-pff.org/index.php?option=com_content&task=view&id=80&Itemid=140, Last Updated Monday, 09 July 2007.

²⁶ *Nicosia Master Plan: Perspectives for urban rehabilitation – Building bridges between the two communities of the divided city of Nicosia.*

http://www.eukn.org/eukn/themes/Urban_Policy/Urban_environment/Land_use/Urbanisation/nicosia-masterplan_1001.html, accessed Feb 22, 2009.

projects is the idea that close and systematic technical cooperation can foster new bonds of understanding,” writes Petridou.

Particular attention is given to the “preservation and rehabilitation policy for the historic center, which constitutes a common heritage for all the communities of Nicosia and therefore was considered by the bi-communal team as the most precious part of the city,” writes Petridou. The two municipalities together fulfill the following objectives: the restoration of its architectural heritage recognized as a “cultural and economic asset”; housing rehabilitation and the provision of community facilities in order to attract new residents; the economic revitalization of the commercial core, including employment opportunities; the protection of natural resources; and the functional integration of the city, including infrastructure development. Given what Mavrou described as the “nightmare” of transportation in Nicosia (“most of the streets lead to a dead end”), another important and greatly successful area of development under the NMP has been the “pedestrianisation” of Nicosia’s historic commercial district. Implemented with European Union funds, the project has “succeeded in the rehabilitation and environmental improvement of the business area,” while promoting more physical, daily, street-level interaction between residents from North and South.

“One of the biggest achievements of the Nicosia Master Plan was the development of excellent communication and joint decision-making by the technical people of the two communities. This constitutes the basis for future cooperation for the benefit of the harmonious development of the city and its people,” writes Petridou. Parties meet within the Buffer Zone at the Ledra Palace Hotel; formally one of the country’s most glamorous, the Ledra Palace today houses the United Nations Peacekeeping Force in Cyprus (UNFICYP), which, since the 1970s, has been charged with the Buffer Zone’s maintenance and regulation. Though the UNDP still technically oversees implementation, in 2001, in preparation for the accession of the Republic of Cyprus, the European Union took over responsibility for funding the Plan. The EU’s funding of Nicosian development falls within the larger framework of the island-wide initiative: Partnership for the Future, which aims to contribute “to the peace-building process in Cyprus through different levels of intervention ranging from urban infrastructure rehabilitation to assistance to small and medium-sized enterprises, and the de-mining of the Buffer Zone.”

While effectively constraining a return to violence during the last three decades, the Buffer Zone is also a huge constraint on development in Nicosia and across the island. The Zone is still largely barren, mostly inhabited today by “the UN...also snakes, rats, and wildlife,” says Mavrou. The partition consumes some 350 kilometers of the small island, greatly affecting people’s quality of life. Parts of the city’s historic district that fall within the Buffer Zone lie in ruins, off-limits since 1974 to both Turkish and Greek Cypriots. The streets of old Nicosia are strewn with stone corpses, given neither funeral, nor yet chance to rise from the rubble. No construction is allowed within the Zone, and so the United States Agency for International Development funds the “propping-up” of dilapidated structures – hollow houses, cafes, businesses and schools which still bear the unmistakable scars of artillery shells and gunfire – in expectation that some day their inhabitants will return. Some thirty-five years later, it’s a zone frozen in war, a grim reminder of a past in which most of Cyprus is still entrenched.

Despite the Buffer Zone’s eerie stasis, relations between North and South Nicosian leadership progress over negotiations on day-to-day issues, facilitated by the Nicosia Master Plan. But as Nicosia itself is constrained by the legal agreements that created the Buffer Zone, interactions between Nicosia’s leaders are constrained by the legal issues surrounding recognition. Mayor Mavrou cannot formally recognize the mayoral status of her northern counterpart, nor can the two officially meet, given that the South does not recognize the North’s legal status, and therefore the official status of its mayors. This makes for difficult policy-making, let alone trust-building. This same dynamic exists at the national level, as the South withholds formal recognition of the North, referring to the North’s elected president as the “so-called” leader of the Turkish Cypriots. Yet despite these legal and semantic impediments, Nicosia’s representatives continue to meet simply in order to “provide people with a better life,” says Mavrou.

“When people think about Cyprus, they don’t think about the small, every day things...but mosquitoes fly everywhere.” In 2008, an army of the irritating insects besieged North and South Nicosia. While we might take a moment to appreciate the irony of the mingling of Greek and Turkish Cypriot blood in each bite, we should also acknowledge the cooperation between North and South that resulted in successfully combating the invasion. Another deeper-running issue connecting the two communities

that has also enriched cooperation: sewage. The whole island suffers from the dilemma of how to treat its waste, and the small, land-locked enclave of North and South Nicosia is particularly steeped in the issue, but also fortunately particularly well-equipped to deal with it, given both its shared infrastructure, and shared goals as outlined by the Nicosia Master Plan. North and South recently agreed to build a sewage treatment plant in the North to serve both municipalities, and held a joint press conference to announce their cooperation to the public.²⁷ To Mavrou, what has happened in Nicosia “is an example of how things can work overall with reunification.” Indeed, within Nicosia, a “larger percentage of people are in favor of reunification” than not, she says, a product of more frequent interactions between those who border the Buffer Zone.

“Nicosia has benefited enormously from this cooperation,” says Mavrou, but “there are issues which cannot be resolved without an agreement on a political level.” Nicosia’s progress is a direct result of a committed, purposely non-political effort by the immediate parties to the conflict to keep open the lines of communication and cooperation. The UN and EU as third-party mediators have facilitated Nicosia’s success. But, as the Mayor acknowledges, there are certain fundamental aspects of local cooperation that require cooperation at the national level; the aforementioned issue of legal recognition is a good example of a political issue that, while unresolved, has daily consequences limiting the gains of cooperation. Nicosia can serve as a partial paradigm, and is proof that relationship-building can and should precede a formal political agreement, but Nicosia alone cannot provide the full picture. Nevertheless, an analysis of the facilitating factors within the Nicosian example can help bring the larger picture into focus.

We can regard Nicosia’s success through three lenses of analysis, thereby seeing which need to be adjusted at the national level for a clearer picture of Cypriot cooperation.

²⁷ “Cyprus greenlights new sewage treatment plant,” *Southeast European Times*, Jan 30, 2009.

Focus on Nicosia: Three Lenses of Analysis

First is the lens of leadership: for negotiations to move forward, representatives must work together. Though almost tautologically evident, “it has not been an easy process,” says Mavrou; cooperation has been “criticized and undermined,” and also “congratulated.” But, according to Mavrou, leaders in Nicosia have always been willing to work together, though to varying degrees throughout the years, depending on personality and personal leadership qualities as much as political affiliation. This makes the leadership level difficult to affect externally, in that the degree to which leadership facilitates resolution is often a factor of personal temperament. Even when the time may be “ripe,” the leader may not be “right,” and may spoil the ripe moment; a true ripe moment demands that leadership must be equally mature. Nicosia benefits from having been so immediately and tangibly affected by the conflict; parties were pushed by circumstances into a kind of mutually hurting stalemate, the transformation of which demanded cooperation.

The second lens of analysis is more quantitative, as it involves the gains the average citizen enjoys from the cooperation. What is actually being done that the average Nicosian or Cypriot can tangibly appreciate? This lens brings into focus tangible payoffs, how people can appreciate in real terms that things are changing for the better. Is the economy improving? Are the streets better paved? Is the quality of life tangibly better? In Nicosia, the benefits are evident, and have even garnered international recognition. In 2007, the Nicosia Master Plan project was awarded the Aga Khan Award, “the world’s largest architectural prize,” specifically for its efforts to revitalize the historic center. The award committee jury praised North and South Nicosia for their close cooperation whose product, they acknowledged, has catalyzed private investment, attracted new residents, increased tourism and strengthened economic activity. “In addition, the rehabilitated buildings are breathing new life into the divided city, and new cafes, restaurants, cultural centers and public spaces abound. The project is a fine example of how, with tolerance

and sensitivity, opposing sides can be brought together to build a shared space for all people and all faiths.”²⁸

However, though “the average citizen knows that the sewage system is joined,” says the Mayor, they do not necessarily know about other joint efforts, or even the Nicosia Master Plan. If both infrastructure *and* long-term trust are to be built, the fact that these gains are the product of a joint effort must be communicated. This speaks to one of the important and often missing elements of conflict resolution, especially in the case of Cyprus where the public has not always favored cooperation: the importance of the process of *reentry* (that leaders must convince their constituents to accept the terms of a settlement).

This third lens is qualitative, often the most fuzzy, yet regularly the deciding factor in whether the gains achieved during cooperation have lasting effect. In this analysis, the traditional notion of reentry is expanded to incorporate cooperative action outside the parameters of formal negotiation. Leadership must demonstrate to their constituents that mutual gains are a product of working with the other side. This lens is perhaps the least focused in the Nicosian picture; leadership must work with civil society to improve this process. Press conferences, public information campaigns, and promotion of and coordination with civil society members are essential in helping people understand the benefits of cooperation. Indeed, where government fails, civil society may have to facilitate the reentry process.

Recommendations to Bring Greater Cyprus into Focus

These three lenses can be applied to greater Cyprus to magnify zones of possible agreement, and subsequently, cooperation.

First Lens: Leadership in greater Cyprus must take advantage of this ripe moment, and not undermine each other’s authority in the name of “politics as usual.” In greater Cyprus, the moment is ripe, and leadership is a bit softer than it has been in the past. Hardliners, the South’s “Mr. No,” Tassos Papadopoulos, and the North’s “Mr.

²⁸ *Intervention Architecture: Building for Change*, Aga Khan Foundation, Aga Khan Award for Architecture (Organization), I.B. Tauris, 2007.

Never,” Rauf Raif Denktaş have been replaced by the more amenable Dimitris Christofias and Mehmet Ali Talat, respectively, both left-leaning “comrades,” as one Turkish Cypriot politician denoted. Both Christofias and Talat campaigned on the platform of finding a negotiated solution to the Cyprus problem, and their victories suggest public support for that goal. National leadership is “more right” than it has ever been in the past. But while the point holds that the ripe moment demands the right leadership, leadership may also be attracted to an understanding of the moment’s ripeness, and to that degree, leadership can be affected externally. Leadership can also directly affect the ripeness of the moment itself. A significant way greater Cypriot leadership can better focus their efforts is in the way they address each other in the public sphere, as this affects public buy-in to the process. Talat and Christofias cannot let past spoiling behavior ruin this round of talks. They must approach these negotiations afresh, allowing their perceptions of the other to evolve from enemy to partner. A resolution requires a concerted effort by leaders to mitigate the “politics as usual” attitude. The public sphere is as much a negotiating space as are the negotiating halls, and leaders must listen to what the other is saying, rather than for what they expect to hear, if they indeed want to take advantage of this ripe moment.

Second Lens: Quantitative Mutual Gains must be put in perspective; areas like economic growth provide possible zones of agreement. The second lens of analysis can help simplify things by helping us focus in on specific issue areas ripe for cooperation. As in Nicosia, there are day-to-day issues like sewage and mosquitoes on which greater Cyprus can work together and make meaningful, visible, quantitative gains. But while Nicosia benefits from having established the framework for achieving gains early in the division of the small enclave, greater Cyprus has a lot of ground to cover to catch up. In Nicosia’s case, the payoffs for cooperation were immediately and undeniably evident; shared issue areas demanded cooperation, and thus the moment has always to some degree been ripe. In Greater Cyprus, the picture has not always been so clear, neither to leaders nor to society at large. “There is a need for such a small island to coordinate,” says Alain Bothorel²⁹, Principal Administrator of EU Programme Team Task Force For

²⁹ Alain Bothorel was interviewed in-situ on January 16, 2009.

the Turkish Cypriot Community. Coordination on important issues such as economic development, and humanitarian and environmental concerns, will produce mutual gains. The key then is to put these benefits in perspective, and bring them into focus for the greater public.

Third Lens: Qualitative appreciation of mutual gains must be transmitted to the greater public; strong civil society is crucial in facilitating communication. This third lens actually involves the combined scope of each lens of analysis we've discussed. In Cyprus, leadership must communicate to constituents that gains enjoyed are a product of cooperation with the other side — the product of the process of making a partner out of one's enemy. By communicating this process, leaders help build relationships between those they represent. This process then facilitates long-term resolution of bigger picture issues, like state structure and legal recognition. Civil society can greatly facilitate this process, as civil society actors, as in the case of Nicosia, are able to make connections that cannot be made at the official level because of legal constraints, such as the lack of formal recognition of the North. Civil society is arguably the missing factor in North/South cooperation, the one thing that can attract North and South along the continuum of cooperation, in the absence of a negotiated agreement.

A snapshot of Cyprus produces this image: a ripe moment for resolution with relatively right leadership, with uncontestable areas of potential mutual gain, *without* the political agreement on recognition that could facilitate those gains. Nicosia has worked because it has not needed that formal recognition; the “unofficial” meetings of the municipalities' two mayors and planning teams represent the coordinated effort of civil society within Nicosia. This is perhaps the most important lesson the Nicosian story holds for Cyprus. Nicosia is an example of how cooperation at the local level can allay stalemate at the governmental level. Though, as Mayor Mavrou said, long-term resolution in greater Cyprus demands a political agreement, the one element that can mitigate the lack of political agreement in the interim is civil society, which can help communicate, as well as facilitate mutual gains.

Civil society organizations such as the North's Management Centre of the Mediterranean, a non-governmental organization dedicated to “managing change for sustainable development” are working to connect North and South. Executive Director

Bulent Kanol³⁰ describes the ways in which he circumvents the North/South divide that makes economic exchange – one of the main areas of potential mutual gains – difficult. When Turkish Cypriot businessmen come to the Management Center wanting to do business in the South, Kanol calls his Southern counterpart, director of the NGO Support Centre, who connects businessman in the North with the appropriate contacts in the South.

“The reconciliation process is a process,” says the Management Centre’s Kanol. Signing an accord is not the end. Track one negotiations will make a lot of difference, but the reconciliation process will continue. The goal of the Management Centre, and civil society in general, is “not brokering relations between Cristofias and Talat,” but “trying to help people live together.” One way the Management Centre is doing so is through “common vision” projects that involve training potential civil society members from North and South. Even Greek and Turkish Cypriots who are not interested in reconciliation, per se, come to the Management Centre’s joint training seminars in order to build internal capacity in their own organizations. In doing so, in interacting with other civil society oriented people, partnerships are built between historic enemies. It is about “building capacity, and building trust as well,” says Tanyel Oktar³¹ who works in civil society promotion at the Management Centre. This is easier done than said at times; though many of the seminars are in English (which itself acts as a kind of mediator between Greek and Turkish Cypriots), participants at the seminars “don’t all speak civil society speak,” says director Kanol. “These Western notions of civil society are very new to Cyprus,” he says. But language can be learned. A bigger problem is that “the intellectual people who support civil society are not the critical mass in society,” they are the “usual suspects,” says Kanol. How to transmit these notions to greater society, to co-opt them in the civil society movement is the next task.

A number of joint, small-scale inter-communal ventures are seeking to do just that. The youth of Cyprus are in particular focus, though this is difficult, as a joint educational system, let alone a common historical narrative, does not exist. In fact,

³⁰ Bulent Kanol was interviewed in-situ on January 16, 2009.

³¹ Tanyel Oktar was interviewed in-situ on January 16, 2009.

creating a common history is a highly politicized issue. From 1963 to 2003, “youth didn’t meet, they were told they were each other’s enemies,” admits Manolis Christophides³², representative of the South’s center-right DISY party. This concept of each other as enemy is what must evolve, and civil society is one the way by which it can. “The big worry of Turkish Cypriots is that the main goal of the Greek Cypriots,” *enosis* (the Greek Cypriot goal of uniting with Greece), “has not changed,” says Serdar Denktash, the North’s Democratic Party head. Greek Cypriot Christophides acknowledges that the Turkish Cypriot’s fear is not unfounded – not because the South’s goal of *enosis* still exists, but because the Turkish Cypriot’s “fear of *enosis* was never really dealt with,” says Christophides. But *enosis* is no longer a practical goal, and although marginal, extreme elements of Greek Cypriot society may still espouse the ideology, the Republic of Cyprus’ accession to the EU and the mutual gains of cooperation with Turkish Cypriots mitigate *enosis*’ viability. Similarly, the South’s fear of another Turkish invasion is unfounded in the light of the same realities. But each side’s *fear* of the other has not evolved to incorporate the current reality. Through the promotion of mutual gains through interaction, dialogue, and cooperation, civil society can help North and South move past these outdated fears, as they have in Nicosia. As these constraining fears are allayed, and their impact on the perception of payoff negated, issues such as security and state structure will become more easily negotiated. “Civil society is coming together, which is good, because they told us that if Greek and Turkish got together, they would kill each other,” says Christophides. “Coming together is human nature. The partition is contra-nature.”

Conclusion

As mosquitoes induced cooperation in Nicosia, so must Cyprus’ burgeoning civil society impel greater Cyprus’ leadership into collaboration — but perhaps an analogy where the people of Cyprus aren’t swatted would be more appropriate.

The UN Force in Cyprus is based at the old international airport in Nicosia inside the Buffer Zone, and so it is fitting that the UN’s job, as described by Colonel Gerard

³² Manolis Christophides was interviewed in-situ on January 13, 2009.

Hughes³³, Chief of Staff for UNFICYP, has been to keep Cyprus in a kind of holding pattern, to make “sure that neither side does anything to change the status quo.” This “holding pattern” may indeed be what has produced the current climate, but North and South Cyprus cannot keep circling forever. At a certain point they will run out of fuel. Therefore, civil society, with its knowledge of conditions on the ground, must signal to North and South (leaders and led alike) how to land their agreement. The UN’s mandate since 1964 has been to “to ensure a stable environment to enable a political solution to be found, says Hughes. “What we’ve been doing here is trying to keep the two sides apart to allow for a peace process.” In order for a political solution to be found, the two sides cannot be kept apart any longer, as a peace process involves not only what is happening at the tables of current negotiations, but what is happening in the streets of old Nicosia—and, thanks to civil society, what is beginning to happen island-wide. While the Nicosia story can bring the greater image into focus, only the people of Cyprus can fully develop this picture.

³³ Gerard Hughes was interviewed in-situ on January 14, 2009.

9. The Economic Dimensions of the Cyprus Problem and its Solution

Ryan Marshall

“Many see in the settlement little gain, and quite a lot of inconvenience and risk” UN Secretary General’s Report, 2004.

Thirty years of partition have had tangible economic repercussions for both the Greek Cypriots and the Turkish Cypriots. While the former has largely enjoyed sustained periods of economic growth, the latter has suffered from over two decades of economic isolation and stagnation. The divergent economic paths of the two communities and the subsequent prevailing attitudes of ordinary citizens may go some way to explaining the rationale behind the rejection of the Annan plan in 2004 by the Greek Cypriots – simply, they saw little gain in any settlement.

Since the rejection of the Annan plan, more emphasis has been placed on the economic dynamics of the island, in light of an eventual settlement. Most of the current discussion has focused either on how economic development can be used as a ‘mutually enticing opportunity’ for both communities to come together or how fiscal coordination and structural reforms will be required in case of a settlement. Both of these areas warrant attention, and it is the purpose of this paper to look more closely at each issue.

Economic History of Cyprus Since 1960

Since independence in 1960, the economic path of Cyprus is best seen as three distinct phases. Each of these periods pays testimony to the significant role that economics has played in the perpetuation of the conflict, and in the case of the last period, how increased economic linkages and incentives might be used to facilitate a political settlement.

*Post-Colonial Economics: 1960-1974*³⁴

Upon independence in 1960, the two communities entered into a power-sharing arrangement. The new government was faced with a largely undeveloped economy, with a GDP per-capita that was well below other European countries. Despite this challenge, the period was characterized by robust economic growth and development enabled initially, by strong exports of agricultural products and minerals. Impressively, Cyprus had shed its predominantly agrarian society by the end of this period, and begun to modernize through sizeable development in tourism and the services sector. Indeed, the average growth for this period was in excess of 7 percent.

Despite economic success however, tensions soon emerged in the power-sharing government and the consequent intercommunal violence in 1963 marked the beginning of the split between the two communities, with the Turkish Cypriots resigning from the power-sharing government, forming their own administration and retreating to ethnic enclaves. These tumultuous events were exacerbated by the already existing socio-economic disparity between the two communities. Indeed, from as early as 1962, the Turkish Cypriot community, who mostly earned their livelihood from farming or government employment, had a per capita income 20 percent less than their counterparts (Ayres, 2003). As political tensions rose, intercommunal trade virtually ground to a halt and the socio-economic disparity increased. Indeed, by the early 1970s, Turkish Cypriots accounted for only 6 percent of the island's gross domestic product although they constituted about 20 percent of its population.

One Island, Two Very Different Paths: 1974-2003

The Turkish incursion in 1974 created severe socio-economic disruption and the ensuing exchange of populations cemented the already-existing division. The economic costs borne were significant – 80 percent of the tourism infrastructure of the Island was lost, 70 percent of the tillable land was gone, no airports were available, and Varosha/Famagusta Port was non-functioning. The de facto partition of the island, with a buffer zone (the

³⁴ The lack of data makes it difficult to compare the living standards of each community under British rule before independence in 1960.

Green Line) separating the two sides, was to set the stage for the development of two economies totally disengaged from each other for the next three decades – indeed, there was very little civilian or commercial traffic crossing the Green Line until it was reopened in 2003.

The Republic of Cyprus, comprised of Greek Cypriots in the southern part of the island, was immediately recognized by the international community. However, the economic progress made in earlier years was under threat due to the 162,000 Greek Cypriots who had been forcibly expelled from their homes in the North. Despite their presence, the South was able to rebuild its economy within fifteen years. This relatively rapid process of modernization, termed the ‘Cypriot economic miracle’ by some (Theophanus, 1995), was made possible by economic policy that kept interest rates and inflation low and contributed to sustained economic growth, in tourism, construction and ‘off-shore’ financial services. Indeed, growth in the South was 5 percent per annum over the period 1977-2000. This progress was further underpinned by the Cypriot application to join the European Union in 1990, and formal adhesion negotiations that started soon thereafter led to further economic liberalization that transformed the economy into a full market-based, modern economy.

The Turkish Cypriot experience during this period provides a stark contrast to the prosperity of the Greek Cypriots. Although they took over the relatively land-rich northern part of the island, they were unable to capitalize on these benefits in the years after partition. Domestically, the administration of the North decided not to develop an institutional setting conventionally considered necessary for private sector development and thus the economy became dependent on a large public sector. The unilateral declaration of the Turkish Republic of North Cyprus in 1984 was recognized only by Turkey and resulted in economic isolation from the world economy, which was unwilling to trade with the TRNC.

Non-recognition had two serious economic implications for the North. First, a European Court of Justice decision in 1994 precluded the Turkish Cypriots benefiting from the preferential access to European markets that the Republic of Cyprus had under its association agreement with the EU and in the process effectively took away its access to the huge European market (as Turkish Cypriot goods were now much more expensive

to import). Second, as a result, the Turkish Cypriots became dependent on Turkey and its economic inflows, both in the form of direct aid (which was mostly used to subsidize the public sector) and export earnings. More acutely, it left the TRNC economy vulnerable to shocks in the Turkish economy, of which there were several during this period.

Despite the GDP of the “TRNC” nearly doubling in nominal terms between 1977 and 1990, periodic bouts of instable interest rates and high inflation rates led to stagnation and occasional periods of recession and depression, with per capita income actually falling. The slow rate of increase in income, from €1,400 in 1974 to €3,500 in 2004 led to thousands of Turkish Cypriots to emigrate overseas in search of a better economic future.

Post-Annan and the EU Dimension 2003-Present day

By 2003, the economic disparities between the two communities were palpable, with the Turkish Cypriot GDP per capita projected to be only 35 percent of the Greek Cypriots. At the same time, a UN led process had begun to bring about a political settlement to reunite the island once again, and thereafter, a unified Cypriot entry into the EU. Following a series of rallies, the gates at Ledra Palace were opened by the Turkish Army and the first streams of civilians were able to go to the other side for the first time in almost 30 years.

As the UN led process gathered pace, four economic sub-committees were established to deal with the economic aspects of the plan before a final version was to be presented to the communities for referenda. However, the overwhelming focus of the plan was on the political and institutional aspects of a federal solution and contained only some, albeit important, provisions as regards the post-settlement economic landscape. Indeed, neither a general outline for the functioning of the economy nor a plan of cooperation between the various branches of government was worked out prior to the referendum. Undoubtedly, this fact was exploited in a negative way by labor unions and business interest groups on both sides to deter a ‘yes’ vote; although especially those active within the Greek Cypriot community, who persuasively argued that unification would come at huge economic cost to their community.

On the Greek Cypriot side, the failure of the ‘yes’ campaign to convincingly articulate the benefits of a united island, economic and otherwise, contributed to the strong rejection of the Annan plan in the referenda. The no vote had wider implications, as the political negotiations to unite the island were in the context of EU membership. Accordingly, it led to the anomaly that the Republic of Cyprus joined the EU as planned, but the *acquis communautaire* was suspended in the North. In technical terms, the whole of the island was part of EU territory, even though practically its *de facto* border would be the Green Line that has separated the sides since 1974.

The EU put in place the Green Line Regulation (GLR) to regulate the flows of good and services through the *de facto* border. To reward the TRNC for their support of the Annan Plan in the referendum, the GLR also sought to subtly put an end to the economic isolation of the TRNC, and in the medium term, to promote a new settlement by encouraging cross-border economic interaction and economic development within the Turkish Cypriot community in particular. This sentiment was reinforced more explicitly by a €259 million EU aid package to the TRNC to be used to stimulate private sector development and improve infrastructure services.

Since the GLR was put in place in August 2004, the value of annual intra-island trade has steadily increased, from €1.67 million in 2005 to €4.1 million in 2007, an increase of almost 130 percent. The data for the first half of 2008 suggests a moderate leveling out of this upward trend, in large part due to the global economic downturn. Although conceived as a modest step toward further economic convergence between the two communities, the GLR has had a noteworthy economic impact over the last 5 years, especially for the TRNC, where it has contributed to a growth rate of approximately 10 percent during this period. This strong economic growth (also facilitated by sounder financial management in Turkey and by increased foreign immigration to the TRNC) has lessened the economic disparity between the two communities, with estimates suggesting the Turkish Cypriot GDP per capita is now between 50-75 percent³⁵ that of the Greek Cypriot community, when previously it had been 35 percent.

³⁵ Bezim (2007) sets the figures 50 percent, while the World Bank (2007) sets the figure at 75 percent.

Yet, despite the increase in cross-border trade, it is clear that overall trade levels between the two communities remains relatively small. Indeed, recent estimates suggest that 'Green Line Trade' accounted for only 7 percent of total Turkish Cypriot exports in 2007, while the trade going from South to North remained negligible. This underlines that other important economic factors besides trade have been crucial to raising the incomes of the Turkish Cypriots. In particular, since 2003 they have been able to work in the more prosperous South and avail themselves of the higher wages (for example, construction workers can earn almost five times more than in the North), and moreover, they have been able to receive their Republic of Cyprus ID cards, pension and social benefits. In addition, the ability of tourists to legally visit and even stay in the North at much lower cost has given a significant boost to the TRNC economy.

Constraints and Caveats to Mutual Economic Development

The previous section underlined that both communities have not taken much advantage of the potential economic opportunities afforded by cross-border trade. Neo-classical economic theory tells us that individuals are rational, profit-maximizing agents. Yet, why then have both communities not taken advantage of the increased economic opportunities afforded by the opening of the Green Line?

At the outset, it is worth noting the existence of two caveats that place limitations on initiatives concerning mutual economic development. First, the non-recognition of the TRNC by the Republic of Cyprus (and *ipso facto*, the rest of the world) severely inhibits economic development in the North. The South is able to set the parameters on economic policy regarding the North, including the ability to block a direct trade regulation for the Turkish Cypriots. Moreover, although it must abide by EU regulations, such as the GLR, it is often able to 'game the system' as it were, through its retention of some degree of internal regulatory control which it can use to impede the North's access to its market.

Second, the uncertainty surrounding property rights in the North significantly hinders their ability to attract private investment, both from Greek Cypriots and abroad. For intra-island economic development, while the trading of agricultural and other perishable products may be unaffected, it inhibits the development of a manufacturing or

large-scale services sector because companies do not want to face the risk of investing in property that may be liable for challenge, as was recently raised in the *Apostilides v. Orams* case (European Court of Justice, 2008). The ECHR ruled that the pre-1974 owners of the land still had right to the land and this ruling will continue to hamper investment.

These caveats to economic development, which can only be solved at the political level, are compounded by a number of constraints that inhibit increased cross-border trade. First, the GLR was originally conceived of as a temporary instrument; a second best alternative in the absence of a settlement and thus is rather limited in scope. Most pertinently, there are a limited number of goods that are eligible to be traded, most of which are confined to agricultural goods. Further, there are a number of EU and Republic of Cyprus health requirements that must be met, which results in a large proportion of competitive Turkish Cypriot goods (cheese, processed meat) not being suitable for trade across the Green Line as they don't meet the stringent requirements.

Other internal regulatory measures act as constraints. For example, goods sold across the Green Line are subject to additional taxation. Traders are effectively being double-taxed or even triple-taxed, as in the case of Greek Cypriots when their goods cross the Green Line. Another area where internal regulations are a factor is in the case of vehicle registration and insurance. The Greek Cypriots do not recognize the road-worthiness status of TRNC vehicles and even those who get certified in the South must obtain separate insurance in each jurisdiction. In addition, the South does not recognize professional driving licenses issued by the TRNC, causing further impediment.

Notwithstanding these issues, perhaps the most formidable barrier to trade is the psychological mindset within each community for dealing with the other side. This usually takes the form of political or labor union pressure, government dithering over the implementation of EU regulations or even inane obstruction at crossing points. Recent research by the PRIO center (2008) makes clear that mistrust and suspicion of the other community plays a critical role in deterring business linkages. This, of course, is not surprising, considering the psychological attitudes toward the other side shaped by the historical narrative created in each community about the Cyprus problem. The sense of mistrust clearly permeates the business communities, who not only take on significant

financial risk but also face the threat of being judged of putting monetary gain ahead of loyalty to their community.

This narrative is usually reinforced and even exacerbated by the media on both sides, who have often refused to air advertisements for products and services from the other side. These constraints have had a significant impact on the notion of economic development as ‘mutually enticing opportunity’ for both communities. Rather, especially amongst Greek Cypriots, there is a conception of intra-island trade as a zero sum game where they have the most to lose, especially in areas such as tourism, a critical industry for the South.

The Case for Further Mutual Economic Development

Given the prevailing psycho-social attitudes toward intra-island trade (a reflection of more general feeling), it is critical that a coherent case be made for mutual economic development between the two communities. Indeed, a number of initiatives have tried to tackle negative attitudes including, increased cooperation between the Chambers of Commerce³⁶ in each community and other civil society groups. The basis for such initiatives have centered around two beliefs; first, the damaging nature of the status quo and second, the need for fiscal preparation in advance of any settlement.

The Damaging Nature of the Status Quo

The first aspect to the damaging nature of the status quo is the opportunity cost of the present situation in terms of economic gains not being realized. Gravity model tests suggest that due to the constraints on commercial activity discussed earlier, the volume of trade from 2005-2007 was on average 35 percent of the conservatively predicted level³⁷. This striking level of missed opportunity is reinforced by research that suggests that once traders get over their initial misgivings about trading with the other side; they are

³⁶ The TRNC Chamber of Commerce is internationally recognized owing to a historical loophole.

³⁷ As the trade levels flowing South to North are negligible, the gravity tests mostly reflect potential trade that could be flowing North to South. If there was no correction for the negligible levels of trade, the volume of trade during this period would represent on average 4.2 percent of the expected levels.

typically positive about the experience and enthusiastic about further trade. Furthermore, Mullen (2008) calculates that the annual peace dividend – the recurring annual benefits for 7 years following settlement – would be approximately €1.8 billion or €5,500 per household. In today's terms, this translates into 20 percent of the annual salary of the Greek Cypriots and 40 percent of the average Turkish Cypriot salary per annum and highlights the missed opportunities that are accruing from not engaging in mutually productive interchanges.

The second aspect is the lack of economic incentives within and between the two communities that is characterized by strong distortions of trade and investment. This has created layers of vested groups who benefit from the status quo. Labor unions, business pressure groups and other quasi-political actors, not only damage economic activity in their own community but actually benefit from the continued division. They are damaging in the sense that they actively try to shape popular opinion against any bi-communal economic activities and the current peace negotiations. Often, these views become more prominent than the upside to any engagement with the other side. Yet, despite current trade levels being low, they are, if nothing, tangible proof that there is much to be gained by both sides in engaging the other. If these mutually productive interchanges could be used adroitly by politicians, this would move the dynamics of the discussion away from downside risks and toward a positive-sum psychology on a settlement – seemingly a necessity in light of the shadow over the current negotiations.

Fiscal Preparation for an Eventual Settlement

During the Annan negotiations, economic issues were mostly neglected – indeed, several commentators (Watson 2008; Theophanous 2008) have noted that although the Annan Plan developed a fully-articulated politico-legal approach to the Cyprus problem, it was not underpinned by an in-depth analysis of the economic dynamics that might occur after reunification.

This prevailing attitude underpins a faulty, though understandable assumption that those negotiating may have had – that economic growth and convergence in the two communities would follow automatically after an agreement, no matter the type of

institutions, fiscal policy and market incentives. While this rationale was understandable in some part due to membership of the EU, and the strong fiscal controls it exerts over members, research suggests (Watson 2008) that convergence does not necessarily happen *ipso facto*. In other words, convergence has to be a managed process.

It is only natural that long disengaged economies are in different places. This is even more pronounced in the case of Cyprus, where the economies in the North and the South are not complementary – rather, their future growth potentials lie in the same areas. Moreover, it should be recognized that the two communities currently have different economic visions of the future. Given this reality, it will take painstaking planning and diligent execution to reach the goal of an operationally unified economy. To facilitate this, coordination is required between the North and South, both through technical and informal channels, on fiscal matters. In the EU Economic Policy Committee and their Broad Economic Policy Guidelines, economic policy-planners on both sides have the expertise and tools at their disposal to analyze the situation, develop policy frameworks and initiate reforms. This is a matter of the highest concern for Cyprus, as cooperation now on fiscal matters will help offset any more difficult structural changes that may need to occur upon a settlement. Or, put simply, economic preparation now to create a shared economic vision is crucial to ensuring strong and durable convergence and to make a unified Cyprus as economically competitive as possible. In particular, the type of post-settlement institutions in Cyprus will be critically important. Given that these are a bargaining chip in the negotiations, the two sides will face a difficult trade off; ensuring that the TRNC doesn't feel surrounded by a richer and larger Republic of Cyprus without arresting the mechanisms that can help trigger strong economic growth.

Policy Recommendations

Historically, economic factors have not been drivers of political events; in Cyprus, as elsewhere, it would be remiss to think that further economic cooperation will bring about an eventual settlement. What, then, is the role of economic development and improved coordination between the two communities?

It can play a valuable role at both the micro and macro level. At the former, creating incentives to engage or removing disincentives would expediently turn mutually enticing opportunities into mutually obtained rewards. A more positive approach from the Greek Cypriots in particular, vis-à-vis the GLR, would not only remove barriers to trade, but at the same time, would decrease TRNC reliance on Ankara. At the macro level, the primary post-settlement fiscal goal will be to achieve economic convergence. There is a strong case to be made for early preparations in terms of developing a sound policy analysis framework, and initiating reforms in order to take full advantage of an eventual reunification from day one.

Micro Level Policy Recommendations

- **Ensure that crossing points are business- friendly.** Both sides complain about the treatment they receive at the border. Not only does this play on the fear and mistrust that each side feels, but it makes it more difficult to get goods to market.
- **Recognition of TRNC roadworthiness certificates and driving licenses.** Commercial vehicles cannot move freely around the island as the South does not recognize either TRNC roadworthiness certificates or professional driving licenses. The South seems to be reluctant to deal with this issue (in the face of pressure from transport labor unions) while the North has rebuffed attempts at a compromise.
- **Aim for tax harmonization.** The current tax policy acts as a significant barrier to trade, with traders often being double or even triple taxed. Ideally, both sides should abolish taxation of the others' goods but failing that, a relaxation of the rules would give a significant boost to trade.
- **Reinforce positive trends.** Increased trade can expediently turn 'mutually enticing opportunities' into 'mutually obtained rewards'. Positive trends such as bi-communal ventures or the cooperation between the Chambers of Commerce in each community should be reinforced through positive signals from politicians and the media and built upon.

Macro Level Policy Recommendations

- **Establish a common economic vision.** Although synergies exist in the two economies, factors including population base and resource endowments make it unlikely that the synergies will be a sufficient for future growth. Thus, the onus is on the two communities to establish a joint economic vision
- **Look to the European experience for practical solutions.** Not only can both sides use the *acquis* as a potential base for harmonization, the EU has much experience in managing economic convergence. Both communities should leverage all available fiscal tools to inform their analysis and reforms, particularly in the composition of any post-settlement governance institutions
- **Monitor and analyze island economic trends.** Given the global financial uncertainty, both communities must gather information on the variables of economic and social change on an all-island basis. Given the rapid economic and social change in the Turkish Cypriot community, there is a need for assessments regarding how this will affect any settlement.
- **Look at Cyprus in a regional context.** The most lucrative economic opportunities for Cyprus lie beyond the island. Economic policy-makers ought to think not only of the intra-island economic benefits but, more broadly, to view Cyprus in a regional context, that is, as an island embedded in three overlapping regions of economic promise, and leverage their strengths accordingly.

Part II: The Outsides of the Problem

10. Mediating the Cyprus Problem: Challenges and Prospects

Brian Stout

The United Nations' involvement in Cyprus now dates back 45 years, and its involvement in a mediation capacity under the Secretary General's Mission of Good Offices almost that long.³⁸ Yet not until 2002 did the Cypriot communities actually contemplate a comprehensive settlement – and only then after Secretary General Kofi Annan took the initiative to draft the settlement himself and submit it to the parties for discussion. The document, officially termed the “Basis for Agreement on a Comprehensive Settlement to the Cyprus Problem,” called for a simultaneous referendum on both sides of the island in advance of Cypriot accession to the European Union. The agreement, the first such comprehensive settlement actually presented to the Cypriot people for a vote, represented the culmination of five years of intensive engagement by the Secretary General in the Cyprus Problem. Indeed, the fact that the Agreement took the name “the Annan Plan” indicates the extent of UN involvement at the highest level. This paper explores the negotiation and mediation process leading up to the rejection of the Annan Plan in an effort to inform recommendations for the current mediation process.

Historical Background

Though the history of UN mediation efforts in Cyprus dates back to the arrival of UNFICYP on the island, two factors support focusing on the 1999-2004 mediation as the salient referent point for the current process. First, it represented the most intensive engagement by the UN as a proactive mediator, with Special Advisor to the UN Secretary General for Cyprus Alvaro de Soto empowered to take a leading role in formulating a settlement. Second, for reasons to be discussed, it offered the first credible chance of an agreement.

³⁸ Responding to a complaint by Cyprus lodged against Turkey, the United Nations established UNFICYP (United Nations Peacekeeping Force in Cyprus) in March 1964. Secretary General U Thant formally launched his mission of good offices in 1966; it has been in place ever since. See Special Research Report No. 3, published by Security Council Report, entitled “Cyprus: New Hope After 45 Years on the Security Council Agenda.” September 4, 2008.

In the 25 years of intermittent negotiations leading up to the efforts undertaken by Annan, progress took the form of adopting a formula for settlement – without ever actually approaching a comprehensive solution.³⁹ De Soto, the UN mediator during the negotiations leading to the 2004 referenda, compared the Cyprus problem to a padlock requiring four keys: one each belonging to the Greek Cypriots, the Turkish Cypriots, Greece, and Turkey. With notable exceptions proving the rule, the Greek Cypriots historically seemed the most amenable to settlement. Greece eventually adopted a policy of supporting Greek Cypriot decisions without active interference in the negotiation process. Similarly, Turkey strongly supported the Turkish Cypriot positions (which aligned with its own preferences for maintaining a military presence on the island) and hence opposed a settlement. Finally, under the obstinate leadership of Rauf Denktaş, the Turkish Cypriots expressed little interest in the compromises necessary for agreement. With two keys missing, the padlock remained closed.

Against this backdrop, the European Union accepted Cyprus' application for candidacy.⁴⁰ The prospect of Cypriot accession to the EU presented a serious challenge to – and potential opportunity for – progress in the ongoing bi-communal negotiations. Clearly, EU accession provided a powerful incentive to both parties to negotiate a settlement. But it presented the EU with a dilemma: to require a settlement as a precondition to accession would give the Turkish Cypriots an effective veto over accession, while seeming to reward them for decades of intransigence. On the other hand, permitting accession without settlement risked the possibility of Cyprus acceding as a divided island, thus making any subsequent efforts at settlement increasingly difficult.

³⁹ This paper concerns itself with mediation strategies, not negotiation formulas. The broad outlines of an eventual settlement are well understood: emerging from relevant UN Security Council resolutions, a settlement must assume the parameters of a bi-zonal, bi-communal, federal state with political equality.

⁴⁰ The Greek Cypriots applied for EU accession in 1990. In 1993, the European Commission determined that the application applied to the island as a whole. In 1997, the European Council in Luxembourg confirmed that Cyprus would begin accession negotiations the following year.

1999-2004: Negotiating the Annan Plan

Cyprus' pending accession to the European Union provided the impetus for Secretary General Annan's flurry of diplomatic activity – it would be unprecedented, undesirable, and embarrassing for a divided country to accede to the EU. Annan formally appointed de Soto as Special Advisor on November 1, 1999, and began the mediation process that everyone hoped would result in the accession of a unified Cyprus to the EU.

De Soto approached the negotiations in 1999 with one overarching goal: inducing ripeness. Three factors influenced de Soto's choice of mediation strategy. First, the Secretary General placed a high priority on a negotiated settlement, investing a great deal of his own time and credibility in the issue. Second, the looming inevitability of the EU accession process provided a firm timeline for the negotiations. Third, like many familiar with the Cyprus Problem, De Soto viewed Denktash as the primary obstacle to an agreement. Given this framework, de Soto decided to pursue a proactive style of mediation, following what Jacob Berkovitch classifies as a "directive approach." (Zartman and Rasmussen 1997, pp. 125-53). De Soto's decision seems intuitive; a case study by James Sebenius, Michael Watkins, and Daniel Curran (2004) finds that "directive strategies – such as that employed by Richard Holbrooke in Bosnia – tend to be the most successful in general."⁴¹ This is particularly true in cases where parties exhibit scant willingness to compromise, as seemed to be the case with Denktash.

In adopting a directive strategy, de Soto acted on another tenet of successful mediation. As I. William Zartman explains, "Leadership comes from the parties; but if they do not provide it, it must come from outside."⁴² Given the history of the bi-communal negotiations, he focused his energy on the Turkish Cypriots, trying to create conditions that would result in a "mutually hurting stalemate" that would compel the parties to compromise.⁴³ The first – and critically important – element of this approach involved the conditions under which Cyprus would accede to the EU. With the Helsinki

⁴¹ From "Two Paths to Peace: Contrasting George Mitchell in Northern Ireland with Richard Holbrooke in Bosnia-Herzegovina." *Negotiation Journal*, Vol. 20, No. 4, 2004, pp. 513-537.

⁴² From "Conclusion: Managing Complexity," *International Negotiation*, Vol. 8, 2003, pp. 179-186.

⁴³ Zartman described "ripeness" as the moment in which a compromise is conducive to beginning negotiations; it is characterized by the presence of a "mutually hurting stalemate" whereby both sides come to view the status quo as intolerable.

Summit rapidly approaching, he convened the two parties for proximity talks in New York. Even as the talks stalled, the European Council presented the parties with a fait accompli:

The Council underlines that a political settlement will facilitate the accession of Cyprus to the European Union. If no settlement has been reached by the completion of accession negotiations, the Council's decision on accession will be made without the above being a precondition.⁴⁴

The EU took a gamble. It decided not to insist on settlement of the Cyprus Problem as a precondition to accession, hoping to force the Turkish Cypriots to compromise and thus put the remaining two keys in place. Whether the UN could have influenced the findings of the Council at the Helsinki Summit is unclear; there is little information regarding what role (if any) de Soto and Annan had in the EU negotiations over conditionality for Cyprus EU accession.⁴⁵ The fact remains that the international community missed an important opportunity to guarantee a mutually hurting stalemate and therefore to compel a solution to the Cyprus Problem.

By early 2003, the EU strategy of increasing pressure on the Turkish Cypriots appeared ineffective or irrelevant. Denktash continued his pattern of intransigence, refusing to present the Annan plan to the Turkish Cypriot people in a referendum. It seemed that the “carrot” of EU accession provided insufficient inducement to the Turkish Cypriots. Frustrated at the lack of progress, Annan formally suspended the negotiations in March 2003, leaving the status of his plan uncertain.⁴⁶ Assessing the seeming impasse at the time, de Soto described the situation as “manifestly unripe.” In fact, however, the familiar obstinacy of Denktash masked a series of dramatic changes rippling across the diplomatic landscape that would fundamentally alter the terms of engagement.

⁴⁴ From “Conclusions of the Helsinki European Council.” Bulletin EU-12-1999.

⁴⁵ Likewise, it is difficult to assess the relative weight of competing arguments in favor of removing conditionality. Greek Foreign Minister George Papandreou had stated on several occasions that Greece would veto EU enlargement if Cyprus access included preconditions. Whether the EU ultimately felt compelled by this threat or by a genuine interest in increasing pressure on the Turkish Cypriots is unclear.

⁴⁶ See “Report of the Secretary-General on his Mission of Good Offices in Cyprus,” S/2003/398, April 1, 2003.

Notwithstanding the Secretary General's conclusions in March of that year, 2003 marked a sea change for Cyprus. Through the vicissitudes of the democratic process, three of the four keys to the Cyprus Problem changed hands, placing the EU in a bind and complicating the UN-led mediation process in ways not then foreseen. In February, three months after the European Council confirmed that Cyprus would join the next round of EU enlargement, the Greek Cypriots elected Tassos Papadopoulos as their new president.⁴⁷ Only a month later, Recep Tayyip Erdogan became prime minister of Turkey. Finally, mounting popular discontent among Turkish Cypriots began to put serious pressure on Denktash, forcing him in April to demonstrate good faith in the negotiation process by opening crossing points between the North and South for the first time in thirty years. These three factors dramatically altered the momentum in the negotiations. In an ominous portent on the Greek Cypriot side, Papadopoulos won the presidency by actively campaigning against the Annan Plan.⁴⁸ In Turkey, conversely, the election of Erdogan represented a glimmer of hope: a moderate, pro-European leader who might help counter the Turkish military's influence in Cyprus. Finally, the groundswell of opposition to Denktash in the Turkish Cypriot community presaged his marginalization in the coming referendum and indicated that the Turkish Cypriot people might be willing to embrace a settlement even if Denktash would not.⁴⁹

These changes had two immediate implications. First, the election of Papadopoulos gave rise for the first time to the possibility that the Greek Cypriots might not support a settlement – an outcome that the UN mediation team recognized only belatedly. Second, it effectively sidelined Turkey as a major obstacle to settlement and, also for the first time, empowered moderate Turkish Cypriots to have a voice in their future. By not internalizing this new dynamic, the UN team compounded the EU's mistake and missed yet another opportunity to induce ripeness.

⁴⁷ The Copenhagen European Council meeting concluded in December of 2002, in which it became clear that Cyprus would join the next round of EU enlargement, scheduled for May 2004.

⁴⁸ Papadopoulos defeated pro-settlement Glafkos Klerides by a 52-39 percent margin. It is unclear to what extent the promise of EU accession altered or influenced Greek Cypriot attitudes in the run-up to the February 2003 elections.

⁴⁹ The Turkish Cypriot parliamentary elections of December 2003 increased this trend toward isolating Denktash. The elections ultimately empowered pro-settlement Mehmet Ali Talat to assume the role of lead negotiator in his new capacity as Prime Minister.

The combination of high-level UN engagement, the inexorable momentum of the EU accession process, and the seeming inability of the Cypriot leaders to compromise prompted de Soto to assume a unique responsibility. When negotiations resumed following Annan's despondent report to the Security Council (with only twelve months remaining until formal EU accession), both parties conceded to a UN role in "filling in the blanks." On any issues where both parties were unable to reach a mutually acceptable compromise by the deadline, the UN would have the authority to act as arbiter and literally write the final agreement in an effort to bridge the gap.

De Soto conducted the mediation's last stand in remote Bürgenstock, Switzerland, a mountain town chosen for its isolation in an effort to compel the parties to focus on a settlement free from media distractions. De Soto hoped also that the presence of Turkey at the negotiating table might break the impasse in the negotiations and generate the necessary momentum to reach a settlement. Unfortunately, Bürgenstock only confirmed that the keys had changed hands: President Papadopoulos absented himself from the negotiations for several days, even as his new Turkish Cypriot interlocutor Talat (with a moderate Turkish government providing support) seemed willing to pursue a final settlement. When the parties failed to reach agreement, the UN assumed its ceded role and "filled in the blanks" to produce the final version of the Annan Plan that would be presented to the two Cypriot communities; it is at this point that many Greek Cypriots feel that the plan tilted too far in favor of the Turkish Cypriots.

The UN led mediation effort succeeded where others had not: it produced a comprehensive settlement that offered Cypriots the first opportunity in their history to vote directly for their future. And on April 24, 2004, vote they did: the Turkish Cypriots supported the Annan Plan for reunification by a 65 percent-35 percent margin; while the Greek Cypriots voted overwhelmingly to reject it with almost 76 percent casting a negative ballot.

By de-coupling settlement of the Cyprus Problem from the process of EU accession the EU hoped to force the Turkish Cypriots to compromise and accept reunification. In that sense, the gambit proved successful – the Turkish Cypriots supported the Annan Plan. Ironically, however, Cyprus still joined the EU as a divided state. The EU made a drastic miscalculation, failing to appreciate the extent to which the

“accession carrot” would alter the incentives of the Greek Cypriots to pursue settlement. In the process of securing the Turkish Cypriot and Turkish keys, it allowed the Greek Cypriots to remove their own. The UN mediation effort also suffered from an inability to effectively respond to the changed political dynamic in the wake of the 2003 elections. Already committed to a directive mediation strategy focused on the Turkish Cypriots, de Soto’s team struggled to adjust to the fact that the missing key now lay in the hands of the Greek Cypriots.

Picking Up the Pieces

The aftermath of the 2004 Annan Plan failure ushered in a new era in Cypriot relations: this time the Greek Cypriots played the spoiler. Papadopoulos took the name “Mr. Never” (to Denktash’s infamous “Mr. No”). Fortunately, cooler heads now prevail in Nicosia. Mehmet Ali Talat assumed the presidency for the Turkish Cypriots in 2005 following a strong pro-settlement campaign. In February 2008, Greek Cypriots elected Dimitris Christofias president; Christofias also campaigned on a pro-reunification platform.⁵⁰ The two men share a close personal relationship as well as a common political affiliation within their respective communities. Under Christofias the Greek Cypriots changed their obstructionist course and reopened the negotiation process. Formal bi-communal negotiations officially commenced on September 3, 2008.⁵¹

⁵⁰ It is not clear what prompted the Greek Cypriots to depose Papadopoulos in favor of Christofias (albeit by a very close margin; in the first ballot three parties split approximate thirds of the electorate). Though clear that the Greek Cypriots preferred a pro-settlement candidate, there is little information to explain the change in Greek Cypriot attitudes from 2003.

⁵¹ The new negotiation process includes working groups focused on building consensus on all the major substantive issues under negotiation (property, power-sharing and governance, security and guarantees, territory, economic matters, and EU matters). At Greek Cypriot insistence, the negotiations are beginning ostensibly from scratch, with no reference to the Annan Plan (Talat has said the Annan Plan “will not be on the table, but it will certainly be on my chair”).

The Role of the Mediator

The UN enjoys a relatively uncontested claim as rightful mediator.⁵² A recent International Crisis Group report concluded, “The UN remains the only credible mediator or facilitator between the Greek Cypriots and Turkish Cypriots.”⁵³ However, consent to the UN serving as mediator does not extend to agreement over *how* the UN should fulfill that role, a point of contestation the ICG acknowledges by including the words “or facilitator.” Reviewing the recent history of the Annan Plan mediation effort illuminates several areas of contention. First, both sides (though particularly the Greek Cypriots) objected to what they saw as an overly manipulative form of mediation characterized by compulsion and threats. Second, related to the first point, the parties want a “Cypriot solution.” Such a solution must originate from the parties – it cannot be imposed by the Secretary General (or his Special Advisor). Finally, the parties explicitly reject an artificial timetable to narrowly confine the negotiation process.

In recognition of the parties’ renewed commitment to the negotiation process (and concomitant with their formal resumption last September), Secretary General Ban Ki-Moon appointed former Australian Foreign Minister Alexander Downer as his new Special Advisor to the Cyprus Problem. How can Downer learn from de Soto’s mistakes (and successes) and help mediate a just and lasting settlement? Early indications suggest that Downer has learned from the collapse of the Annan process; he explicitly described his role as one of a “neutral facilitator.” Secretary General Ban also reassured the parties that he envisioned the UN in a facilitative role, rejecting the notion that Downer would function as arbitrator.⁵⁴

⁵² The other major players – the EU, the United Kingdom, the United States, and NATO – all provoke the disapproval of one or both parties. The Turkish Cypriots will not accept an EU role, given its presumed fealty to the Greek Cypriot member state. The UK is viewed with suspicion by both sides, given its colonial history. Greek Cypriots blame the U.S. for failing to prevent the Turkish invasion in 1974, and view NATO with suspicion by virtue of Turkish membership. For an interesting discussion of Cypriot attitudes vis-à-vis the UK, see the UK House of Commons “Visit to Cyprus” report. HC 196, published February 6, 2009.

⁵³ From “Reunifying Cyprus: The Best Chance Yet,” Europe Report No. 194, June 23, 2008. The report cites a 2007 UNFICYP survey demonstrating bi-communal support of the UN good offices mission hovering around 80 percent among both populations.

⁵⁴ See e.g., “Ban Assures of UN Interest to Reach a Cyprus Settlement the Soonest Possible,” *Greek News Online*, July 14, 2008.

Downer's embrace of the "neutral facilitator" role represents a departure from de Soto's directive strategy. Instead, he seems to be adopting what Zartman and Saadia Touval term a "communication-oriented and facilitative" approach to mediation, one devoted to enhancing mutual understanding. (Kressel and Pruitt 1989, pp. 115-37) On the spectrum of mediation strategies in international conflict, the facilitative approach occupies the opposite pole to a directive approach; it is the most passive form of intervention. The facilitative approach emphasizes building trust and channeling information, and exerts little control over the actual substance and form of the negotiation process. Downer's approach stands in stark contrast to that embraced by de Soto, and reflects both the changed conditions since 1999 and the lessons emerging from the Annan Plan negotiations. In rejecting the directive approach, Downer implicitly contends that the appropriate referent point for Cyprus is not Holbrooke's experience in Bosnia but rather George Mitchell's mediation efforts in Northern Ireland.

This perspective reflects broad sentiment among Cypriots, who repeatedly compared the Cyprus Problem to the Northern Ireland dispute. Downer's conclusion follows Bercovitch in recognizing that the facilitative approach tends to be the most effective with respect to "intractable conflicts." Given its long duration and relative lack of movement (Cyprus is often described as a "frozen conflict") the intractable label seems appropriate – and Downer's approach therefore logical. Mitchell's experience is salient in the Cypriot context for another reason: he too assumed the role of neutral mediator, pursuing a process-oriented, relationship-focused model of mediation that emphasized the potential for mutual gains. De Soto followed Holbrooke in assuming the role of advocate, emphasizing (particularly with regard to the Turkish Cypriots) the cost of non-agreement and focusing on lowering the value of alternatives.⁵⁵

The Mitchell model also addresses the second concern of the Cypriots emerging from the Annan Plan negotiations: the demand that any settlement be a "Cypriot settlement" not imposed by external actors. By stepping back from the negotiations and

⁵⁵ Negotiators often use the concept of the "best alternative to a negotiated agreement" (BATNA), which describes the party's red line (what Zartman terms the "security point"). Holbrooke focused on lowering the BATNA of the parties to the Bosnian conflict.

reclaiming the “neutral” mantle, Downer allows the parties to take complete ownership both of the negotiation process and of a future agreement.

Finally, Downer respects the parties’ opposition to an externally imposed artificial timeline. This distinguishing feature of the current mediation process supports the overall strategy of non-interference, again focusing on the facilitative aspect of the mediator’s role. In this spirit, Downer convened the new negotiation process “under the auspices” of the UN – not under “the direction” of the UN. This important distinction empowers the leaders of the two Cypriot communities to direct their own fate, and entrusts them with the responsibility to persuade their constituencies of the value of a negotiated settlement.

Cautious Optimism

In a March 2008 editorial, de Soto warned about the perpetual “false dawn” in Cyprus – the alluring perception that settlement is always just around the corner. Yet several factors support the prospects for settlement in the current negotiation process. First, leadership is crucial. For the first time in decades, both communities are represented by conciliatory leaders, who share the added benefit of a close personal relationship. Second, the facilitative approach adopted by the UN offers the possibility of framing a settlement in positive-sum terms by emphasizing mutual gain. Third, the parties’ can negotiate free from the constraints of an externally imposed deadline. Finally, the international community is losing patience with the Cyprus Problem. It threatens EU-NATO relations, hinders Turkey’s accession process, and destabilizes the eastern Mediterranean; pressure is again building for agreement.⁵⁶

Unfortunately, neither party seems to perceive a mutually hurting stalemate. As a recent UK report notes, “For many the status quo is comfortable, and at the moment no one is campaigning for people to take the risk of change.” Clearly, Turkish Cypriots stand to gain from a settlement – but the mood has soured since the 2004 referenda. For Greek Cypriots the tangible benefits are less evident. Indeed, their rejection of the Annan Plan

⁵⁶ Though it should be noted that Secretary General Ban, cognizant of Annan’s experience, is reluctant to extend his unqualified support to the process until it shows sincere signs of progress.

suggests that additional concessions will be necessary to garner sufficient Greek Cypriot support. As de Soto notes, “Finding a fair balance that satisfies the Greek Cypriots without losing the Turkish Cypriots will be a difficult task.”⁵⁷ Finally, while true that no official timeline circumscribes the negotiations, elections in Northern Cyprus loom in 2010. As Talat faces declining approval ratings (45 percent to Christofias’ 75 percent), the need for real progress before the elections creates genuine urgency in the current negotiations.

Recommendations

Downer is right to adopt a passive role at this stage. He should concentrate his efforts on **maintaining momentum in the negotiations, on framing the agreement in positive-sum terms, and on building perceptions of credibility and fairness in the negotiating process.** In this he should look to Mitchell’s example in Northern Ireland, and his public (and private) rhetoric should reflect this new conception of the situation. In Bosnia Holbrooke constantly emphasized the high cost of failure, speaking of the “abyss” awaiting the parties in the event of non-agreement. In Northern Ireland, by contrast, Mitchell emphasized the “pot of gold” that each party stood to reap from an agreement. Where Holbrooke pointed to the mutually hurting stalemate, Mitchell chose instead to present settlement as a mutually enticing opportunity.⁵⁸ It is from this latter example that Downer should take his inspiration.

Framing an agreement in positive-sum terms presents a serious challenge to communities with a history of zero-sum relations, a situation compounded by a tendency to be more sensitive to potential losses than potential gains.⁵⁹ Creating the perception of a mutually enticing opportunity will require Downer to adroitly navigate the mediation,

⁵⁷ From “Another false dawn?” *International Herald Tribune*, March 28, 2008.

⁵⁸ The mutually enticing opportunity is another Zartman concept that seeks to imagine another form of inducing ripeness for negotiations in the absence of a mutually hurting stalemate. See e.g., “Concepts: Mutually Enticing Opportunity (MEO),” in the Processes of International Negotiation (PIN) Project, Newsletter 24, 2005.

⁵⁹ This is particularly important in the Greek Cypriot context, where the sense of residual loss from the 1974 invasion pervades negotiation positions and attitudes. A second point with respect to prospect theory (the idea that people are more sensitive to loss than to potential gain) contains salience for negotiation: as Zartman notes, the theory implies that mediators should embrace “coercion rather than inducement.”

maintaining impartiality in his “facilitative” role while simultaneously seeking to enlarge the negotiating space to help the parties imagine a constructive solution. In this Downer has an advantage. Though both a hurting stalemate and an enticing opportunity are perceptual in nature, the stalemate describes an exogenous situation. An enticing opportunity, conversely, emerges endogenous to the negotiations. Accordingly, the mediator can influence the endogenous framework of negotiation by invoking a mutually enticing opportunity even when unable to bring exogenous pressure to bear to compel a mutually hurting stalemate.⁶⁰

A mutually enticing opportunity alone, however, may prove insufficient to motivate the parties to embrace a compromise solution. How, then, to influence the exogenous factors? Downer cannot create a mutually hurting stalemate – nor should he try. De Soto’s experience demonstrates that pressure from the mediator will backfire. Instead, **pressure to create exogenous terms conducive to agreement must come from outside the mediation process**, depending on who holds the missing key. If the Greek Cypriots prove obstinate on the verge of agreement, the European Union should emphasize the cost of playing the spoiler – the Greek Cypriots cannot again afford to appear to be the obstacle to a settlement in Cyprus. If the Turkish Cypriots prove reluctant in the final reckoning, the United States should leverage its relationship with Turkey to help motivate an agreement. When an agreement is nigh, Downer will need to call on broader resources. For now, he needs to focus on a facilitative role in mediating the parties toward convergence.

This, then, is Downer’s task. Given the lack of concerted high-level pressure and the absence of a mutually hurting stalemate, only the promise of mutual gains can entice the parties to the long-awaited solution to the Cyprus Problem.

⁶⁰ An agreement emerging from the perception of a mutually enticing opportunity offers another benefit of particular relevance in the Cypriot context: it will likely prove more sustainable than an agreement made in the presence of perceived coercion. An example from Holbrooke and Mitchell’s experiences illuminates the contrast: where in Bosnia one of the signatories (the Bosnian president) described the agreement as “a bitter and unjust peace,” the opposing parties in Northern Ireland agreed that their settlement represented a “principled compromise.” Given the small size of the island and the history of combative relations dating back to the founding of the Republic in the early 1960s, the perception of a just and lasting solution is crucial to the future stability of a unified Cyprus.

11. Political Parties and the Cyprus Problem:

The Way Forward

Rose McGovern

Political parties in Northern and Southern Cyprus are striking in that their political positions do not stem from their ideological bent; instead, political platforms are built from the parties' varying positions concerning the resolution of the Cyprus problem. In both the Republic of Cyprus and the Turkish Republic of Northern Cyprus political strategizing continually alters the availability of space for effective negotiations.

Republic of Cyprus

There are three dominant political parties in the Roc, namely, AKEL (Progressive Party of the Working People), DIKO (Democratic Party), and DISY (Democratic Rally). Through their interactions with smaller parties such as EDEK (Movement of the Social Democrats) and OIKOLOGOI (Cyprus Green Party), these parties determine the political climate in which a Cyprus resolution proposal is received. At no time did political stratagem, ideology, and individual leadership influence negotiations more than during the Annan plan process. Political alliances facilitated the rise of a stridently anti-Annan plan president, leading the majority of the population to oppose the plan as well. Yet political positioning has resulted in the election of a moderate Greek Cypriot president today and is facilitating current negotiations.

AKEL

AKEL is the oldest and largest political party in the South. Originally a communist party, AKEL managed to maintain its relevance following the dissolution of the Soviet Union by focusing its policies on reconciliation and collaboration with the North (Charalambous 2007, p. 439). Indeed, prior to the Turkish intervention and subsequent partition of the island, AKEL boasted both Greek and Turkish Cypriot members. This pro-resolution position attracts Greek Cypriots from every level of society, including

leftist members of the middle and upper class who might otherwise disagree with the party's social agenda (p. 427).

AKEL's long history of collaboration and compromise has resulted in coalitions with ideologically different parties. In 2003, AKEL backed presidential candidate Tassos Papadopoulos from DIKO, a small, centre-right nationalist party known for its intransigence on the Cyprus problem. The alliance allowed AKEL politicians to secure high-level positions in government for the first time since Cypriot independence. In addition, Papadopoulos supported AKEL chairperson Dimitris Christofias in his successful campaign as president of parliament in return for AKEL's support (p. 432). Following this alliance, AKEL parliamentarians were forced to balance their reputation as a moderate, pro-unification party with the strategic, power driven alliance with DIKO.

This new reality was demonstrated in AKEL's approach to the Annan plan referendum. Christofias fully supported negotiations throughout 2001-2004, yet with public opinion slowly moving against the plan and Papadopoulos' "no" campaign in full swing by late 2003, Christofias played it safe by allying with DIKO and coming out against the plan. This move shocked AKEL members, who believed the party had betrayed its core principles. Not only did prominent AKEL politicians break away from the party in protest, but AKEL also lost popularity amongst its supporters, as demonstrated by its lackluster performance in the June 2004 European parliamentary elections following the referendum.⁶¹ Due to such outcry, Christofias backtracked, stating that he would support the Annan plan if the UN allowed both sides more time to explain it to the Cypriots.⁶² Christofias' professed logic was that AKEL wanted to see Cyprus unify with an overwhelming "yes" on the Greek Cypriot side. Such a request reveals Christofias' political rather than principled motivation for opposing the plan. His willingness to support the plan without revisions if given more time demonstrates that its terms were acceptable to him. Yet considering his party's standing in parliament and in the governing coalition, he made a strategic decision and delivered what is now

⁶¹ AKEL captured only 27.89 percent of the vote, down from 34.7 percent of the vote in 2001. Ker-Lindsay, James. "A Second Referendum: The May 2006 Parliamentary Elections in Cyprus." *Mediterranean Politics* 11.3 (2006), p. 441.

⁶² DISY supported the plan.

considered a “soft no.” (Ker-Lindsay 2006, p. 442) The disappointment following Christofias’ announcement suggests that with strong, positive political leadership, he could have solidified the ‘yes’ camp and provided undecided voters an otherwise absent message from the governing coalition that the Annan plan was in their best interest.

Though AKEL still justifies its decision regarding the Annan plan, the party’s recent political moves suggest that it has regained its political confidence. The 2006 parliamentary elections, always a barometer for the results of the presidential elections, were telling. Considered a second referendum by some, AKEL stood strong, regaining parliamentary seats after a marked decrease in the wake of the party’s poor performance during the Annan referendum. Still, AKEL did not gain the highest percentage of votes. Given this, most political analysts did not believe Christofias would stand for the presidency in 2008. (Ker-Lindsay 2006, pp. 445-46) This time, however, Christofias demonstrated political courage by breaking with the DIKO leadership and running against Papadopoulos, whose party had secured the most votes in the parliamentary elections. True to his party’s ideological bent, Christofias ran on a pro-resolution platform. Christofias emerged victorious, demonstrating that, as in the past, a significant number of Greek Cypriots would like to see a resolution (pp. 445-46).

Christofias’ decision to step down as AKEL chairperson in January 2009 was a surprise, yet this could be a positive development that will allow him to focus primarily on negotiations and remove any restraints stemming from the AKEL-DIKO alliance. Outside observers are confident that the new AKEL president, Antros Kyprianou, remains committed to a resolution. Previously spokesman for AKEL, Mr. Kyprianou, in a meeting with the SAIS group, emphasized that the party’s primary goal is still to solve the Cyprus problem.⁶³ He recognizes that political party leadership is key and acknowledges that positive statements by political parties throughout the process can maintain the necessary momentum for a resolution. Such statements suggest Mr. Kyprianou is aware of and willing to use his party’s influence to facilitate successful negotiations.

⁶³ Meeting with AKEL spokesman Mr. Antros Kyprianou, AKEL headquarters, Nicosia, Cyprus, 13 January 2009.

DIKO

Formed in 1976, DIKO is a notable force in Greek Cypriot politics, running the government under both Spyros Kyprianou (1977-88) as well as Tassos Papadopoulos (2003-2008). Such results can lead to a skewed gauge of popular support for the party. Though DIKO has a strong base, its accession to power lay mainly with its adeptness in forging alliances with AKEL and DISY. (Ker-Lindsay 2006, p. 443) In 2004, DIKO's success in forming an alliance with AKEL, along with DISY's political missteps (discussed below), secured Papadopoulos' ascendance to power.

The results of majoritarian presidential elections do not always reflect the preferences of the citizenry. Once elected, however, politicians can develop and implement policy as they see fit. In Papadopoulos' case, this was to wage a campaign against the Annan plan, and, as he directed negotiations during its final stages, he had an inordinate amount of influence over the messages the Greek Cypriots received concerning its benefit to them. It is a tribute to Papadopoulos' strong personality and views concerning a resolution that 76 percent of Greek Cypriots voted against the Annan plan. This stands in stark contrast to the 50 percent of Greek Cypriots who supported the plan under Clerides.⁶⁴ Papadopoulos, who was kept in place by the AKEL alliance while in parliament, was free to build up opposition to reunification once elected president.⁶⁵ Papadopoulos did not mince words and delivered a clear message to the Greek Cypriots concerning a resolution, a method that proved effective.

Currently, DIKO remains suspicious of the current negotiation process with the North. The leadership believes that Turkey is controlling negotiations and settling Turkish citizens in the North as part of an expansionist policy.⁶⁶ DIKO believes that Turkey will only allow Talat to reach an agreement if it preserves the interests of the

⁶⁴ In February 2003, after Papadopoulos had just been elected, an opinion poll showed that 50 percent of Greek Cypriots approved of the Annan Plan. Ker-Lindsay, James. *EU Accession and UN Peacemaking in Cyprus*. New York City: Palgrave Macmillan, 2005b, p. 86.

⁶⁵ Interestingly, however, Papadopoulos never stated he was against the plan prior to his election. Ker-Lindsay, "Cyprus," 2005, p. 976. James, Jennie, Anthee Carassava, and Pelin Turgut. "Will He Or Won't He?" *Time Europe* 161.9 (2003), p. 32.

⁶⁶ Meeting with DIKO Deputy President, Mr. Yiorgos Kolokasides, and spokesman of the party Mr. Fotes Fotlou, House of Representatives, Nicosia, Cyprus, 13 January 2009.

Turkish state, and, therefore, that negotiations reflect only Turkey's concerns. To this extent, DIKO believes that room for negotiating is severely restricted.

DISY

DISY is a centre-right political party that governed the country under Clerides for ten years. In light of Clerides' promise to step down after his second term as president, DISY party members managed to secure an alliance with EDEK for the 2002 presidential elections. However, Clerides declared at the end of his term that he would run for a short, 14-month term in order to oversee the end of negotiations. Clerides' announcement sent the presidential race spinning. DISY abandoned its support for the EDEK candidate, forcing EDEK back into the DIKO-AKEL alliance. Furthermore, Alecos Markides, Clerides' Attorney General, announced he would run as an independent. An integral member of the negotiating team, Markides deflated Clerides' argument that it was important to keep the same negotiation team at the helm. (Ker-Lindsay 2005, p. 975) Thus, Papadopoulos' victory can be seen as the result of three factors: DISY's internal split, a desire for change after Clerides' ten-year administration, and a base of anti-resolution constituents. (p. 976)

If DISY had remained united with EDEK, Papadopoulos might not have had a clear victory.⁶⁷ This conjecture only serves to stress that the election cannot be seen as early referendum on the Annan plan. There was growing dislike against it in the public, yet internal political squabbling contributed just as much, if not more, to Papadopoulos' victory. At a time when Greek Cypriot support for the Annan plan was evenly split, political stratagem, not overwhelming public sentiment, resulted in the election of Papadopoulos. With different political leadership that stressed the benefits rather than the potential losses from a resolution, public opinion could easily have swung in favor of the Annan plan.

DISY is one of the few parties that supported the Annan plan. At the helm of the "yes" campaign, DISY belatedly attempted to counter Papadopoulos' "no" machine.

⁶⁷ He captured 51.5 percent of the vote in the first round. Ker-Lindsay 2005b, p. 51.

Against a government that banned interviews with members of the international community, including the UN mediator, in the run-up to the referendum, DISY had little chance of reversing the growing opposition to the Annan plan. (Ker-Lindsay 2006, p. 108) Today, however, DISY remains positive. DISY parliamentarian Manolis Christophides stresses that a solution to the Cyprus problem is essential and openly supports Mr. Christofias' negotiation efforts.⁶⁸ Such positive statements carry on the tradition of a party that has consistently pushed for a solution amenable to all Cypriots.

Turkish Republic of Northern Cyprus (TRNC)

The most recent presidential elections in the TRNC saw the rise of a moderate, pro-reunification leader, Mehmet Ali Talat. The election of Talat shifted the balance of power in government from parties that traditionally opposed reunification to those that have long advocated for it. Yet there is a distinct possibility that the upcoming parliamentary elections, recently rescheduled for April 2009, could result in the parties opposed to a bi-communal, bi-zonal solution regaining the majority in Parliament.⁶⁹ Currently, Mr. Talat's pro-resolution, centre-left party CTP (Republican Turkish Party) and the ORP (Liberal Reform Party) hold the majority in parliament over the hard line centre-right UBP (National Unity Party) and DP (Democratic Party) parties.

UBP

Founded by Rauf Denktash in 1975, UBP is a centre-right political party that maintained dominance in parliament until 2003.⁷⁰ Historically, UBP has advocated for a two-state solution, and it supported Denktash's platform during the Annan negotiations, a stance that contributed to UBP's loss of seats in the 2003 parliamentary elections.

Currently, UBP is the main opposition party, and though its members appreciate the ongoing negotiations, they feel that President Talat is too accommodating to the

⁶⁸ Meeting at the DISY party headquarters with Mr. Christophides, Nicosia, Cyprus, 13 January 2009.

⁶⁹ Originally, parliamentary elections were scheduled for February 2010.

⁷⁰ There was, however, a brief hiatus in power from 1994-1996 when DP broke away from UBP.

Greek Cypriots.⁷¹ UBP members believe that Turkish Cypriot leadership should advocate for TRNC's recognition and that, at the very least, negotiations with the Greek Cypriots should begin from a two-state solution platform.⁷²

In 2008, UBP rejoined parliament after boycotting it in 2006 due to the coalition government forged between CTP and ORP in 2006 (discussed below). (Faustmann and Kaymak 2008) UBP rejoined parliament upon the stipulation that discussions concerning constitutional reform and early elections would commence. To date, UBP remains the party most opposed to the current negotiation process.

DP

DP is a centre-right political party led by Serdar Denktash, Rauf Denktash's son. In January 2004, Talat managed to forge a coalition administration between DP and his own party, CTP. (Ker-Lindsay 2005, p. 977) This new alliance guaranteed that Rauf Denktash remained the lead negotiator throughout the final stages of the Annan process, as DP supported his platform. However, in the final week before the referendum, Serdar Denktash announced that DP wanted its members to vote as they desired, thus breaking with his father's call for DP to officially oppose the Annan plan. (Ker-Lindsay 2005b, p. 108)

The alliance between DP and CTP broke down in 2006. After a number of DP party members defected and formed a new party, ORP, CTP decided to dissolve its coalition with DP and form a new alliance with ORP. Following this move, DP announced that it would boycott parliament in protest over what it viewed as unethical politicking. However, in 2008, after receiving guarantees that constitutional amendments and electoral reform would be addressed by parliament, DP rejoined parliament with UBP.

⁷¹ Meeting with Mr. Hasan Tacoy, UBP Member of Parliament, Head of Lefkosa District Branch, Lefkosa, Cyprus, 16 January 2009.

⁷² This as opposed to the bi-communal, bi-zonal federation with a single international identity and two equal Constituent States parameters that Presidents Christofias and Talat agreed to on the 23 May 2008. See International Crisis Group. "Reunifying Cyprus: The Best Chance Yet" *Europe Report*, no. 194 (June 23, 2008): i.

Currently, DP seeks to become part of the international community and would like to see the establishment of a new state with two equal yet autonomous sides. DP party members remain suspicious of the Greek Cypriots' conception of the bi-communal, bi-zonal state, as they believe the South wants a process of osmosis to commence in which Greek Cypriots would eventually comprise the majority in the North as well as in the South.⁷³ Upon returning to parliament in 2008, DP supported a proposition to hold early parliamentary elections, largely in an effort to regain the majority in parliament and thus significantly influence the negotiation process. After almost a year of negotiations on the issue, the proposal for snap-elections was put to a vote in February 2009 and unanimously passed.⁷⁴ Parliamentary elections are now scheduled for April 19, 2009.

CTP

CTP is AKEL's sister party and has a long history of advocating for a unified Cyprus. Although CTP did not gain control of parliament until 2003, the party has always maintained a strong front against the right wing parties. As Denktash became more stridently opposed to a solution during the Annan negotiations, Turkish Cypriots became increasingly frustrated with his leadership, especially with the EU carrot hanging over the negotiation process. This largely accounts for CTP's accession to power in the 2003 parliamentary elections as well as CTP party member Talat's successful bid for the presidency in 2005. The Turkish Cypriots clearly signaled that in the wake of the Annan plan failure, they still wanted to reunite with the South. Yet recent opinion polls show that CTP's popularity is slipping. Likely a result of declining economic conditions along with frustration at how slowly negotiations are moving forward, such figures demonstrate that the Turkish Cypriots' patience with negotiations is faltering.

⁷³ Meeting with Serdar Denktash, Leader of the Democrat Party, Lefkosa, Cyprus, 15 January 2009.

⁷⁴ Today's Zaman, "Turkish Cypriots to Hold Elections on April 19," <http://www.todayszaman.com/tz-web/detaylar.do?load=detay&link=167458> (accessed 3/5/09).

Negotiations

The Cyprus problem is ripe for resolution, with both the necessary political leadership as well as the necessary international support in place. Yet the window of opportunity is a narrow one, and the future does not look promising if it closes. Parliamentary elections in April 2009 could bring more hard-line parties to the fore in the TRNC, making negotiations more complicated for President Talat. Indeed, recent polls favor the UBP, suggesting that the party could regain the majority of seats in parliament.⁷⁵ However, as long as President Talat is leading negotiations, the RoC has the chance to press forward successfully with negotiations. To this end, moving faster through negotiations is in the interest of both the Greek Cypriots and Turkish Cypriots. Above all, President Christofias and President Talat should aim to hold referenda before the TRNC presidential elections in April 2010. Allowing negotiations to lag beyond their period of co-governance would result in a missed opportunity.

Recommendations for the RoC

Communication

- History shows that the Greek Cypriots listen to their political leaders. Indeed, as the direct line of communication from the negotiation table to the populace, political leaders can influence the type of atmosphere needed to push through a resolution. **Clear, positive messages from President Christofias as well as the pro-resolution parties are necessary if a referendum is to be successful.**
- In light of this, **Mr. Christofias should refrain from sending mixed messages.** Stating his support for a compromise, yet intimating that the Turkish Cypriots are not willing to compromise, only reinforces Greek Cypriot reservations about the plan's benefit to them. The Greek Cypriots need to hear a clear, strong message from their leaders that a resolution will not be detrimental to their culture, material well being, and/or governance.

⁷⁵ "Turkish Cypriots to Hold Elections."

Support

- **The political parties opposed to the current negotiations in the RoC should recognize that President Talat is sitting at the negotiation table, not Turkey.** The international community, the European Union, and President Christofias himself recognizes this fact; so, too, then, should Greek Cypriot political leaders. Justifying disengagement by stating that their Turkish Cypriot counterparts are not empowered is either genuine ignorance of the situation in the North or a counter-productive political tactic. Either way, such political parties need to reassess the situation in order to retain legitimacy amongst the EU, the international community, and, ultimately, their supporters.
- Indeed, the international community's sympathy for the Greek Cypriot political parties opposing the negotiations is waning. As sympathy for the Turkish Cypriots was low under Rauf Denktash, so too it is now low for political leadership in the RoC that could have led their citizens to accept a resolution. Before the Turkish Cypriots decide to give up on the South, **the political parties should publically state that they support Christofias' efforts, the negotiation process, and a resolution.** As demonstrated by the Annan affair, if the political leadership sends clear, strong messages, the people will listen.

Recommendations for the TRNC

Communication

- The pro-reunification parties in the TRNC **need to reenergize their constituents.** Slow negotiations as well as the current economic downturn have led to the desire amongst some Turkish Cypriots for new leadership in parliament. President Talat as well as the CTP-OPR coalition **should regularly and clearly communicate the economic benefits of reunification as well as the necessity of maintaining the majority of pro-reunification parties in parliament to reach a solution.** President Talat should directly state that if the Turkish Cypriots want a solution, they should vote for those parties who want to see the current negotiations succeed.

Support

- The political parties opposed to a bi-communal, bi-zonal solution should recognize that their demand for a two state solution is an antiquated position that will not be taken seriously by the Greek Cypriots or the international community. If the parties want to be part of the international community, they must be willing to both support President Talat's efforts and to join him in rebuilding momentum for a solution. **A united policy toward the Cyprus problem in parliament would go a long way to demonstrate to the international community that the Turkish Cypriots will never again be an obstacle to reunification.**
- A united policy on negotiations will also demonstrate to the Turkish Cypriots that the political leadership acts according to Turkish Cypriot interests. The TRNC political parties should recall that the Turkish Cypriots voted overwhelmingly for the Annan plan, which was based on a bi-communal, bi-zonal federation, not a two-state solution. Thus, regardless of which party wins the majority in parliament, **the parties should work toward that outcome which the Turkish Cypriots signaled they desire.**

12. Turkish Settlers in Cyprus: Legality, Reality, and Possibility

Joshua Scharff

The issue of Turkish settlers in North Cyprus touches on many critical aspects of the Cyprus Problem. The presence of Turkish settlers in the North alters the demographics of the island and therefore implicates power-sharing arrangements, particularly where political representation would be proportional to population. Because many Turkish settlers live and work on land previously owned by Greek Cypriots, the subject is linked to the issue of property rights. In addition, immigrants from Turkey are a major part of the labor force in North Cyprus, and are consequently inextricably intertwined to the economics of reunification. It is therefore not surprising that the subject of Turkish settlers has long been a contentious issue in the effort to resolve the Cyprus Problem, subject to legal debate, public relations campaigns, and numerical distortions.

The first part of this chapter explores the legal and political arguments of both the Turkish Cypriots and Greek Cypriots in light of the reality on the ground. The second part of this chapter seeks to peel back the arguments of the parties in order to identify the underlying interests of the Greek Cypriots, the Turkish Cypriots, Turkey, and the Turkish Settlers themselves. After evaluating the positions and interests of the major parties, as well as the reality of the situation, it becomes clear that the Turkish settler issue is not as daunting as it first appears and that resolution of the issue is a real possibility. This chapter concludes by recommending a framework for a final agreement on the issue of Turkish settlers.

Greek Cypriot and Turkish Cypriot Positions

Unlike many issues in the Cyprus Problem, there is general consensus as to when the issue of Turkish settlers had its genesis. On July 20, 1974, Turkish troops invaded Cyprus and effectively cut the island in half. Following Turkey's military intervention on the island, there was a population transfer of Turkish Cypriots to the Turkish-controlled northern half of the island and Greek Cypriots to the southern half of the island that

remained in the effective control of the Republic of Cyprus. Shortly thereafter, Turkish nationals began to immigrate to the North in what was widely viewed as a Turkish attempt to change the demographics of island. When the Greek Cypriot community became aware of the Turkish immigration, the subject of Turkish settlers emerged as a contentious issue in the Cyprus Problem.

The crux of the Greek Cypriot argument concerning the Turkish settler issue is legal. Although the Greek Cypriot narrative has evolved to include the assertion that the Turkish Cypriots do not integrate well with the Turkish settlers and do not want them stay on the island, Greek Cypriots primarily rely on international law to justify their position. The legal argument of the Greek Cypriots may be divided into two parts: 1) The arrival and continued presence of Turkish settlers in Cyprus is a violation of international law that constitutes a war crime, and 2) the mass removal of Turkish settlers from Cyprus back to Turkey is in accordance with international law and norms (Louicades 1995, pp. 108-138). Given the fact that mass expulsion is a delicate political issue, it is no surprise that the Greek Cypriot narrative puts more emphasis on the first part of the argument.

The Greek Cypriot argument regarding the arrival and presence of Turkish settlers starts with Article 49(6) of the Fourth Geneva Convention, which states, “[t]he Occupying Power shall not deport or transfer parts of its own civilian population into the territory it occupies.” The commentary of the Fourth Geneva Convention explains that this provision, which falls under the Section III heading “Occupied Territories,” is intended to prevent an occupying power from worsening the economic conditions of the population in the territory as well as “endanger[ing] their separate existence as a race.” The commentary’s explanation of the provision makes it clear that Article 49(6) is applicable to both forced and voluntary settlement of an occupant nation’s population in an occupied territory (Henckaerts 1995, pp. 148-49). The Greek Cypriot allegation that the Turkish settlement of North Cyprus constitutes a war crime stems from Articles 85(4) and 85(5) of the First Protocol to the Geneva Convention. Article 85(4)(a) states that a willful transfer of an occupying power’s own population into occupied territory in violation of Article 49 constitutes a “grave breach” of the Convention. Article 85(5) states that such “grave breaches” amount to “war crimes.” The Greek Cypriots further look to the precedent of the Nuremberg Judgments as additional support that population

transfers by an occupying power to occupied territory is a war crime and crime against humanity.

In addition to international legal norms, the Greek Cypriot position also cites Cyprus-specific instruments of international law. The Greek Cypriot narrative references several United Nations General Assembly Resolutions, such as UNGA Resolution 3395 of November 20, 1975, which “urges all parties to refrain from unilateral action . . . including changes in the demographic structure of Cyprus,” and UNGA Resolution 34/30 of November 20, 1979 that “deplor[es] also unilateral actions that change the demographic structure of Cyprus.” Moreover, the narrative also includes reference to the UN Commission of Human Rights, which expressed through Resolution 1987/50 of March 3, 1987 that it was, “Alarmed by the fact that changes in the demographic structure of Cyprus are continuing with the influx of great numbers of settlers.”

While the Greek Cypriot legal argument regarding the arrival and presence of Turkish settlers is for the most part persuasive, reliance on the legality of the issue is a Greek Cypriot attempt to paint a black and white picture of a situation that falls more squarely in a shade of gray. The Greek Cypriots generally estimate that there are around 160,000 Turkish settlers residing in North Cyprus, and some claim the number has grown to over 200,000 as a result of recent rapid economic growth in the North. If the Greek Cypriot estimates are correct, the number of Turkish settlers in North Cyprus would exceed the number of Turkish Cypriots currently residing on the island. The Greek Cypriot number, however, is deceptive as it includes all Turkish nationals in North Cyprus at a given time. Temporary workers, student visa holders, soldiers, and even tourists are all considered settlers by Greek Cypriot terms. In reality, the only Turks who have permanent legal status in the North are those who have been granted citizenship by the Turkish Republic of Northern Cyprus. Between 1974 and 2003, the TRNC naturalized 45,689 Turkish nationals (Hatay 2007, Appx. 1). It is this demographic group alone that fits squarely into conceived notions of “settlers.”

Embedded within the Greek Cypriot argument is the faulty assumption that all Turkish settlers in Cyprus arrived as a result of a Turkish policy to populate the island with its nationals. Indeed, as previously noted, the Turkish government must have acted willfully in facilitating settlement in order for the presence of Turkish settlers to

constitute a war crime. While there may be some evidence that suggests a Turkish policy of encouraging settlement in Cyprus in the years immediately following the invasion of 1974, there is no support for the proposition that such a policy has continued since the beginning of the 1980s. Rather, it seems that the overwhelming number of Turkish immigrants to Cyprus moved to the island on their own accord in an effort to improve their economic well-being.

The second part of the Greek Cypriot legal argument states that the Republic of Cyprus has the right to expel Turkish nationals residing in the North. This position is based on the premise that the presence of Turkish settlers is a result of an illegal act committed by Turkey, and that allowing them to stay would be a retrospective validation of Turkey's illegal behavior (Loucaides 1995, p. 127). As a caveat to this argument, Greek Cypriot officials often add that the expulsion of Turkish settlers would be conducted with respect for human rights and that some exceptions may be made on an individual basis.

The Greek Cypriots may feel the need to include such a stipulation because their legal argument is on somewhat unstable grounds. Multiple sources of international law suggest that a blanket mass expulsion of the Turkish settlers would be illegal. For example, Article 4 of the Fourth Protocol to the European Convention of Human Rights states very clearly that, "Collective expulsion of aliens is prohibited." Subsequent case law concerning Article 4 strongly suggests that an expulsion of a group of aliens can only occur if each individual's case is reviewed separately and decided objectively on its own merits (Henckaerts 1995, pp. 11-12). In addition, pursuant to the International Court of Justice's 1970 advisory in opinion in *Legal Consequences for States of the Continued Presence of South Africa in Namibia (South West Africa)* as well as precedent set during German reunification, the TRNC's naturalization of Turkish nationals may be valid, within certain limits (Hoffmesiter 2006, pp. 53, 56-58). Therefore, the naturalized Turkish settlers would have certain rights and "the [Republic of Cyprus's] interest not to accept unlawful settlement at large does not completely outweigh the personal interests of every single immigrant . . ." (Hoffmesiter 2006, p. 58).

Although some Turkish Cypriot legal scholars respond to the Greek Cypriot argument with legal claims of their own, the current Turkish Cypriot narrative focuses

largely on the practicality of the situation as opposed to the legality. This, however, was not always the case. In the 1970s and early 1980s, Turkish Cypriot leaders understated the actual numbers of Turkish nationals migrating to the island, and claimed that the majority of them were temporary workers or Turkish Cypriots returning to Cyprus after emigrating during the British colonial years and the period of intercommunal conflict between 1963 and 1974 (Hatay 2007, pp. 5-7). This argument has since been replaced with a narrative that is based on the premise that the Turkish settlers are an important part of the population, many of whom have been living in Cyprus for nearly 35 years. Despite Greek Cypriot claims that the Turkish Cypriots feel disconnected from the settler population, the Turkish Cypriot position asserts that most of the Turkish population on Cyprus is integrated into the culture of the North. The settlers are not only a pivotal party of the workforce, but many have married, established families, and planted their roots in North Cyprus.

Interviews with political leaders of the TRNC, including President Talat, revealed that the Turkish Cypriots seek to minimize the settler issue by portraying it as a thing of the past. The Turkish Cypriot leaders concede that in the decades immediately following the division of the island, the political establishment in North Cyprus naturalized many Turkish settlers. They are quick to point out, however, that these large scale naturalization practices have ceased and very few Turkish nationals have been granted Turkish Cypriot citizenship in recent years. Moreover, the TRNC leadership minimizes the settler issue by emphasizing that the Greek Cypriot numbers of settlers are over-inclusive and by analogizing the situation to Greek immigration in the South.

The current Turkish Cypriot position is not surprising, given that most interpretations of international law are not on their side with regard to the arrival and presence of the Turkish settlers in the North. The lack of a legal defense is an obvious weakness of the Turkish Cypriot position. The Turkish narrative, however, is successful in highlighting the human component of the settler issue, as opposed to a legal and statistical perspective. Indeed, any final agreement must be sensitive to both the legal and practical arguments of both sides.

Relevant Interests

After evaluating the positions of the two main parties involved in resolving the Cyprus Problem, it is important to assess the underlying interests that give rise to their respective positions. The very nature of the settler issue, however, involves the interests of two other parties: Turkey, who would ultimately be responsible for repatriating settlers who have to leave Cyprus, and the Turkish settlers themselves. Therefore, the interests of the Greek Cypriots, Turkish Cypriots, Turkey, and the Turkish settlers will all be explored.

The main concerns of the Greek Cypriots vis-à-vis the Turkish settler issue is the relationship between demographics and power-sharing (including the fear of perceived Turkish settler loyalties to Turkey affecting governance), as well as property issues stemming from Turkish nationals occupying Greek Cypriot property. As a secondary interest, the Greek Cypriots also object to the Turkish settlers as a symbolic issue of sovereignty over the entire island. Although the Greek Cypriot position states that the settlers are illegally in Cyprus and therefore must leave, the Greek Cypriot leadership does not object to a certain number of settlers remaining in a unified Cyprus. In fact, President Christofias of the Republic of Cyprus recently stated that a certain number of Turkish settlers could remain in Cyprus for “humanitarian reasons,” such as those who married Turkish Cypriots, children of immigrants who were born on Cyprus, and those who are not healthy enough to relocate. The Greek Cypriots estimate that this number would amount to 50 to 55 thousand individuals. This statement by President Christofias seems to have widespread acceptance in Greek Cypriot politics.⁷⁶ Although the Greek Cypriot concerns relating to governance and property must be effectively addressed in negotiations and working groups on those respective issues, they must also be considered in determining the numbers of Turkish settlers allowed to remain in Cyprus.

While the Turkish Cypriots are also concerned about the demographic make-up of Cyprus and existing as a significant numeric minority, their interests run deeper. The economic emphasis in the Turkish Cypriot narrative suggests they are concerned about losing a significant portion of their workforce. Indeed, of the 70,525 Turkish nationals

⁷⁶ Even a representative of the Greek Cypriot Democratic Party (DIKO), whose party does not publicly support such a measure, admitted in a private interview that their objection was merely for the reason of maintaining a better tactical negotiating position.

residing in North Cyprus in 2006 who were not TRNC citizens, 30,577 of them were registered immigrant workers (Hatay, 2007, p. 35).⁷⁷ This figure reflects a significant increase in the number of work permits issued to Turkish nationals as a result of the recent economic growth in the North; consequently, the economy has become more dependent on their labor. With regard to the Turkish immigrants who have been granted TRNC citizenship, the Turkish Cypriots have a sociological interest in keeping that population on the island. Although in some areas of the North the Turkish immigrant population does not mix with the Turkish Cypriots, in many areas the communities are intermingled. Thus, the expulsion of Turkish settlers could result in the removal from Cyprus of friends, neighbors, and even family members of Turkish Cypriots.

Historically, Turkey's interest in Cyprus has been based on security, protection of Turkish minorities in the Turkish diaspora, and the use of the island as a political tool in Turkish-Greek relations. Although Turkey's initial settlement policies were designed to be in furtherance of these interests, Turkey's priorities have since changed. One of Turkey's main current foreign policy objectives is accession to the European Union. The EU has altered Turkey's calculus with regard to the Cyprus Problem by including the resolution of the conflict as one of the necessary preconditions for Turkey's EU accession. Turkey is therefore now willing to take certain steps to facilitate a solution to the Cyprus Problem. This includes allowing the return of Turkish nationals currently residing in North Cyprus to mainland Turkey. Evidence of Turkey's willingness to take such action can be deduced from Turkey's support for the Annan Plan, which called for the return of a significant number of Turkish nationals from Cyprus to Turkey. It is fair to assume, however, that it is not in Turkey's best economic interest to have a significant influx of Turkish nationals return to Turkey in a short period of time.

Perhaps because of the fact that the Turkish settlers in North Cyprus wield significantly less political power than the Greek Cypriots, Turkish Cypriots, and Turkey, the interests of the Turkish settlers are often overlooked. Yet the Turkish settlers are going to have to bear the majority of the burden in any final agreement on the issue. The

⁷⁷ The remaining Turkish nationals are mainly comprised of university students and dependents of Turkish army officers.

Turkish settlers, of course, would like to be in control of their own destinies. Because many of the Turkish nationals in Cyprus migrated for economic reasons, it is fair to say that their livelihoods are important to them and that North Cyprus offers them more economic opportunity. The Turkish settler vote on the Annan Plan referendum provides interesting insight into the views of the Turkish nationals in Cyprus. Although the overall majority of the Turkish settlers eligible to vote said “no” to the Annan plan, a fair amount of Turkish nationals voted “yes” (including, according to at least one study, 41 percent of settlers who live separately from Turkish Cypriots and 57 percent of settlers who lived in mixed areas with Turkish Cypriots) (Hatay 2007, p. 7, n. 29). Although some observers speculate a variety of alternative reasons as to why so many settlers voted “yes” (Palley, 2005 p. 85), the fact remains that many of them agreed to a plan that would return many Turkish nationals to Turkey and create a unified Cyprus with a Greek Cypriot majority.

Recommendation

In an effort to solve the complicated issue of Greek Cypriot property in North Cyprus, the Greek Cypriots have developed a proposal that gives the Greek Cypriot owners three different options on their land: 1) Full or partial restitution; 2) Full or partial compensation; or 3) Full or partial exchange of property. This proposal is based not only the idea that the Greek Cypriot owners should have a choice in the matter, but also on the assumption that only a small percentage of Greek Cypriot land owners will choose to reclaim their property when provided with two other options. The framework for resolution on the issue of Turkish settlers should be similarly structured. **The Turkish settlers should be given a choice in the matter of whether they stay or go, but a financial incentive system should be in place to ensure that the eventual numbers of remaining Turkish nationals will alleviate Greek Cypriot demographic concerns.** In this framework, it is important to differentiate between categories of Turkish nationals in Cyprus.

Turkish Nationals with TRNC Citizenship: Individuals within this group should be provided with the **option to 1) remain in Cyprus with full citizenship; or 2) return to Turkey with financial compensation.** Here, the financial compensation package should be high enough to encourage those who wish to return to Turkey, or who are

wavering in their decision, to voluntary repatriate. It should not, however, be too high as to encourage Turkish nationals who truly wish to stay in Cyprus that moving to Turkey is in their best interest. Provided that the Greek Cypriots have agreed in principle to allow 55,000 settlers to stay and around 46,000 Turkish nationals have been granted citizenship, this policy should not be offensive to Greek Cypriot interests.

Turkish Nationals on Temporary Visas: Individuals within this group should be provided with the **option to 1) remain in Cyprus but only throughout the length of their current visas; or 2) return to Turkey with financial compensation.** Here, the financial compensation should be less, given the temporary nature of their stay in Cyprus. Furthermore, the Turkish Cypriots and Greek Cypriots must meet to assess their labor needs, and set the financial compensation at a level where the amount of people who choose to leave does not exceed the minimum numbers that are required for the economy to fully function.

13. Security, Psychology, and the Role of Guarantees

Niv Elis

“We are the weak side.” – *Republic of Cyprus Official*

“We are the weak side.” – *Turkish Republic of North Cyprus Official*

For 35 years, the conflict in Cyprus has been frozen. The presence of a disciplined UN force in a buffer zone separating two ethnic groups on the small island, as well as a growing commitment to a peaceful settlement on both sides, has helped prevent significant violence from erupting since 1974. Yet, despite this sustained quiet, the Greek and Turkish Cypriots both cite security as one of the overarching problems standing between them and a negotiated settlement. Naturally, each side seeks to ensure its physical, economic, and political security. Despite the fact that the tumultuous geo-political context which bred Cyprus’ independence, clashes, and division has changed dramatically, both sides remain entrenched in the collective fears of the past. While a number of viable solutions are available to allay the security concerns of both sides, additional efforts will be necessary to ease wide-spread fears, bolster new arrangements, and “sell” the plans to the public.

Among the most contentious issues is the status of the Treaty of Guarantee, signed by the United Kingdom, Turkey, and Greece alongside the treaty that granted Cyprus its independence in 1960. The treaty sets out to “recognize and guarantee the independence, territorial integrity and security of the Republic of Cyprus,” and promises that the signatories will “prohibit, as far as lies within their power, all activity having the object of promoting directly or indirectly either the union of the Republic of Cyprus with any other State, or the partition of the Island.” Although the provisions of the 4-article treaty are fairly innocuous given their conditionality, they have taken on strong significance since the violence of 1974. When the Greek military junta that ruled Greece at the time staged a coup on the island and attempted to annex it, Turkey reacted by sending its army into the North. Turkish Cypriots are quick to point out that Turkey behaved legally and legitimately to defend their rights from one of the ills laid out in the Treaty of Guarantee. Greek Cypriots are quick to respond that when the military junta in

Greece fell and its troops were withdrawn, the Turkish army did not leave, and remains until this day. For Greek Cypriots, this is the defining issue of the conflict: Turkish occupation. Turkish Cypriots, on the other hand, believe that the Turkish army has remained to defend them from domination by their Greek-speaking counterparts.

Engaging though the polemic is, both the current reality and the reality that will emerge from a negotiated settlement differ markedly from the situation that precipitated the events of 1974. An examination of the historical context of the security concerns each side has voiced and discussion of how circumstances have changed over time can demonstrate these differences. Psychological concepts can help explain why perceptions have not caught up with reality and offer some possible solutions.

Security Concerns and their Origins

Dimitris Christofias, the current RoC President stated that he opposed the 2004 Annan plan solely on security grounds. Indeed, many Greek Cypriots considered the continued Right of Guarantee for Turkey to be a non-starter. In their view, Turkey has its eyes firmly on controlling Cyprus. Turkey's strategy for controlling the island is multi-pronged. For one, it is said, Turkey firmly controls the Turkish Cypriot leadership, and plans on using the equal voting rights to dominate the island politically. Secondly, the theory goes, it insists on maintaining the Treaty of Guarantee so that it can use it as a pretext to invade the island at some future date. Greek Cypriots remain imminently aware that despite their majority on the island, militarily powerful Turkey is only 40 miles north (a mere 8 minute flight in a jet fighter) while weaker Greece is 800 miles away.

Turkish Cypriots' security concerns stem from their minority status, although they are loath to use that term because it implies they are somehow "outsiders." The fact remains that before 1974 Turkish Cypriots made up only 18 percent of the Cypriot population and today still make up only about a third (including settlers/immigrants). In addition to physical security, they fear "domination" by their Greek counterparts. They worry that their culture, language, and values may be assimilated under majority Greek

Cypriot rule, and that they may have no recourse if systematically attacked, as has happened in the skirmishes of the past.

Fears do not form in a vacuum. Both sides retain a collective memory and narrative which they use to define and explain the actions of the other. Unfortunately, in conflicts of this nature, there is enough historical blame to go around for each side to make a compelling case to depict themselves as the victim. It is important to remember that the Cyprus problem evolved in the context of the Greek-Turkish relationship, which has been fraught with tension throughout its history. It was actually unrest on Cyprus that irritated the relationship in the 1950s, when Greek Cypriots sought *enosis*, or unity with Greece and riots shook Nicosia. The agreement laid out in the 1960 Treaty of Founding gave Turkish Cypriots significant political rights, but Turks withdrew from the government when Archbishop Makarios tried to curtail those rights. “Community violence” in that period created enclaves of Turkish Cypriots, and invited flyovers from Turkey on several occasions of particular sharp conflict.

In the meantime, Greco-Turkish relations soured over oil reserves discovered under the Aegean Sea. As military tension brewed between the two, the Greek junta (in power since 1967) promoted the coup on Cyprus seeking *enosis*, and Turkey responded by taking over the northern part of the island. Through the fighting, the Greek and Turkish Cypriot communities split, separating into two ethnically homogenous factions. The population exchange involved loss of property, an issue which remains central to the conflict today. While grievances are to be expected given the violence, psychology can give us further insight.

The Fundamental Attribution Error is a well-documented social psychological phenomenon.⁷⁸ Attribution refers to how people explain both their own and others’ actions. When people reflect on their own actions (particularly those that they view as negative), they tend to explain the action as a result of specific circumstances. However, when others act in negative ways, the assumption tends to be that it is their disposition, premeditated intention, or personality, not the situation, that is responsible for the

⁷⁸ See Jones, E. E. and Harris, V. A. (1967). The attribution of attitudes. *Journal of Experimental Social Psychology*, 3, 1–24.

actions.⁷⁹ In general, people will make the Fundamental Attribution Error less often for people they know well or friends, explaining action as circumstantial. For strangers or, worse, enemies, people are far more likely to attribute actions to some longstanding and inherent part of their personality. The persistent view of the other as the aggressor helps account for the sense of victimization apparent in the quotes at the beginning of this paper.

In view of this insight, both Greek and Turkish Cypriots will dismiss their actions as clear reactions to the circumstances (“We were attacked! We had no choice!”) while building a vision of their enemy as one of malicious intent (“They want to dominate us. They’re trying to control us.”) Thus, in light of the history, each side has taken a view that the other is out to take them over, destroy them, or dominate them instead of considering the particular context of the actions.

How Circumstances Have Changed

It is clear enough that in 1974 there was enough aggressive action all around to justify security concerns. However, it is equally clear that circumstances have changed tremendously in the 35 years that followed. Greece and Turkey have embarked on a productive rapprochement since the late 90s, having laid the Aegean issue to rest. Greece, now an EU member state, has been a stable democracy for many years, and would be unlikely to invade any part of a fellow EU member state any time soon. Likewise, Turkey has made membership in the EU one of its top priorities; the idea that Turkey would invade an EU member state, which a reunified Cyprus will be, is unthinkable. Thus, the conflict between the “mother states,” whose action precipitated the division of the island in 1974, no longer pertains.

Furthermore, the majority of both Greek and Turkish Cypriots have agreed since 1977 that any solution to the problem will be of the “bi-zonal, bi-communal, federal state” variety that would at minimum provide “community rights” and self-governance

⁷⁹ For example, when you cut someone off on the highway, you think “Well, I’m in a hurry. I’m late for work.” But when someone cuts you off on the highway, you shout an expletive and call them a bad driver. The former attributes the action to a situation, while the latter attributes the action to feature of the person.

far and above those designated in the original 1960 constitution. Ironically, the de facto separation of Greek and Turkish Cypriots on the island allows elements of Turkish Cypriot self-rule to be incorporated into a long-term solution. Leaders of both sides have agreed to a demilitarized island. Turkey proved its sincerity when it agreed in the 2004 Annan plan to withdraw almost all of its army in the negotiated agreement.⁸⁰ In reality, there is presently very little to be concerned about from a security perspective. That is not to say that the two sides should drop all security-related demands; good security policies should be forward looking and have provisions for future eventualities (e.g., what happens if 10 years down the road it becomes clear to Turkey that their EU bid will ultimately be unsuccessful?). However, because the geo-political reality of 2009 is a far cry from the 1974 context that divided the island, it is surprising that the two sides still have such deeply entrenched fears. Again, some psychological concepts go a long way in explaining the persistent security concerns.

“Cognitive Dissonance” is the feeling of discomfort people get when holding two opposing thoughts at once.⁸¹ To escape cognitive dissonance, people often rationalize situations. They also have subconscious ways of avoiding cognitive dissonance in the first place. Belief Perseverance, as its name implies, is the tendency to maintain a belief once it is formed. In other words, if it takes a certain amount of evidence to form a view or belief, it will take a much greater amount of evidence to change that belief.⁸² Belief Perseverance is exacerbated by Confirmation Bias, the human tendency to seek out and give greater weight to information that confirms one’s views rather than disconfirming information, which is overlooked, played down, rationalized away, or even ignored.⁸³ These psychological phenomena explain why security fears established early on and

⁸⁰ A nominal amount of both Greek and Turkish troops were allowed to remain under the Annan plan, equal to those permitted under the 1960 Treaty of Alliance.

⁸¹ See Festinger, L. (1957). *A Theory of Cognitive Dissonance*. Stanford, CA: Stanford University Press

⁸² For example, if I told you “A, A, A,” then “B, B, B” you’d believe A. If I told you “B, B, B,” then “A, A, A” you’d believe B. See Ross, L., Lepper, M. R. and Hubbard, M. (1975) “Perseverance in self-perception and social perception: Biased attributional processes in the debriefing paradigm,” *Journal of Personality and Social Psychology*, 32, 880-892.

⁸³ E.g., if I asked you to guess the next number of “2, 4, 6” to figure out the rule, you’d be more likely to guess 8, 10, 12 and other confirming examples to figure it out before addressing or even considering disconfirming ones like 5. See Wason, P.C. (1960). “On the failure to eliminate hypotheses in a conceptual task.” *Quarterly Journal of Experimental Psychology*, 12, 129-140.

reinforced over years (through unhelpful textbooks in schools, *inter alia*) may not change despite tremendous changes in circumstances.

For example, Greek Cypriots often aver that Turkey, not Turkish Cypriots decide Turkish Cypriot policy. Despite the Turkish “yes” vote on the Annan plan and 35 years of non-violence, this rationalization is a plausible way to persevere in the belief that the other side cannot be dealt with. In fact, Turkish Cypriots often lobby Turkey to support their policy objectives, not vice versa. For example, Turkish Cypriots are glad to have the Turkish army remain until a negotiated settlement is reached, and request that Turkey not recognize or open its ports to the RoC. Turkey has complied despite its changed interests, the costs to its army, and the maintenance of a major hurdle blocking its EU ambitions. Yet Greek Cypriot beliefs persevere.

Further, the continuation of the Treaty of Guarantee is totally unacceptable to Greek Cypriots. The fundamental attribution error can explain this view in part. Greek Cypriots believe “Turkey invaded before, it didn’t leave, it wants to control the island,” as opposed to “Turkey reacted to the Greek junta, it stayed at the request of its compatriots, and is eager to get the island off its plate to get into the EU.” As such, they believe that Turkey will simply use the treaty as an excuse to invade again under flimsy pretexts. This fear is not rational, however. For one, Turkey did not invade the island under false pretexts the first time. The Treaty of Guarantee explicitly allows intervention in response to attempts to divide the island or merge it with another country, exactly what happened in 1974 (although the treaty does not specify military force, it allows the guarantors the use of action “as far as lies within their power.”). If Turkey was able to wait through 11 years of discord on Cyprus to invade, there’s little reason to think it would take the provisions lightly. Furthermore, because the treaty is so explicit about the circumstances under which any sort of action may be taken, any Turkish attempt to invade the island short of foreign invasion or civil war would be illegal. In other words, without a *causis belli*, it would be just as illegal for Turkey to invade any part of Cyprus as if there were no Treaty of Guarantee. As one Turkish Cypriot politician put it, “If [the Greek side is] not planning on doing anything wrong, they shouldn’t worry about it. Turkey doesn’t need a treaty if its interest is to intervene.”

Similarly, the Turkish Cypriots have an incessant fear of political domination, and insist on some guarantee for their safety despite the changing facts on the ground that offer a number of avenues for addressing concerns that typically plague minority populations. The EU has provisions extending minority and participation rights for all its citizens, who can file claims in EU courts should they be violated. Turkish Cypriots, however, view the EU with mistrust. Because both Greece and the RoC are EU member states, Turkish Cypriots (rightly) believe that the EU has been biased. However, this would not be the case following a negotiated settlement, as Turkish Cypriots could have guaranteed representation in EU parliament and full access to EU courts.⁸⁴ Despite these facts, Turkish Cypriots view a continued Turkish guarantee as absolutely crucial for their security.

Among the most surprising findings of our conversations with Turkish Cypriots was their inability to name a specific issue area in which Greek Cypriot policies might adversely affect their community. Many admitted that they did not think violence against Turkish Cypriots was likely. When asked what the Turkish military was defending Turkish Cypriots against, Serdar Denktash, the leader of the Democratic Party (and son of previous TRNC President Rauf Denktash) said that “there’s no real chance of invasion, but it makes us feel secure.” A Turkish Cypriot Professor pointed to the events of 1963-1974, but of modern times could only say of Turkish Cypriots fear of Greek Cypriot domination that “There’s a mistrust – it’s a mental mistrust.” TRNC President Mehmet Ali Talat said that “I don’t believe that violence will take place or [Greek Cypriots] will attack the Turkish Cypriots.” He went on to elaborate that if the Turkish military would withdraw before a settlement, there could be trouble, but their absence following a negotiated settlement would be acceptable:

If there was no army, the policy of the Greek Cypriots would be extending sovereignty to the North. I don’t know how – militarily? With police? It doesn’t matter that there’s a new [RoC] government. Their argument that the invasion prevents their sovereignty up North, it means they’ll extend sovereignty.

⁸⁴ Despite the fact that only the RoC government is recognized, the entire island of Cyprus gained rights during the 2004 accession, so any Turkish Cypriot who gets an EU passport issued by the RoC can already access the courts, though most are reluctant to do so.

Different story if there's a negotiated settlement; that will exclude Greek Cypriots from extending their sovereignty to the North.

Turkish Cypriots were quite candid that the pervasive fear of “domination” was largely psychological. Beyond violence, even political subjects that might split along ethnic lines like health care, economic redistribution, language study, cultural oppression, or religious oppression remained unmentioned. Fundamental Attribution Error, Confirmation Bias, and Belief Perseverance seem to be in play.

Conclusions and Recommendations

If the current circumstances are as benign as argued and both sides' security fears are largely psychological, how can a fair solution on security guarantees be reached? First, it would be foolish not to point out that each side may be holding on to the guarantee issue as a bargaining chip, and would do so regardless of actual beliefs. However, inasmuch as each population needs to be disabused of their fears, there are a number of concrete steps that can be taken. One possible solution for overcoming Belief Perseverance and Confirmation Bias would be a “**grand gesture**.” By definition, such a gesture would have to be an **act that overturns assumptions and cannot be ignored**. When Anwar Sadat travelled to Israel and spoke at the Knesset, for example, it overturned many Israelis' view that he was not serious about peace because it so dramatically contradicted their assumption that Arabs would never accept Israel. Similarly, when Nelson Mandela was released from prison in apartheid South Africa, it went a long way to silence anti-negotiation elements among the black population of South Africa. Of course, since the two sides are already negotiating, the gesture would have to coincide with an agreement in order to help “sell” it to the public (a formidable task given the last outcome). Perhaps signing the document in the TRNC Presidential palace and then in the Greek Cypriot ghost town of Verosha would give it the necessary symbolic pizzazz.

More substantively, if a similarly innocuous arrangement to **the Treaty of Guarantee were negotiated with slightly modified terms**, it could probably pass muster for both populations, providing the necessary guarantee of safety to ease Turkish

Cypriot fears while easing Greek Cypriot concerns that it might be abused in the future. **For example, a NATO force including both Greek and Turkish troops could be assembled and put on guard in the event of renewed community violence.** The current UNFICYP force, which has a good reputation on both sides, could provide objective monitoring and evaluation upon which any intervention would rely. Alternatively, **an authorizing committee consisting of neutral foreign judges approved by both Greek and Turkish Cypriots could be given the task of confirming whether treaty violations took place.** Another interesting option would be **to keep the treaty as is, but specify that it will only apply until Turkey's accession to the EU.** Further provisions such as a joint, bi-communal police force or national guard could help build confidence as well. Any of these options would maintain a security option for Turkish Cypriots, "just in case," but create a barrier for exploitation by Turkey to ease Greek Cypriot fears. Because people are more familiar with the names than the substance of treaties, **the new arrangement would have to be rebranded to overcome association with the Treaty of Guarantee in order to make it palatable to both sides,** in much the same way that many provisions from the Annan plan recurring in current negotiations are being rhetorically distanced from Annan to keep them palatable to the Greek Cypriots.

Cypriots are fortunate that their security fears are rooted more deeply in the past than the present. A variety of solutions are available to help establish a secure, reunified Cyprus. After 35 years of non-violence, they would be wise to heed Franklin Roosevelt's words: "we have nothing to fear but fear itself."

14. International Influences in Cyprus: The Role of Turkey

Katherine Herbst

Alvaro de Soto, the former UN Secretary-General's Special Advisor to Cyprus, has compared the "Cyprus problem" to a padlock that requires four keys to unlock it, each one belonging to the Greek Cypriots, Turkish Cypriots, Greece, and Turkey respectively. Over the course of the Cyprus conflict, which has lasted for nearly a half century, the possessors of these four keys have never succeeded in providing them simultaneously, and as a result, every attempt to reunify the island has been in vain. Of the four stakeholders, Turkey has often been the brunt of criticism; it has been blamed for withholding its support from an agreement and is often castigated for its belligerent behavior which has perpetuated the antagonistic environment and persisting political stalemate. Whether or not Turkey's divisive behavior is intentional is debatable, but regardless, it is clear that the country remains a large and dominant militarily power a mere 40 miles from Cyprus, and an eight-minute flight away. Its geographical proximity coupled with its historically contentious relationship with both Greece and Cyprus lead many Greek Cypriots to view Turkey as an ominous threat. Yet on the other extreme, to Turkish Cypriots the country represents an essential guarantor of survival and protection against the legally recognized Greek Cypriot South. In both perspectives, Turkey is undoubtedly a crucial element, and as such its power greatly affects the nature of conflict in physical and psychological ways.

There are two primary areas in which Turkey's influence is routinely cited as a consistent impediment to a negotiated settlement. Both the Turkish military presence on Cyprus as well as the country's stalled accession process into the European Union have been underlined as reasons behind a failure to find a solution. Throughout this chapter, these two issues will be unpacked in an attempt to understand better the ramifications – whether real or imagined – that Turkey's influence has on negotiation efforts to reunify the island.

The Turkish Military: Beneficent or Belligerent?

In 1974, in response to an attempt by the Greek junta to overturn the Makarios government in Cyprus, the Turkish army deployed troops to the island and intervened, thus preventing the coup from succeeding. The legality of the intervention remains a hotly contested issue, and one which I will leave for future analysis. Instead, the scope of this paper revolves around the fact that troops have remained on Cyprus ever since, and while violence has been kept to a minimum, the army has nevertheless had an enormous impact in maintaining the status quo of a divided island.

Not surprisingly, each community views the army's presence according to their own interests and needs. To the Turkish Cypriots, it is first and foremost a means of protection and defense against the Greek Cypriot south. There is a deep-seated fear among the Turkish Cypriots that in the absence of the troops, the community would be quickly ruled and overruled once assimilated within a Greek Cypriot-controlled state. Having no international legal authority or sovereign power in the northern territory,⁸⁵ the Turkish Cypriots feel that they are the weaker community, and thus they look to Turkey's military might for physical protection against the legally recognized Republic of Cyprus. A pervasive sense of fear and insecurity has developed as a result of the unrecognized status of Northern Cyprus and has been compounded by intense feelings of distrust toward the Greek Cypriot community. A severe lack of trust has amassed over the past forty years of strained relations, broken promises, and failed attempts at a settlement, which have squandered any good faith remaining between the two sides. President of the Turkish Northern Republic of Cyprus, Mehmet Ali Talat has expressed the Turkish Cypriot suspicion of the South in arguing that, had the Turkish army not been present to maintain the status quo, the "[Greek Cypriots] would try and come and take everything as they did in 1963."⁸⁶ The history of the decades-long dispute and the past actions of the Greek Cypriots (particularly the old policies of *enosis* and *osmosis*) have given Turkish Cypriots little reason to be confident in their safety without the protection of the Turkish

⁸⁵ The Turkish Northern Republic of Cyprus (TRNC) was declared in 1983 but has not been recognized as a state by the international community. To date, only Turkey recognizes it as a legally sovereign entity.

⁸⁶ 1963 was the beginning of the civil war in Cyprus which came to an end in 1964 with the adoption of a UN Security Council Resolution allowing for a peace-keeping mission on the island.

troops, and hence a psychology of vulnerability permeates within the Turkish Cypriot community. For better or for worse, the army has consequently become the “cornerstone of security” for the TRNC.

Of course, this distrust is a two way street, and as skeptical as the Turkish Cypriots are of the Greek Cypriots’ intentions for the northern half of the island, the Greek Cypriots are perhaps even more skeptical of the Turkish military’s presence and purpose on Cyprus. When prompted with the question, “what is the Cyprus problem?” many Greek Cypriot officials readily answer: “Turkey.” In their view, the country’s military is the main stumbling block to achieving a settlement. Its objective, as understood by the Greek Cypriots, is to insure the security interests of Turkey in Cyprus by keeping a force on the island, thereby maintaining control over its ‘southern flank.’ Turkish strategic interest in Cyprus has been described by Greek Cypriot officials as a “psychotic obsession” which is derived from the notion that if left under Greek Cypriot control, Cyprus would pose a dangerous threat to Turkey’s security. Other Greek Cypriot officials have gone so far as to argue that by remaining on Cyprus, the Turkish army is actually practicing an expansionist policy, and given a favorable climate, it would seek to control the entire island.

What is unclear is just how convinced the Greek Cypriots are of their own rhetoric regarding Turkey’s threat. When pressed to speak frankly, some have conceded that a military invasion is unlikely, especially in the light of Turkey’s EU ambitions. Nevertheless, the fear directed toward Turkey – rational or not – is profound among the Greek Cypriot community. In fact, paranoia of Turkish interests over Cyprus has reached such a level that it has compounded the delegitimization of the Turkish Cypriots as the primary decision-makers in the North. The “myth of the guiding hand of Turkey” (as one of the UNFICYP officials called it) is a belief among many Greek Cypriots that the leaders of the TRNC take orders from Turkey and have no real say in the future of the island. One representative of the European Party in the South expressed this wide-spread sentiment saying that, “The problem with the Turkish Cypriot side is that we’re not talking to the Turkish Cypriots; we’re talking to the Turks.” The belief in the Turkish military’s fundamental security interest in Cyprus has led to a commonly accepted notion

among Greek Cypriots that Talat and the rest of the Northern administration are merely Ankara's puppets. While this view is probably far from reality, it is important that its psychological effect be mitigated in order to regain Turkish Cypriot legitimacy and negotiating authority. The Turkish military needs to visibly demonstrate willingness to find a settlement, and the TRNC has to demonstrate its independence to give negotiations a real chance at success.

The language and behavior of Greek and Turkish Cypriots clearly illustrate their divergent explanations of the Turkish army's presence on Cyprus, but what is much more difficult to determine is the rationale of Turkey itself. The uncertainty surrounding Turkish interests on Cyprus is in large part due to the fact that Turkey's military and government have rather different positions on the issue, and it is not clear which institution will ultimately have a greater influence on foreign policy. In an International Crisis Group report published in June 2008 it is stated that two "tendencies" towards Cyprus exist in Turkey; the first, which is mainly associated with the foreign ministry, supports a settlement in Cyprus in order to clear the path for Turkey's EU membership. People in this camp tend to believe that the military can be persuaded to lower troop numbers significantly on Cyprus if sufficiently pressed. The second tendency, however, is associated with nationalists and military men who believe in the country's "fundamental strategic interest" in Cyprus, and therefore see no sense of withdrawing from the island. Although no one can predict with 100 percent certainty which way the pendulum will swing, history demonstrates that the military may be more willing to compromise than one might assume. In a recent report by the British House of Commons (2009), it is pointed out that the military did not veto the Annan plan which had provided for a troop reduction to 950 troops – a number which is dramatically smaller than the estimated 21,000-24,000 troops that are present today. In any event, the Turkish army will have to be involved in a final settlement and may even consider acting *before* a settlement is reached in order to allay Greek Cypriot concerns and speed the negotiation process along.

The Arduous Road to EU Membership

The other aspect coloring Turkey's involvement in Cyprus is its continuous attempt to become a full member of the European Union. Ironically, EU membership for Turkey is the one aspect in which agreement seems to emerge on all Cypriot sides, and yet it is the most unlikely event to happen prior to a Cyprus settlement. (And perhaps, not coincidentally, its unlikely fulfillment is the reason for such 'agreement.')

All parties favor Turkey's accession to the EU for various reasons, but perhaps three of the most obvious justifications for membership are improved security, democratic domestic reform in the country, and increasingly open trade among the two sides of the island, Greece, and Turkey.

Security concerns and related fears concerning the balance of power in Cyprus (and in the eastern Mediterranean more broadly) would be greatly alleviated if Turkey were to enter the EU. In the eyes of the Turkish Cypriots, the EU has never been in and of itself a security guarantee, as it is considered a "biased" organization in view of Greece's and the Republic of Cyprus's membership. However, as leader of the Democratic Party, Serdar Denktash has stated, the North will never feel completely secure until Turkey itself becomes an EU member. Given a more amicable environment, there will be little incentive to maintain a large Turkish force on Cyprus, and consequently, in the absence of foreign troops the Cypriots will have greater maneuvering ability to reach an accommodating settlement.

The Greek Cypriots see the situation in the reverse, but in no less favorable terms. A Europeanized Turkey is assumed to have no cause for invasion of Cyprus, and with an easing of tensions, complete demilitarization of the island – a long-term goal of the Greek Cypriots – will be infinitely more possible. Moreover, they see the Europeanization of Turkey as an important development because it will inevitably lead to further democratization and domestic reform. The assumption is that with this reform, not only will the military's rogue behavior be tempered by the state, but respect for human rights will be strengthened and extended not only to Turkish citizens, but to those of every other EU member state as well.

Finally, an overwhelming reason for Turkish membership is for the improvement of trade relations between Greece, Turkey, and the entire island of Cyprus. As the situation stands today, the Republic of Cyprus has imposed a trade embargo on Turkey, and Turkey has done the same in retaliation. Turkey refuses to allow any Greek Cypriot-flagged ship to dock at its ports, and what is more, Turkish naval vessels have been implicated in skirmishes at sea while reportedly harassing Greek Cypriot research ships and other vessels. The TRNC, however, is the group most debilitated by the situation; the only trade the North carries on goes through Turkey, as it is the only country to recognize the TRNC. North-South trade on Cyprus is minimal. The Northern territory therefore finds itself both increasingly isolated and underdeveloped in comparison to the southern half of Cyprus.

Part of the explanation for Turkey's stalled EU access process is due to the fact that eight chapters of the *acquis communautaire* have been frozen as a result of the country's refusal to open up trade with the Republic of Cyprus. In 2005, Turkey had agreed to extend its customs union with the EU to Europe's newest ten members, which included the southern half of Cyprus. Turkey, however, has firmly stated that it is not prepared to open up its ports to Greek-Cypriot-flagged ships until the EU "fulfills its promise to ease the isolation of the Turkish Cypriots."⁸⁷ Consequently, the accession process has stagnated and is currently "on the back burner," and presumably will remain there until the Cyprus problem reaches a conclusion. Nevertheless, Turkey's EU membership remains a favorable goal given the economic benefits that would follow.

On the whole, the Greek Cypriots are a bit more cautious than their northern neighbors in supporting Turkey's EU accession; most political parties argue that accession can only take place once Turkey starts "behaving like a European country" and "fulfills its obligations." Without a doubt, these statements imply an underlying conditionality of the Greek Cypriots that, should Turkey remove its troops (and therefore fulfill its democratic obligations), only then will it be allowed into the EU. Therefore, although both Greece and the Greek Cypriots back Turkish accession in their rhetoric,

⁸⁷ Gordon, Philip and Omer Taspinar, "Turkey on the Brink," *The Washington Quarterly*, Summer 2006, p. 64.

there is an accompanying underlying suggestion that unless the Cyprus problem is *first* remedied, a veto of Turkish EU membership by the Republic of Cyprus is not out of the question. It is therefore the classic dilemma of the chicken or the egg, and by all accounts, it seems that although Turkey's membership would expedite a Cyprus solution, a settlement is likely to predate any occasion for EU membership. It would thus be unwise for any side to wait for Turkish EU accession to pave the way for a Cypriot solution, and moreover, no party should be allowed to use Turkey's position as an excuse to falter on Cyprus negotiations.

Recommendations

Clearly, the situation in Cyprus is one of intense suspicion and distrust that prevents all parties from compromising. The fear of being overtaken by the other and inability to make concessions is, of course, the reason why the status quo has persisted for so long. In situations such as these, it is generally advisable to initiate a series of confidence building measures so as to allow parties to indicate their willingness to find a mutually agreeable solution. As this paper has dealt with Turkey as an obstacle to settlement, it follows that the recommendations listed below will be aimed at Turkey's potential role as catalyst for a solution.

The Turkish troops on the island pose an obvious barrier, and yet it is doubtful that they will step down before a political statement is reached. As UNFICYP peacekeepers have noted, "Turkey will withdraw its troops whenever they are satisfied that the Turkish Cypriots will get a good deal, and not before." Given these constraints, the recommendations are as follows:

- **Best case scenario: Turkey agrees to replace its troops with NATO forces prior to a settlement.** While this would require a significant compromise by both Turks and Turkish Cypriots, it would remove Turkey as an absolute and immediate threat to the Greek Cypriots. It would extend a show of good faith to the Greek Cypriots that the Turks are willing to support a solution without Turkish troops.

- **Second best option: Turkey commits to gradually reducing the level of troops on Cyprus** so as to reach the levels called for in the Annan Plan **by the time** (or shortly after) **a settlement is signed**. Turkish Cypriots may oppose an immediate pull-out of Turkish troops prior to an agreement, but a gradual withdrawal may be acceptable, and would be a positive signal to the Greek Cypriots.
- **Third best option:** At the very least, Turkey should do the following:
 - **Release a public statement affirming Turkey's commitment to reduce troop levels** to those put forth in the Annan Plan with the signing of an agreement and,
 - **Refrain from harassing Greek Cypriot ships in the Mediterranean and performing overflights in Cypriot air space.**

These two measures would demonstrate Turkey's willingness to remove itself from Cyprus and would show a degree of maturity by not instigating Greek Cypriots with antagonistic military maneuvers. These visible actions of good faith can potentially improve the Turkish and Turkish Cypriot relationship with the Greek Cypriots.

Whereas the actions of the military are well within Turkey's control, the EU accession process is more difficult to manage domestically. Nevertheless, there are some measures relating to Cyprus that Turkey could take in order to put its membership back on track.

- **Lift trade and port/airport restrictions** on the Republic of Cyprus to "thaw" the eight chapters of the *acquis* that are currently holding up the accession process. Although this action would take some convincing of the Turkish Cypriots, it would indeed show a willingness to compromise. **Restrictions could be lifted in a gradual sequence, and would best be done on a mutual basis;** ie., where Turkey lifted restrictions, the Greek Cypriots would do the same.

By taking these actions, Turkey will improve the chances of not only resolving the Cyprus problem, but also of bringing itself back into the good graces of the EU. As stated in a January 2008 report by the ICG, "Today Cyprus stands between Turkey and continued convergence with the EU. [...] Turkey needs to work for a Cyprus settlement

since it will never enter the EU as long as it is blamed for partitioning a member-state, occupying part of it and refusing it diplomatic recognition.”⁸⁸ In other words, Turkey must seriously consider the costs of prolonging the de facto division on Cyprus. Hopefully it will conclude that the benefits of the EU outweigh the costs of compromising on Cyprus, but as people have said before, no one has ever lost money betting against a successful outcome on the Cyprus problem.

⁸⁸ Cyprus: Reversing the Drift to Partition - Europe Report No. 190, *International Crisis Group*, 10 January 2008, p. 17.

15. The Cyprus Problem and the European Union

Melissa Chadbourne

Given that Cyprus entered the European Union as a divided island and that Turkey is currently involved in EU-accession talks, it might seem logical at first glance for the EU to be involved in mediating negotiations of the ‘Cyprus Problem’ at some level. That it is not directly involved can be attributed to frustration over prior settlements perceived as being imposed on Cyprus by outside powers as well as dismay by the Turkish Republic of Northern Cyprus over the entry of the southern Republic of Cyprus into the EU without its northern counterpart. Following one week of meetings with representatives of both the Greek Cypriot and Turkish Cypriot communities in Cyprus, it became apparent that the EU must strike a delicate balance in supporting the unification process while refraining from direct involvement. It is also clear that there is a stronger role the EU can play in Cyprus in order to support the negotiations and encourage a peaceful reunification process.

Perceptions of the EU by Turkish Cypriots

Following the 2004 Annan Plan referendum, representatives from the TRNC hoped that their vote in favor of the plan would improve foreign perceptions of the TRNC and develop international trade relations. Instead, the EU has not delivered on its 2004 promise to permit Turkish Cypriot products to be sold directly to the EU, while the accession of the Republic of Cyprus to full EU member status has enabled it to ensure that the TRNC remains officially unrecognized and subject to the EU embargo. While some work-around scenarios such as the ‘Green Line Regulations’ have been devised in order to improve trade relations between the TRNC and the EU, representatives from the TRNC indicated that they do not consider the EU as an ‘honest broker’ in the negotiations process. This opinion is derived from three perceptions: that the EU represents only the southern Republic of Cyprus and not the entire island; that the EU failed to live up to its promise to implement the Direct Trade Regulation and improve the economic climate of the North; and that the international community as a whole failed to protect Turkish Cypriot citizens during the fighting in the 1960s-1970s, and thus is not a

reliable safety guarantor. The UN, although it also failed to protect Turkish Cypriots from inter-communal violence, is perceived to be a more neutral party to the negotiations process and is better accepted as a mediator and facilitator.

On the positive side, however, the TRNC does perceive a role for the EU, and welcomes statements made by the European Commission that it will support a solution reached by the two sides, provided it is in line with EU principles. According to a report issued by TRNC leader, Mehmet Ali Talat (2008), in *Turkish Policy Quarterly*, the support of the EU is important because “a solution will necessarily call for both transitional and permanent safeguards within the EU.” While direct involvement of the EU is not required in the early stages of the negotiations, the TRNC would like to see the EU take greater strides to lift the economic isolation of the North. “The lifting of isolations will restore the confidence of the Turkish Cypriots in the international community and particularly in the EU which has been seriously damaged since 2004.” According to additional representatives of the TRNC, the lifting of sanctions will aid the Turkish Cypriot economy to better integrate itself with the Republic of Cyprus once a solution is negotiated. Similarly, a role for the EU is envisioned in later stages of negotiations in order to provide ‘technical assistance’ to the TRNC, and also to prepare the TRNC both for unification and EU membership.

Perceptions of the EU by Greek Cypriots

To the outside observer, the position of the Republic of Cyprus towards the EU seems relatively clear. The decision of the Greek Cypriots to reject the Annan Plan did not halt the process of EU accession or the path towards the Euro, and EU membership has improved the living standards for RoC citizens and magnified their voice in international affairs. The situation is more complicated by EU relations with Turkey and the prospect of Turkish membership. While RoC representatives indicate their support for Turkish accession to the EU provided Turkey fulfils its agreements and obligation, they also insist that Turkey has yet to follow through on its pledges to the RoC such as opening its ports to Greek Cypriot ships. Thus while supportive of both the EU and Turkish accession, the RoC decries the prospect of EU membership as an insufficient motivator or deterrent for hostile behavior from Turkey, and has expressed frustration that, despite the freezing of

multiple chapters of the *acquis communautaire* for Turkey, the EU has not taken a stronger stance to ensure Turkey abides by the Ankara Protocol and extends its customs union to the RoC. The presence of Turkish troops on Cypriot soil is an added irritant in the unification negotiations as well as to Turkish accession talks.

Similar to the TRNC, representatives from the RoC hope to pursue unification negotiations without direct EU involvement, but hope that sufficient EU funding will be made available after unification to assist with a settlement, specifically to provide funds for restitution and compensation of the outstanding property issues. In meetings in Nicosia, RoC representatives also expressed hope that the umbrella of EU membership would help pull the two sides together after a solution is reached.

EU perception of its own role in the Cyprus Problem

In the official literature of the EU and the European Commission, the EU ‘fully supports the renewed negotiations between the leaders of the two communities, Mehmet Ali Talat and Demetris Christofias, under the auspices of the UN, to reach a comprehensive settlement leading to the re-unification of the island.’ Aid and development programs sponsored by the European Commission include island-wide initiatives such as environment and energy programs as well as information programs to educate both Cypriot communities about the gains and limitations of EU membership and responsibilities of member states. Recent discussions include the role of the EU during the financial crisis which illustrates the benefits of being in a currency union, while other discussions have sought to remind leaders that EU membership does not imply that member states always have their views adopted by the whole organization.

As an EU member, the RoC has benefited from official international recognition, eurozone membership, EU passports, and representation in the European institutions, as well as significant inflows of EU funds, with some reports estimating up to €800 million per year received in grants. The EU has also directly engaged the RoC in improving the standard of living in the areas under its control. The TRNC meanwhile, has had less direct interaction with the EU because of issues of its legitimacy, although relations have improved in recent years. Following initial resistance by the RoC, the European

Commission voted in 2006 to authorize €259 million to be disbursed to the Turkish Cypriot community in order to end its isolation and help prepare for the reunification of the island. The focus of the aid projects is social and economic development; infrastructure, in particular energy and transport, environment, telecommunications and water supply; reconciliation, confidence building measures, and support to civil society; bringing the Turkish Cypriot community closer to the EU; and helping the Turkish Cypriot community to be ready to implement the *acquis communautaire* in case of a comprehensive settlement. The aid program is slated to cover a six-year period, with the first few years designated for contracting projects and the final period for disbursement of funds. The contracting period is nearing completion, with only major infrastructure projects remaining to be tendered.

While the *acquis* were officially suspended in the TRNC in 2003, the 2004 Green Line Regulations note that “measures promoting economic development in the abovementioned areas *are not* (emphasis added) precluded by the suspension of the *acquis*.” Prior to the authorization of the €259 million in aid, the European Commission spent two and a half years preparing the TRNC for eventual unification and implantation of the *acquis*. The EU has also modified the Green Line Regulations in order to improve the economic climate of the TRNC. According to the Slovenian Presidency of the EU 2008, amendments made to the Green Line Regulations in 2005 and 2008 have ‘aimed at further facilitating trade and economic cooperation on the island and improving confidence and integration between the two communities.’ It was repeatedly noted, however, that EU assistance to the TRNC does not constitute official recognition.

Challenges for Europe

The EU and European Commission face the challenges of differing perceptions of the two Cypriot communities of EU abilities and interests. The challenge of EU involvement with the Republic of Cyprus lies in the RoC perceptions of what the EU can achieve, both on Cyprus and in relation to Turkey. Representatives of the Republic of Cyprus first and foremost need to reduce their expectations for post-solution EU involvement. While it is realistic to hope that after the tortuous negotiation process, the EU will be able to step in and assist with unification, the idea that EU membership in and of itself will be a panacea

to bring the two sides together is a fallacy. The EU framework and requirements will certainly facilitate unification and funding will likely be made available to this end, but the RoC must recognize that the EU alone cannot resolve the problems that separate the two communities. It will also have to accept that within the EU, different states have different perspectives on the Cyprus problem and repeatedly playing the single-issue card harms EU consensus and support for the Republic of Cyprus.

The challenge of EU involvement with the TRNC lies primarily in its legal status, given RoC concerns that foreign interaction with the TRNC would be tantamount to official recognition of its separate status and government. Recently the European Commission has been able to overcome some of these concerns with the amendments to the Green Line Regulations and the allocation of the €259 million in aid, but EU and European Commission representatives have had to strike a delicate balance when interacting with TRNC officials and soliciting project tenders. Most importantly, the EU and European Commission need to build the confidence and trust of TRNC officials that they will be reliable partners in a future solution for Cypriot unification.

On the positive side, while both the RoC and TRNC agree that any future solution for Cyprus must be a Cypriot solution and not imposed from the outside, they also welcome EU support and funds for the later stages of negotiations and upon conclusion of the negotiations. EU support will be particularly needed to prepare for unification as well as to provide monies to help resolve the outstanding property issues. Both sides also agree that they are supportive of Turkish accession to the EU and believe it will contribute to a Cypriot solution, although Greek Cypriots interviewed for this paper qualify their support upon Turkey's 'acting like a proper EU member', such as respecting its international obligations with regards to the RoC.

What the EU can do – Policy Options

Given the concerns and interests of the Greek and Turkish Cypriots, **the EU should be encouraged both to continue its current projects as well as to seek new opportunities to support the negotiations and parties involved.** The current projects include aid

funding for the TRNC, information sharing regarding EU activities and responsibilities to both communities, and negotiations support.

European Commission officials in Nicosia indicated they are already discussing an extension to the budget for TRNC aid activities. Much of the 2006 financial package was focused on improving the TRNC economy and the Commission is fully aware that the TRNC is dependent on financial inflows from Turkey. Much work thus remains to help prepare the TRNC for the economic challenges of unification and international competitiveness. Involvement in economic development would assist in restoring TRNC trust in the EU as well as ease the post-unification transition from Turkish monetary support and towards a self-sufficient economy.

The EU can also continue its current activities of informing Cypriot politicians and their constituent populations of the gains and limitations of EU membership. This information program is important in order to prepare both sides for the realities of functioning as a unified country within the EU, and to limit their expectations of how the EU can contribute to the negotiation process. Both sides need to be more realistic about the EU's ability to influence member and non-member states and the balance between national sovereignty rights and majority voting within the European institutions. Furthermore, while the path to completing the *acquis* and adopting EU norms and criteria will indeed provide a framework to assist the TRNC with unification, neither side should attempt to shift the burden of negotiating the details of settlement to the EU for resolution.⁸⁹ Continued work will be required between the two communities to finalize a settlement and provide for mechanisms to ensure the details are completed and respected.

The EU also has repeatedly expressed its support for UN initiatives and requests during the negotiation process. As the UN is perceived to be more of an 'honest broker' by both the Greek and Turkish Cypriots, **maintaining support for UN proposals is**

⁸⁹ Statements by officials in Cyprus indicated a future role for the EU to assist with details of unification. These expectations need to be appropriately managed in order to prevent the implementation of any future solution from being pushed directly onto the EU. Both sides will thus need to find a balance between relying completely on the EU to finalize the details of a unification plan and working with the EU to ensure that the accords signed by the two sides are consistent with EU requirements and standards.

essential, especially to help reduce the TRNC perception of EU bias in favour of the RoC. Moreover, the EU statements of support for respecting a Cypriot solution as determined by the two parties themselves (providing they respect EU requirements) are important both as confidence-building measures but also because EU guarantees for implementation of the negotiations are key to the process.

In addition to continuing current EU/European Commission activities, many of the suggestions proffered by the International Crisis Group (2008) address the concerns and needs outlined by the RoC and TRNC. Some of the key ICG recommendations include extending EU involvement with the TRNC, contributing to a financial settlement package, and reviewing a new regional security program for Cyprus and its neighbors, including Turkey. Specifically, the ICG suggests that the EU

- Reach out actively to pro-solution leaders on both sides while supporting the Cypriot-driven process; insist on fair implementation of EU aid and trade policies to allow the Turkish Cypriots direct access to EU markets and programs; and re-engage with Turkey through high-level visits to make the case for a Cyprus settlement and encourage Turkey's EU convergence.
- Prepare a financial package in support of a settlement, as was done for Northern Ireland, including financial instruments to guarantee a property compensation scheme, as well as financial aid to reduce the economic gap between the future Constituent States; assist the future Turkish Cypriot Constituent State to meet EU requirements; and help build tens of thousands of new homes needed for Turkish and Greek Cypriots.
- The governments of the UK, Greece and Cyprus should discuss new security architecture for Cyprus and the eastern Mediterranean that can both satisfy EU foreign policy and defence aims and complement the interests and needs of a Turkey on the path to EU membership.

These proposals address the requests of the RoC for funding for property compensation and the request of the TRNC for increased EU contact. Moreover,

engaging Turkey on issues of a settlement solution as well as in a regional security architecture may contribute to improving the dialogue on Turkish troop levels in Cyprus. In addition to these suggestions, there are additional ways in which the EU can indirectly contribute to the negotiations process. First, in addition to providing EU funding for future property issues, **the EU could develop a Donor Forum for Cyprus** in order to facilitate donations by the greater international community to contribute to a settlement. Second, the EU could continue negotiations with Turkey, but keep accession negotiations separate from the Cyprus solution. The EU could also **propose a forum to facilitate direct talks between the RoC and Turkey** which could be used to address grievances such as the Ankara Protocol or frozen chapters of the *acquis* in order to help separate these issues from the Cyprus negotiations. Finally, the EU could prepare a framework plan **identifying opportunities for EU assistance following a successful solution**. A proposal identifying needs and associated costs – even in rough form - would enable the EU to plan for budgetary and staffing needs in order to ‘hit the ground running’ after a solution is reached. Cyprus has been separated longer than post World War II Germany, and much will be required to merge the two halves. **Preparing a framework for EU involvement, to be reviewed and approved by the two communities, will aid in expediting this process.**

Individual member states of the EU also have a role to play in solving the Cyprus problem. For many states, Turkish accession is inextricably linked to the issue of Cyprus. As contentious as it may sound, **it is time to separate the two issues**. Member states, and particularly France and Greece, could work to reengage Turkey while using their relationship with the RoC to encourage greater flexibility on issues where Turkey is involved. Individual nations could also place more pressure on the RoC to allow increased economic engagement with the TRNC. Moreover, Britain, while treading a delicate line, should consider making concessions on its sovereign base areas, as well as participating in a regional security forum for Cyprus and its neighbours.

Conclusion

Despite the insistence by both the RoC and TRNC that the EU should not be directly involved in the negotiations being conducted in Cyprus, there is still an opportunity for

the EU and its member states to contribute to a Cyprus solution. Reassuring both sides of their support for a Cypriot solution; engaging with both communities while informing them of EU realities and opportunities; preparing additional aid funding for eventual unification; and engaging with Turkey are all examples of actions which will assist the negotiations to move forward. Although there may be fatigue and frustration that a solution has not been forthcoming, or self-blame that Cyprus entered the EU divided, the current Christofias and Talat negotiations should inspire hope for a resolution to the conflict. And while the year 2009 has been listed as a crucial year for the Cyprus negotiations and Turkish EU accession, it should also be considered a year of opportunity for progress on both fronts.

16. Rapprochement From Without?

How External Powers Exacerbated the Cyprus Problem

And What Can Be Done to Ameliorate It

Rajiv D'Cruz

While intrastate conflicts result from tensions within countries, they are not impervious to influence from outside powers. The discord in Cyprus between the Greek Cypriot and Turkish Cypriot communities is indicative of this reality. Instead of focusing on actors within the island, this paper will try to delineate the roles played by outside powers in intensifying this conflict. Specifically it will examine the way Greece, Turkey, the United States, and Great Britain influenced the Cyprus issue. After revealing the way in which these forces exacerbated intercommunal tensions, this paper will attempt to propose ways in which they can work to mend them.

The population of Cyprus is less than that of most major cities in the world, yet it has incurred a degree of attention from the international community that surpasses far larger nations. The amount of human, as well as physical capital that has been invested by the United Nations alone to bring peace to the island is astonishing. A peripheral glance at the situation might lead one to conclude that such attention is unwarranted for resolving essentially an internal dispute in a relatively small area. However such a perspective ignores the significance ascribed to Cyprus by outside countries from the moment of its inception. Only by relating this conflict to its broader role in the power struggle between larger nations can one gain a nuanced understanding of the complications surrounding the issue.

In this vein, this chapter will attempt to situate the Cyprus conflict within a greater historical context of interference from external powers. Specifically it will look at three aspects of this involvement: the influence of Britain in Cyprus, the relationship between Greece and Turkey, and the tensions between the U.S. and Soviet Union. In doing so, it will also try to discern how these events impacted intercommunal relations today. Finally, it will examine what role, if any, can be played by these actors to reverse the damage that was done and advance the peace process.

External Intensifications

UK-Cyprus Relations

To fully grasp the tensions between Cypriots in the North and South of the island in contemporary times, one must first understand how this rift initially developed. These enmities were not the result of a primordial clash of civilizations, nor did they arise in a vacuum. Rather they resulted from specific events that induced this distrust, many of which originated in the years prior to 1960 when the island was still under British colonial rule. Great Britain's policies had left a legacy of discord and strife in many of the countries it colonized, and Cyprus was no exception.

One of the ways in which British rule contributed to the island's problems after independence was its hands-off approach to ruling. Since Cyprus was considered an unimportant colony, it neglected to build roads, improve social services, or raise the standard of living. This caused general discontentment and unrest with colonial rule. More importantly, however, the British did not make any efforts to integrate the two ethnic groups, giving them separate control over matters of religion, education, culture, personal status, and communal institutions. This was convenient from an administrative point of view, but it did little to foster a unified sense of Cypriot identity that would remain after they left.

Though it is appropriate to criticize Britain for premising its own wellbeing over that of the Cypriots, it may not be fair in this case to fault them for failing to unify the communities. Artificially imposing a cohesive national identity on a community that is not receptive to one might not only fail to improve relations, but could in fact actually worsen them. Moreover, it bears mentioning that in some cases the expediency of the British may have benefited the island as a whole. For example, the reason that Britain did not grant *enosis* to Greek Cypriots is because it needed Turkey's support for its policies in the Middle East. As Former Prime Minister Anthony Eden wrote "I regarded our alliance with Turkey as the first consideration in our policies in that part of the World." (Salih 1968, p. 8) From a conflict management perspective, *enosis* is undesirable as a policy as it would have benefited one group entirely at the expense of another. Thus Britain's self-interested decision was actually commendable by enabling the co-existence of both communities on the island.

While the decision of the British to resist the call for *enosis* may have been prudent, the way in which they countered this pressure was not. Resistance from separatist movements like EOKA compelled the British to double the Cypriot police force and added auxiliary and constable forces. Threats from terrorist groups deterred Greek Cypriots from joining these forces, so the British used high salaries to lure Turkish Cypriot peasants into filling these roles. By making Turkish Cypriots participate in the detention and interrogation of Greek Cypriots, the British effectively pitted one ethnic group against another.

The result of this strategy to ‘divide and rule’ was a legacy of bitterness and distrust that lingered after colonial rule ended. However it is erroneous to assume that British policies were what drew the two communities to their respective motherlands. Yearnings for *enosis* date back to 1878, when the church leadership told the first British governor that “we accept the change in Government inasmuch as we trust that Great Britain will help Cyprus, as it did the Ionian Islands, to be united with Mother Greece, with which it is naturally connected.” (Joseph 1995, p. 36)

This statement calls into question whether divide and rule created ethnic tensions or merely inflamed ones that already existed. The answer to this question changes depending on the community that is asked. Many Greek Cypriot leaders claimed in personal interviews that the meddling of the British is what disturbed the relative peace between the two communities. Many Turkish Cypriots countered that this discord always existed and pointed to the low incidence of intermarriage as a barometer of the communities’ segregation. Thus while it is debatable the extent to which British colonial rule generated hostilities that plague the peace process today, it clearly played a large role in exacerbating them.

Greek-Turkish Relations

Since the inhabitants of Cyprus descended from the Ottoman and Hellenic empires, it is natural that their relationship to the nations of Turkey and Greece would bear considerable import to them. The consequence of such affinity between the two communities and their motherlands was the unfortunate tendency of tensions between

Greece and Turkey to spillover into Cyprus as well. For example, the Greek-Turkish Wars of 1912-1913 and 1919-1923 drew Cypriot volunteers of both nationalities to fight on opposite sides of these battles. Even after these battles concluded, hostilities between the two countries continued to run high. Prior to the London Conference in 1955, a bomb exploded outside the Turkish consulate in Greece which sparked anti-Greek riots in Istanbul and Izmir. Actions on one side triggered violent reprisals by the other. Greek Premier George Papandreou summarized the mood at the time in stating “A war clash between Greece and Turkey would be madness, but if Turkey decides to enter the insane asylum we shall not hesitate to follow her.” (Joseph 1995, p. 48)

The unfortunate consequence of these hostilities was that Cyprus was used as a proxy by Greece and Turkey for launching offensives against the other. In 1964, for example, Greece secretly dispatched a division of approximately 10,000 troops to Cyprus, which would have triggered a Turkish invasion were it not for the intervention of President Johnson. Further brinksmanship continued when Turkey sent its fleet to the port of Iskenderum and Mersina opposite Cyprus, while the Greek fleet sailed between Rhodes and Crete, directly west of Cyprus. These examples of external interference reached a pinnacle in 1974 when the military junta in Athens attempted to topple the Cypriot government, which prompted the Turkish army to intervene in response.

This paper will not choose sides in deeming who is more culpable for the violence in Cyprus through 1974. The purpose of this section is to indicate that even prior to the entry of the Turkish army into the island, both Greece and Turkey interfered in the internal affairs of Cyprus in order to express their antagonism towards one another. This created a climate that inhibited cooperation between Greek and Turkish Cypriots and persists today.

U.S.-Soviet Relations

Unlike Greece and Turkey, the U.S. did not have any ethnic ties to Cyprus. And unlike Britain, it was not linked to the island by a legacy of colonialism. Nevertheless the Cyprus issue became a paramount concern to the United States because of the geo-strategic importance of the island. Its proximity to the Middle East rendered it convenient

as a base of support for land, sea, and air operations in the area, as evinced by the British and French attack on Suez in 1956.

Ensuring that the country did not fall under the influence of the Soviet Union was thus a priority for the U.S. in the midst of the Cold War. This fear was not unfounded given the influence of the communist party AKEL in Cyprus, which had polled 40 percent of the Greek Cypriot electoral vote in 1960. This group was responsible for establishing economic and commercial relations with the Soviet bloc and was perceived as a threat to alter the non-aligned status of the island.

Hence many of the policies of the U.S. towards Cyprus were not aimed at resolving the underlying issues plaguing the island so much as containing the influence of the Soviet Union. This entailed mending relations between Greece and Turkey to preserve the integrity of the southeastern flank of NATO. The priorities of the U.S. were encapsulated in the following remarks by John Foster Dulles:

I have followed with concern the dangerous deterioration of Greek-Turkish relations caused by the Cyprus question. Regardless of the causes of this disagreement, which are complex and numerous, I believe that the unity of the North Atlantic community, which is the basis of our common security, must be restored without delay. (Stearns 1992, p. 32)

It is worth noting that Dulles does not offer to resolve any specific issues pertaining to the dispute itself, but rather expresses a greater concern for repairing Greek-Turkish relations. This sentiment underscored President Johnson's attempts to conduct bilateral talks in 1964 on the issue between Turkey and Greece without involving the Cypriot leadership. America had spent over ten billion dollars to build up these countries economically and militarily in order to resist communism, so it did not want to see this effort undone by a relatively small dispute.

This desire of the executive branch to maintain neutrality for strategic purposes was countered by pressure from the legislative branch to take a partisan stand. Congress involved itself in the Cyprus question in part due to the success of the small but powerful Greek Diaspora lobby. Organizations such as the American Hellenic Institute Public Affairs Committee (AHIPAC) were able to marshal the support of politicians like Reps.

John Brademas (Ind.) and Benjamin S. Rosenthal (N.Y.) and Sens. Paul. S. Sarbanes (Md.) and Thomas F. Eagleton (Mo.). The “Gang of Four,” as they were known, promoted a number of Greek and Greek Cypriot interests, such as preserving the 1975 arms embargo originally levied against Turkey for its intervention in Cyprus. They also convinced the House to downgrade a \$50 million grant to enable Turkish military hardware to meet NATO standards into a loan. Finally, they pushed the Reagan administration to make firm condemnations of the decision of Turkish Cypriots to declare an independent nation in the North. While these representatives were fervent in advancing these policies, they unfortunately did not possess a deeper understanding about long-term solutions to the Cyprus problem. By pursuing the short-sighted goals advanced by these lobbies, they stalled any progress the U.S. could have made on this issue.

What action should the U.S. have taken instead of this narrow partisanship or insipid neutrality? Some argue that the U.S. could have responded to Turkey’s invasion with a military response of its own, but Vietnam serves as a painful reminder of the dangers of American entrenchment in a civil war abroad. Rather, it should have employed serious diplomatic efforts to address the core Cypriots concerns instead of either making partisan pot-shots or eschewing entanglement altogether. The clumsy and ineffective way that the U.S. proceeded on this issue is best encapsulated by its reaction of to anti-Greek riots in Istanbul in 1960. The State Department issued a cautiously worded condolence for the attacks in an effort to quell emotions, but instead of placating Greece, it incited further outrage for its failure to indict Turkish authorities. Thus in its delicate endeavor to find peace quickly and painlessly, it ultimately pleased neither while failing to prevent the eruption of violence on the island.

Rapprochement from Without?

Given the way that Cyprus has been influenced, and in some cases manipulated, by outside powers, it may appear that the prospects for the peaceful resolution of differences on the island may be dim. Yet despite these drawbacks, there are some reasons for optimism. Little bloodshed has occurred since 1974, and the decision to open the border in 2003 has not yielded the intercommunal violence some had feared. Given these

positive developments, what, if anything, can external actors do now to ensure Greek and Turkish Cypriots find a sustainable solution to their problems? How can outside powers advance the peace process instead of intensifying the conflict as they have done in the past?

These critical questions eschew simple answers for a number of reasons. First of all, much of the damage wrought by external powers cannot be reversed. There is nothing Britain can do now to remedy its divisive policies of the past. The memories of Turkish Cypriots abetting a colonial regime cannot be easily erased in the minds of Greek Cypriots. Moreover besides asking what outside parties can do, one should consider how much outside parties *should* do to influence the peace process. One of the issues raised by leaders in the South is that the Constitution of 1960 and the Annan Plan of 2004 reflected the interests of the international community more than the Greek Cypriots. Whether this claim can be taken at face value or should be dismissed as an equivocation is debatable, but nonetheless the perception of internal ownership must exist for a peace agreement to endure.

These considerations, however, do not preclude any action from the outside countries in helping resolve the Cyprus issue, nor does it absolve their responsibility in ameliorating a situation they once escalated. **Greece and Turkey, for example, could work together bilaterally with the intent that their rapprochement from without the island could induce a change from within.** On a very basic level instead of issuing individual statements expressing their interests in peace, the two countries could publicly formulate a shared commitment to resolving the issue. This would demonstrate a commonality of purpose that would rebuke the positioning of the issue as a zero-sum game between the communities.

Of course it will take more than mere cursory statements for progress to be made; **actions from both countries would also be required to demonstrate a credible commitment toward peace.** Instead of assisting their respective side in the conflict, **a radical but innovative proposal would be for the governments of Turkey and Greece to extend overtures to members of the opposing side in Cyprus.** Though commitments between nations are often military or economic in nature, they do not necessarily have to take this form. **Turkey and Greece could instead sponsor programs that promote**

mutual understanding, such as an exchange program that sends Turkish Cypriot students and scholars to Greece and the Greece Cypriots to Turkey. The same could be done for sports teams or other civic groups. Measures from Greece and Turkey to **relax restrictions on trade with opposing communities in Cyprus would also help to build trust** that could trickle down to the Cypriot population itself. In exchange for Turkey honoring its commitment in the 2005 Additional Protocol to the EU-Turkey Customs Union to allow Greek Cypriots into its seaports and airports, Greece could promote commerce between Turkish Cypriots and the EU as part of the Direct Trade Regulation.

Domestic political opposition would make this difficult for both countries to perform since it would undeniably anger some of the constituents that do not share this goal of reconciliation. In the case of Greece it will be particularly problematic given the non-recognition of the government in the northern part of the island. To then promote programs that effectively undermine official policies of the past 5 years would cause enormous friction between the government in the south of Cyprus and Greece. However it would not be the first time that Greece would defy the interests of the Greek Cypriot government in light of their push to bring Turkey into the European Union. Further **political courage must be summoned to advance the building of trust.** In exchange for this politically unpopular maneuver, **Turkey could simultaneously respond in kind with a gesture of good will, such as agreeing to withdraw some of its troops from the island.** Such an action by Turkey would also indicate to Greek Cypriots that it is willing to subvert its own interests for the good of the Cypriot people.

As a final remark about Greece and Turkey, it is important to caution against the idea that either country could entirely extricate themselves from their position of influence. Even if both countries made efforts to intervene in the problem as little as possible, there is no reason to suggest that Cypriots would automatically create a coherent identity premised on the idea of a solitary nation. The allegiances that both communities feel towards their respective motherlands are chosen freely and are results of decades of cultural ties that cannot be erased overnight. Thus it is only realistic to acknowledge that the sway of Greece and Turkey will continue to linger even after a peace agreement is signed, for better or for worse.

The roles that Great Britain and the United States could play in the peace process are slightly different because they wield less influence on the perceptions of the Greek and Turkish Cypriots. Nonetheless there are steps they could take as well to help advance the peace process. **The UK, for example, could relinquish its bases in Akrotiri and Dhekelia in the south of Greece in an effort to free the island of a foreign presence.** Britain, and the U.S. for that matter, would be disinclined to part with these establishments given their strategic value during the Iraq War as a staging post for the transportation of forces and equipment and medical services for soldiers. Nonetheless sacrifice is necessary from all parties in order for a compromise to be reached. And while this gesture alone will certainly not resolve the conflict, it removes the potential for hypocrisy when condemning the foreign presence of the Turkish army on the island.

Since it no longer dispenses aid to Greece and Turkey to the extent that it did under the Marshall Plan, the United States no longer possesses the leverage it once did over these countries. Thus the U.S. is not capable of compelling these NATO allies to push for a solution as it could in the past. Despite this reduction in economic clout, the U.S. is nevertheless poised to play a positive role due to its relative neutrality in the matter. **One of the goals of the U.S. must be to get both Greek and Turkish Cypriots to negotiate earnestly,** which is tricky given the unevenness of the two sides. The government in the South is internationally recognized as part of the EU and thus has EU trading partners while the government in the North has none of these advantages. Thus the Best Alternative to a Negotiated Agreement (BATNA) for the Greek Cypriots is relatively good; ideally it would like to see the Turkish army leave the island but on the whole the status quo is not unbearable. The challenge for the U.S. then is to give the Greek Cypriot government an incentive to bargain in good faith. Since it operates outside the rubric of the EU, **the U.S. has the freedom to act in ways that EU members cannot, such as by possibly going as far as to acknowledge the existence of the TRNC.** This gesture, which still falls short of official recognition, would certainly be an incendiary move towards the Greek Cypriot government as well as other members of the international community. But it would be critical in giving the Greek Cypriot government an incentive to reach an agreement by demonstrating that the current status quo is not invariable.

The final topic that must be examined in the context of foreign influence concerns the **right of guarantee**. As long as this provision remains, the specter of interference from Greece, Turkey, and the UK will always hang over the island. The simple remedy to this problem would be for **both communities to cede this power in the new peace agreement to an international body like the UN**. However Turkish Cypriots are quick to point out that the UN peacekeeping force was established in 1963 but was still unable to prevent human rights violations. An alternative would be to **engage a NATO or EU force that combined both Greek and Turkish troops to maintain peace on the island**. Such a regiment would be without a doubt challenging to assemble and would require political courage from both sides. But the advantage of this arrangement over general UN peacekeepers is that soldiers can converse with the citizens, which would allow them to more effectively intervene in conflict. Also they arguably have a bigger stake in the outcome, which may also increase their effectiveness. **A NATO-led force would also be preferable to maintaining the current system of guarantees**, as the latter perpetuates the potential for foreign interference in a sovereign state. Instead of allowing Greece, Turkey, or the UK to intervene unilaterally in Cyprus at its own behest, the security architecture could be rearranged to vest NATO alone with this power. The membership of Greece and Turkey in this organization ensures that it would not be indifferent to conflict on the island, while its multilateral nature is an assurance that it would take a balanced approach to the crisis.

It would be myopic to suggest that these proposals alone are enough to resolve the current impasse. Even if all these external measures were taken concurrently, there a host of internal issues that the Cypriots need to resolve for themselves before signing an agreement, ranging from power-sharing to property rights. The UN already plays a role in mediating between the two sides on these issues. Rather than supplant or duplicate these efforts to render the internal environment of Cyprus ripe for resolution, Greece, Turkey, the U.S. and Britain can influence the external context of the negotiations instead. By adopting the proposals suggested, these countries can aid from without to facilitate a peaceful accord as a remedy for the mistakes of the past.

17. Dynamics of Non-Recognition: Considering Recognition and a Two State Solution to the Cyprus Problem

Sarah Johnston-Gardner

The stars are currently aligned for successful negotiations to create a bi-communal, bi-zonal federation of Cyprus, given the current moderate leadership on both sides and engagement of the UN and EU. If the current round fails the international community should prepare for the logical consequence and next best alternative to a united Cyprus – a two state solution. The two state solution should not be viewed as an impossibility or failure. It has benefits for both parties, as the present ambiguous status of the Turkish Republic of Northern Cyprus is not in any parties' best interest, and should not continue if negotiations fail. The two state solution does not necessarily end the hope for unification. Instead it guarantees two equal partners in negotiations, which could in the future lead to a settlement of unification as was done in Germany, and is currently sought in Korea. In this paper I will examine the current reality of non-recognition of the TRNC as well as the benefits and consequences of recognition.

The Republic of Cyprus is internationally recognized as the sole sovereign authority over the island; although the TRNC has been the de facto governing authority in the northern half for over thirty years, it does not have international legal standing as a sovereign state. The status of the TRNC permeates all meetings and literature on the Cyprus conflict. Even the titles of the TRNC leaders are controversial. The same person, Mehmet Ali Talat is referred to as President in the North, and the “so-called President” or “leader of the Turkish Cypriot community” in the South and by Greek Cypriot allies. However, he is responsible for representing the concerns of Turkish Cypriots in the current negotiations with the South, the EU, and the UN. It is clear that non-recognition of the TRNC is an obstacle to progress and normalization in Cyprus.

The case of Cyprus shows that low-intensity, protracted conflicts can persist even with international peace keeping and a long term hurting stalemate. According to

Edward Azar, protracted social conflicts are “the prolonged and often violent struggle by communal groups for such basic needs as security, recognition, acceptance, fair access to political institutions and economic participation.”(Azar 2005) Some conflict management theorists argue that the resolution of a conflict depends on structural transformation, which includes empowerment of the weaker party and international recognition. According to these views the denial of international recognition and complete economic integration of the TRNC is prolonging the conflict without addressing the root causes.

The status of the TRNC is not entirely unusual. There are other entities that lack de jure recognition. Palestine, for example is recognized as independent by 96 UN members and the Holy See. Kosovo is recognized by 54 UN members. Taiwan is recognized by 23 UN members, and is able to trade, practice de facto diplomatic relations, and enjoy a profitable tourism sector. By not recognizing these entities the international community can avoid the complications and consequences of solving the conflicts that caused these governments to exist. However non-recognition negatively affects the ability of these governments to function and the people to enjoy the benefits of unhampered status. It handicaps international trade, harming the economies of these states, as well as denying voice and representation in international organizations.

Evolution of the North as a Separate Entity

The narratives explaining the conflict differ on each side and are beset with emotion. Each narrative has a lasting impact on the political will of the communities. Here I attempt to provide an impartial brief explanation of the historic events that led to the current state of affairs. According to the Turkish Cypriot paradigm, the Turkish Cypriots, the ethnic minority of Cyprus, formed a separate community as a response to ethnic violence, Greek Cypriot aggression, and attempts to modify the power-sharing constitution. According to the Greek Cypriots the northern part of the territory was illegally invaded and occupied by the Turkish military, but there is little mention of the validity of the Turkish Cypriots decision to depart from the power-sharing arrangement or the ethnic violence against the Turkish Cypriots.

Cyprus was established as a partnership between two communities, the Greek and Turkish Cypriots, after attaining independence from Great Britain in 1960. Attempts to rectify the ethnic cleavages between the ethnic groups on the island were unsuccessful in the past. As early as 1882 the British Colonialists set up a power-sharing system where the legislative council consisted of a 9:3 ratio between the “Christian and Mohammedan sections of the community.” (Wolfe 1988, pp.75-89) However, this system was not agreeable to the Greek Cypriots who resigned from their positions within a year. By 1931 Greek Cypriots opposing British rule were in favor of *enosis* (unification with Greece). The Turkish Community responded with *taksim* (partition between the ethnic communities). By the 1950s armed groups formed on both sides.

In 1959 the prime ministers of Greece and Turkey along with British authorities drafted independence agreements in Zurich. The leaders of the Greek and Turkish Cypriot communities, Archbishop Makarios and Fazil Kutchuk complied. The three agreements, the Treaty of Alliance, the Treaty of Establishment and the Treaty of Guarantee formalized security guarantees from Turkey, Greece and Great Britain to protect the independent sovereignty of the island and were incorporated into the Cyprus Constitution. These agreements allowed each party to intervene if there was a threat to the territorial integrity of Cyprus and required bi-communal leadership.⁹⁰ The power-sharing agreement provided political power for the Turkish Cypriot minority, who constituted 18 percent of the population. The Civil Service was divided in a 70:30 ratio, the president was Greek Cypriot and the vice president was Turkish Cypriot. The judiciary required both Greek and Turkish Cypriot judges as well as a neutral judge. The legitimacy and authority of the constitution was dependent on the combination of political wills of both communities. (Ozersay 2004, pp.31-70)

In 1963 President Makarios proposed thirteen constitutional amendments. In the view of the Turkish Cypriots, the changes would deny them their political power and invalidate the nature of the power-sharing constitution, thus they resigned from public office in defiance, and ethnic violence accelerated. President Makarios argued the

⁹⁰ Treaty of Guarantee, UN Treaty Series, Vol. 382 (1960) No. 5475 and The Treaty of Alliance - UN Treaty Series, Vol. 397 (1961) No. 5712.

changes were needed to end the legislative deadlock. The interpretations of the events of 1963 shape one's view of the legitimacy of the Turkish Cypriot claims about political equality. On the Greek Cypriot side there is little sympathy for the Turkish Cypriot walkout, as well as denial of the perceived injustices. As one Greek Cypriot politician stated, "the 1963 events were the incentive of the Turkish Cypriots; there were not massive violations of human rights of the Turkish Cypriots."⁹¹ On the Turkish Cypriot side, the walkout was necessary to protest the violation of the constitution which protected both communities' interests. In addition to the stripping of political rights, the violence that was perpetrated against them is "comparable to genocide and ethnic cleansing," according to one TRNC representative. Between 1963 and 1974 20,000-25,000 Turkish Cypriots were forced to leave their homes to live in ghetto conditions. (ICG 2008, p. 2)

Though violence erupted and the Constitution broke down in December 1963, none of the Guarantor powers intervened until the UN peace keeping force (UNFICYP) arrived in March 1964. By this time the communities were divided into ethnic enclaves, and hundreds were killed. According to a United Nations report, by 1965 the Turkish Cypriots were in favor of two separate republics.⁹² Rauf Denktash was the new leader of the Turkish Cypriots and organized a separate provisional administration. He also attended inter-communal meetings with the Greek Cypriot leader, Glafkos Clerides from 1968 until 1971, with the hope to reach a re-unification settlement. (Wolfe 1988, pp. 75-89)

In 1967 mainland Greece experienced a military coup. Greek Generals held leadership positions in the Cypriot National Guard and have been accused of

⁹¹ January 2009 meetings in Nicosia, RoC. Mr. Nikos Koutsou, Deputy President of the European Party (EVROKO) and Member of Parliament.

⁹² <http://www.humanrights.coe.int/minorities/eng/FrameworkConvention/StateReports/1999/cyprus/B.htm>

"The Secretary-General of the United Nations in 1965, described the policy of the Turkish Cypriot leaders in this way: *"The Turkish Cypriot leaders have adhered to a rigid stand against any measures which might involve having members of the two communities live and work together, or which might place Turkish Cypriots in situations where they would have to acknowledge the authority of Government agents. Indeed, since the Turkish Cypriot leadership is committed to physical and geographical separation of the communities as a political goal, it is not likely to encourage activities by Turkish Cypriots which may be interpreted as demonstrating the merits of an alternative policy. The result has been a seemingly deliberate policy of self-segregation by the Turkish Cypriots"* (Report S/6426 10.6.65)."

orchestrating attacks on Turkish Cypriots. On July 15, 1974 the Greek military regime removed Makarios from power and installed a pro-*enosis* leader, Nicos Sampson. EOKA, a para-military group which attacked Turkish Cypriots was also part of the pro-*enosis* RoC government. The Turkish Cypriots felt that this pro-*enosis* installment was a direct threat to their community, and further distanced themselves. On July 20, 1974 the Turkish army invaded to dispose of the junta and to protect the Turkish Cypriots, as they were authorized to do in the founding treaties of Cyprus.⁹³ This military action is viewed as a rescue by the Turkish Cypriots and Turks, who in the words of one Turkish official believe without the military action there would not be any Turkish Cypriots left on the island. The Greek Cypriots view it as an illegal invasion and occupation, which, in their view, is the primary cause of the Cyprus problem.

The three Guarantor powers developed a plan to reunify the island, but when that failed the result was partition of the island with UN enforcement and a prolonged Turkish military presence. Though their original aim may have been to protect the Turkish Cypriots from ethnic violence and rid the country of a foreign occupier (Greece), in the second invasion the Turkish army took over the northern part of the island, roughly one third of the territory. As a result of the violence and interventions approximately 191 Turkish Cypriots and 133 Greek Cypriots were killed; 160,000 Greek Cypriots fled to the south of the island, while 50,000 Turkish Cypriots fled north; approximately 41 Greek Cypriot and 209 Turkish Cypriots remain missing.⁹⁴ To this day between 20,000 and 40,000 Turkish troops remain in the North and the UN peacekeeping force (UNFICYP) patrols the island-long Buffer Zone separating the two communities.⁹⁵ The line dividing the island was first created by UN Major General Peter Young in 1964, who drew a line across a Cyprus map with a green pencil, the Turkish Cypriots were to stay to the north

⁹³ Article IV of The Treaty of Guarantee provides that the three signing powers consult with each other if the provisions of the Treaty are violated, and if they cannot act collectively, each power reserves the right to take action with the sole aim of re-establishing the state of affairs created by the Treaty.

⁹⁴ BBC. <http://news.bbc.co.uk/2/hi/europe/6166560.stm> ICG, "Cyprus: Reversing the Drift to Partition" Crisis Group Europe Report No. 190, January 2008, p. 2.

⁹⁵ The figure of Turkish troops varies depending on who are speaking with. According to the UN forces on the island Turkey has 21,000 troops. According to the Greek Cypriot politicians the number is closer to 40,000.

and Greeks in the South, it was called the “Green Line.” The division of the island was not the decision of the Turkish military.

Since the events of the 1970s the TRNC has governed the Turkish Cypriot community as the de facto sovereign power. The Turkish Federated State of Cyprus (TFSC) was proclaimed in 1975. In 1983 the Legislative Assembly of the TFSC passed a resolution formalizing the independence of the TRNC. They have elections, political parties, a constitution, a judiciary, a legislature, the rule of law, an education system, and customs control on its borders, much like any modern democracy. They do not recognize the RoC. The RoC has been governed solely by Greek Cypriots, with the same, though amended, power-sharing constitution.

The Greek Cypriots argue that the RoC never ceased to exist. The Greek Cypriot government adopted the “Law of Necessity” which, in their view validates their authority, given the lack of participation by the Turkish Cypriots and the impossibility of fulfilling the power-sharing constitution. The Amendments proposed by Makarios were never adopted. The Ibrahim Case of 1964 from the Greek-Cypriot Supreme Court (a part of the RoC) decided that notwithstanding the withdrawal of the Turkish Cypriot community, the legal entity of the RoC would persist. The judge in this case admitted that though the “laws were contradictory to the constitution they were to be carried out due to the abnormal state of necessity on the island.” (Ozersa7 2004, pp. 31-70) The continuation of the status quo implies that the RoC has been in a “state of necessity” for forty-five years.

The RoC has been firmly opposed to granting recognition to the TRNC, as more than one politician articulated to us, this would remove the one incentive the TRNC has to negotiate a settlement.⁹⁶ However, there are signs that the Greek Cypriots are slowly recognizing the TRNC as a legitimate authority. With the opening of the borders in 2003, the two sides have to cooperate on safe border crossings, thus directly acknowledging each other’s authority. For the first time the heads of their respective delegations meet directly, rather than through third party mediators.

⁹⁶ January 2009 meeting. Mr. Yiorgos Christophides, Director of the office of the Permanent Secretary of the Ministry of Foreign Affairs.

The current ruling party in the TRNC, the CTP (Turkish Republican Party) is not actively seeking recognition, in order to signal their willingness to negotiate a settlement.⁹⁷ Current TRNC President Talat has re-iterated that they still seek to be seen as the legitimate, equal and independent authority for the Turkish Cypriots.⁹⁸ The CTP approach is a shift in the political strategy of the TRNC. President Talat's interest in a negotiated settlement with the RoC does not confirm that Turkish Cypriots are not interested in formalizing their separate status. The International Crisis Group recently reported that Turkish Cypriot opinion is "hardening against reunification." (ICG 2008, p. 25)

The previously ruling parties, the UBP and Democrat parties have lobbied for recognition since their founding. Rauf Denktash who was in power from 1983 to 2005, consistently argued for recognition of the TRNC in international mediation efforts. Under Talat's leadership Turkish Cypriots voted for the UN Annan plan, and even after its failure he was re-elected. However, some Turkish Cypriots argue that if the UN referendum (which was the first time Cypriots could vote on the settlement of the conflict) gave the Turkish Cypriots the choice between a unified Cyprus and two states formalizing the status quo, they would have voted for the latter. Denktash believes that "65 percent of the Turkish Cypriots would vote against the Annan plan today," he argues that "separation has stopped the bloodshed, brought peace and stopped them from gobbling up the North." (ICG 2008, p. 25)

Non-Recognition of the TRNC in the International Community

Non-recognition is the official position of the United Nations, the European Union and the Organization for Security and Cooperation in Europe. However, there have been

⁹⁷ Interviews with TRNC government officials, Nicosia, January 2009

⁹⁸ President Talat statement in Cyprus Observer, "Changes to Bayram Greeting Ceremony." November 2005. "We keep saying the TRNC is a Republic on its own, a separate Government, democratic in its own right and with separate institutions...Supporting these by staying in the shadow of another country is not right...the old style would cover the TRNC's independence with Turkey's shadow and make us look weak in the international arena."

gradual increases in interaction between international organizations and TRNC authorities.

In principle, the UN is committed to a bi-communal, bi-zonal federation and opposed to TRNC recognition. UN resolution 541 states that the TRNC is invalid and violates the 1960 Treaties establishing the Republic of Cyprus. UN resolutions 550 and 541 call upon states to avoid recognition and secessionist acts such as diplomatic relations.⁹⁹ Turkish Cypriots point to the hypocrisy of the UN decision to view the RoC government as the legitimate sovereign power over the island after 1964, given that the power-sharing constitution could not be fulfilled after the necessary exile of Turkish Cypriots to the North. (Arslan and Guven 2007)

The opposition to TRNC sovereignty from Security Council members is motivated by domestic and international politics as well as a hope that unification is attainable. Many UN Security Council members do not want to set a precedent for independent sovereignty, as the list of recognition-seeking states includes politically sensitive territories beyond the TRNC. They also do not want to alienate Greece or Greek Cypriots as they are members of the EU and Greece is a member of NATO .

The UN is aware of the isolation their non-recognition has caused the TRNC. The highest levels of the UN are willing to strengthen informal diplomacy and interaction with the TRNC in the interest of easing isolation, but are so far unwilling to entertain recognition. Former UN Secretary General Kofi Annan stated, international organizations should “eliminate unnecessary restrictions and barriers that have the effect of isolating Turkish Cypriots” but stopped short of calling for recognition.¹⁰⁰ UN Secretary General Ban Ki Moon stated that he regrets the “ongoing debate on the lifting of the isolation of the Turkish Cypriots has become a debate on recognition...the maintenance of economic, social, cultural, sporting or similar ties or contracts (do) not amount to recognition... on the contrary it (would) benefit all Cypriots by building trust,

⁹⁹ [UN Security Council](http://www.unficy.org/media/SC%20Resolutions/1984_05-11_SCR550.pdf) Resolutions (550, 541) 1983.
http://www.unficy.org/media/SC%20Resolutions/1984_05-11_SCR550.pdf. All UN resolutions:
http://www.unficy.org/nqcontent.cfm?a_id=1636

¹⁰⁰ May 28, 2004. UN Secretary General Report on Cyprus.

creating a more even playing field and thus greatly contributing to the reunification of the island.”¹⁰¹

In order to put political pressure on the Greek Cypriots to reach a settlement, members of the Security Council could make legitimate offers to recognize the TRNC. This has been attempted in the past, but the Greek Cypriots were able to block the moves. (Hanney 2005) In order to make the threat credible, international policy makers should consider the benefits and consequences of such a decision now.

Similar to the UN, the EU remains firmly committed to unification. The EU accepted the RoC as the sole authority in Cyprus in 2004, one week after the Greek Cypriots rejected the Annan plan. They gave the TRNC quasi representation in the Council of Europe’s Parliamentary Assembly, with the power to speak but not vote. The EU accession harmed the possibility for the success of the Annan plan. The Greek Cypriot leader at the time understood the significance of EU accession, as a sign to the Greek Cypriots that there was not any real pressure for them to compromise on the Annan plan.

There are signs that the EU has realized its blunder. In 2006, the EU committed to easing the isolation of the TRNC by providing humanitarian assistance and relaxing trade embargos. Some of their projects are acceptable to the Greek Cypriots because they are preparing for the eventual, and in their eyes inevitable, reunification of the island. However, the promised amount of aid has not arrived in the North due to “implementation problems.”¹⁰²

The increased involvement and commitment to help the North can be seen as further acknowledgement of their status as a legitimate governing authority. However, the EU is limited in their scope as they are subject to veto votes from the Greek Cypriots and bureaucratic loopholes. The EU could open direct and separate lines of communication with the TRNC, rather than routing all aid through the South. Likewise,

¹⁰¹ December 3, 2007. UN Secretary General Report on Cyprus, S/2007/699.

¹⁰² Meetings January 2009, Nicosia. Ms. Androulla Kaminara, Head of Representation in Cyprus for the European Commission.

fulfilling the aid promises of 2006 would help mend the equality gap between the two governments on the island.

The OSCE has allowed Turkish Cypriot non-governmental organizations to participate in meetings, but even when it comes to important issues such as human trafficking, which clearly affect both sides of the island, they shy away from involving the authorities in the North. In 2004, the Organization of Islamic Conference (OIC) changed the status of the TRNC from “Turkish Cypriot Community to “Turkish Cypriot State.”¹⁰³ This is significant because OIC members now need to submit annual reports on the development of their economic, cultural and social relations with the Turkish Cypriots.

There have been recent signs of increasing bilateral recognition and interaction with the TRNC. President Talat was received by two U.S. Secretaries of State and foreign ministers from the UK, Sweden, the Netherlands and Kyrgyzstan.¹⁰⁴ The TRNC continues to build relationships via de facto embassies. In addition to their official embassy in Turkey, the TRNC has representatives in London, Washington, DC, New York, Brussels, Islamabad, Abu Dhabi and Baku.

Consequences of Non-Recognition: Economic Realities, Bi-Communal Cooperation and International Law

As a result of non-recognition, the economy of the TRNC is completely dependent on Turkey. All exports and imports must go through Turkey, as no other regional powers recognize the government or open ports to them. The currency is the New Turkish Lira. Turkey also provides hundreds of millions in economic aid. In recent years the TRNC has experienced slight economic growth, though dwarfed when compared to the growth of the South. The lack of recognition is detrimental to tourism. No direct flights are allowed to the North unless they are from Turkey. This places a time and expense burden

¹⁰³ “Islamic Conference’s Parliaments to Call TRNC ‘Cyprus Turkish State’” 14 April 2006, <http://islamic-conference-news.newslib.com/story/1413-3215426/>.

¹⁰⁴ International Crisis Group, “Cyprus: Reversing the Drift to Partition.” Crisis Group Europe Report, No. 190. January 10, 2008, p. 25; and Cyprus Observer, October 21-17, 2005.

on those wanting to travel directly to the North. The RoC does not allow TRNC tourism advertising in their publications, thus narrowing the scope of potential visitors.

Bi-communal interactions are severely limited due to mutual non-recognition and the avoidance of implicit recognition from either side. Most civil society efforts involve a limited sphere of actors, as one conflict mediator in the North described them, the “usual suspects.”¹⁰⁵ There has yet to be a bi-communal NGO. The lack of robust bi-communal projects enhances the misperceptions each side has about each other and limits the possibilities for long term conflict mediation. The Turkish Cypriot groups have limited access to international funding. (Wolleh 2002) A human rights advocate in the North stressed the challenges of working with the UN and EU, who are both reluctant to work with Northern Cypriot NGOs due to bureaucratic constraints as a result of non-recognition.¹⁰⁶

There are six universities in Northern Cyprus. The Greek Cypriot government does not allow Greek Cypriots to attend these schools, as they view them as illegitimate, though thousands of international students attend. The lack of exchanges between students has a negative multi-generation effect.

Without formal diplomatic recognition the TRNC cannot effectively lobby and communicate with other state leaders, or ratify treaties, although it has unilaterally ratified a few human rights conventions.¹⁰⁷ Without official recognition as a state, the government is not subject to treaty compliance requirements, such as country reports or visits by rapporteurs. Turkish Cypriots do not have access to the international mechanisms for addressing human rights infringements, such as the international courts. From the perspective of a human rights advocate in the North, such restrictions are problematic for advancing human rights issues beyond the conflict, such as prison

¹⁰⁵ Meeting in January 2009, Nicosia, Northern Cyprus with The Management Centre of the Mediterranean.

¹⁰⁶ January 2009, Nicosia, Northern Cyprus, meeting with the Turkish Cypriot Human Rights Foundation.

¹⁰⁷ Ibid.

conditions, women's rights and gay rights.¹⁰⁸ This restriction applies as well to trade, the environment, arms control and the wide array of issues contained in international treaties.

Implications of a Two State Solution

Recognition of the North would create cultural, geopolitical and economic shifts on the island and region. The benefits of recognition depend on the nature of the agreement and the air of cooperation between the two authorities. If the current round fails, but each side is aware that recognition of the North is the next best alternative, they could begin preparing for those arrangements now.

With Greek, Greek Cypriot, UK, and Turkish support the Treaty of Guarantees would be overturned, putting an end to the unique international guarantee of intervention for Cyprus. A sovereign North could also lead to a dramatic minimization of the Turkish military presence in the North, something all sides agree with. The TRNC would have equal power in the United Nations and could ratify treaties. Recognition could also mean the end of the UN Buffer Zone, which is a financial and military strain on the international community.

The TRNC could expand international trade and end a reliance on Turkey to sustain their economy. International recognition would also mean a normalization of civil aviation standards, and more direct flights into the TRNC. This would dramatically improve tourism and stabilize the economy. With economic growth comes opportunities for development, which would benefit all Cypriots.

Any student in the world could potentially attend the universities, thus easing isolation, with a positive cultural impact on the youth of Turkish Cyprus. Turkish Cypriots could enjoy the freedom to travel, as the international community would recognize their passports and visas. International organizations could function more efficiently on the island. This would help to address other issues confronting the territory, such as human trafficking, crime, and development. Recognition would also normalize

¹⁰⁸ Ibid.

the status of NGO groups, which would lead to an increase in cooperative civil society efforts and a focus on issues beyond the conflict.

Though unlikely given the current political realities, if the TRNC were independent they could eventually join the EU on their own. This would integrate their economy with those of their European allies, including their neighbor the RoC. The TRNC would have to follow the guidelines of the *acquis communautaire*.

In order to create a workable two state solution, the Greek Cypriots would need to approve the partition. They are needed in order to overturn the United Nations resolutions, approve international organizations membership and move forward on shared concerns. Such cooperation is not impossible. A recent International Crisis Group report found that many Greek Cypriots are in favor of a two state solution. In 2007 Marios Matsakis, a Greek Cypriot member of the European Parliament, declared that a two state solution is a more realistic settlement. (ICG 2008, p. 24)

The most obvious consequence of recognition is the potential end of a unified Cyprus. If the partition is formed under hostile conditions, it would harm the potential benefits of the two state solution. Property and land rights are additional complications. Greek Cypriots would resist a partition plan without a guarantee of transferring property or monetary compensation for “losing” land in the North. Some have coined this strategy as “land for recognition.” (ICG 2008, p. 24) If a settlement on property is not attained between the two parties it could be solved via international legal mechanisms, as the RoC has begun to do with the European Court of Human Rights or through a UN mediator.

Conclusion

There are many reasons the current negotiations could fail: divergent accounts of the past, lack of political will, property, territory, security and power-sharing details. Even if a bi-zonal, bi-communal federal settlement is reached and both populations vote for it, it will take generations for each side to reconcile their drastically different concepts about the past and what constitutes the “Cyprus conflict.” As well, the track record of power-sharing agreements is not stable. The pitfalls of power-sharing include: continuing the

social conflict by formalizing ethnic divisions as the greatest cleavage in the country (Rwanda), reinforcing the role of ethnic extremists (Bosnia), and perceptions of unevenly divided power (Cyprus). There is also a fear that cross-ethnic political coalitions will not form, especially given the violent history and long partition of the island. Without cross-cutting coalitions elected representatives will vote solely for the interests of their constituency, which may be to the detriment of the other and inflame divisions. Neither solution is entirely perfect, but the two state solution should not be viewed as an impossibility or failure.

Moving forward, the leaders of the international community should evaluate the Cypriot past in a fair and balanced manner, as well as the possibility of a sovereign TRNC in a responsible and comprehensive manner. The two state solution can pave the road to peace which all Cypriots seek.

Conclusion

P. Terrence Hopmann

This volume reports on an analysis of the Cyprus problem and the prospects for further resolution of the conflict that has effectively divided the island now for more than 45 years. The authors are 17 students from the MA program in Conflict Management and related fields at the Johns Hopkins University School of Advanced International Studies (SAIS) in Washington, DC. Although most of the students have had significant experiences in regions of intense or protracted conflicts in various parts of the world prior to their studies at SAIS, none had extensive prior experience with the Cyprus problem. What these students have brought to the analysis of this protracted conflict is a wealth of knowledge and experience regarding the tools of conflict management, some of which have proven useful in managing other conflicts, as well as a fresh set of minds not influenced by historic images of the conflict, but capable to examining it with a fresh set of analytical tools and new perspectives about conflict resolution on Cyprus.

This report largely reflects the results of a one-week study tour by the students, along with two faculty advisors, to Cyprus in January 2009. Although our time on the island was short, the students prepared by doing extensive background reading prior to the January trip and by participating in a series of lectures by seniors officials involved in the Cyprus problem from Washington and New York. These included the Ambassadors to the United States of the Republic of Cyprus and of Greece, the head of the office of the Turkish Republic of Northern Cyprus in Washington, a representative of the Embassy of Turkey in Washington, representatives of the Commission of the European Union in Washington, and Alvaro de Soto, the Special Representative of the UN Secretary General for Cyprus during the period of the negotiation of the “Annan Plan.” Our week on Cyprus was equally divided between the northern and southern parts of the island, and it included some 36 meetings. With the kind assistance of the governments of the Republic of Cyprus and of the Turkish Republic of Northern Cyprus, we met on both sides of the island with senior government officials, political party leaders, academic specialists, and with NGO’s dealing with conflict resolution and issues such as protection of human rights, missing persons, and the cultural heritage of the island. In addition, we met with

senior officials of the European Union on both sides of the island, and with leaders of the United Nations Force in Cyprus (UNFICYP), including a tour of the buffer zone where it divides the capital city of Nicosia (Lefcosia/Lefkoşa). None of this makes any of us “experts” on the Cyprus problem, but it certainly exposed everyone in the group to a wide range of views and approaches to resolving it.

The preceding chapters authored by the students who participated in this trip are based on that experience; each student tackled in his/her chapter one aspect of the Cyprus problem determined prior to our study trip. Not surprisingly, there is no complete consensus among the 17 participants about the factors accounting for the long-stalemated conflict on the island or about how best to break the stalemate and promote an agreement that could lead to a reunified Cyprus within the European Union. However, several themes tend to reoccur frequently in these papers that may together reflect some collective impressions that we took away from our experience in analyzing the Cyprus problem. This conclusion attempts to identify those themes.

First, there is considerable, but cautious optimism that the present circumstances offer perhaps the best hope for a comprehensive agreement to appear in a long time and perhaps for a long time to come as well. The current process involves expert working groups that are attempting to resolve differences on specific, concrete issues, leading to direct negotiations between the leaders of the two sides on a comprehensive package as a basis for settlement, with only minimal facilitation provided by outside parties. This process seems to offer hope of a possible settlement created by the people of Cyprus that reflects their own interests and not those of outside parties, perhaps for the first time in the island’s history. The long-term personal relations and shared political views of the leaders of the two entities, Demetris Christofias and Mehmet Ali Talat, auger well for their ability to overcome some of the divisions that have plagued previous negotiations trying to resolve the Cyprus problem. All of this takes place against the backdrop of a rapprochement over the past decade between Greece and Turkey, whose conflict had too often spilled over onto Cyprus in the past and who have frequently played the role of “spoilers” in previous negotiations.

A number of the chapters in this volume have identified possible paths in which these negotiations might lead to a significant breakthrough within the near future. At the

same time, as a number of other papers in this collection point out, the obstacles to a rapid agreement remain significant. These two aspects of the Cyprus problem, the need for a rapid solution to some of the most difficult issues, combined with the necessity to overcome a long-standing conflict of identities, emotions and beliefs, often seem to work at cross purposes with one another to create serious dilemmas for anyone who wishes to solve the Cyprus problem. In a classic manifestation of the “chicken and egg” problem, a political solution seems to require prior resolution of some of the major underlying sources of conflict. However, long-term reconciliation is virtually impossible to achieve in a sufficiently short period of time to provide a significant stimulus to the ongoing negotiation process. The physical division of the island into two regions kept apart by UN peacekeepers, in which hostility remains even while violence has all but disappeared, is hardly conducive to the promotion of long-term reconciliation between the two communities on Cyprus. Therefore, a political settlement in the near future that permits and encourages greater contact and cooperation between the two communities also appears to be a necessary precondition for long-term resolution of the underlying conflicts.

The long-standing separation of the two parts of Cyprus has itself become an obstacle to resolution. As Cecily Brewer points out in her chapter, mental walls have formed between the two sides of the island that are difficult to deconstruct over night. Indeed, one consistent impression that we shared is the remarkable differences in the narratives that we heard from the various parties about the origins and nature of the conflict, each emphasizing the harm done by the other while seemingly ignoring contributions that its side made to the conflict. At times, the narratives we heard were reminiscent of the old parable of the three blind persons trying to identify an elephant: one feels the trunk and believes it is a fire hose, the second feels the leg and believes it to be a tree, and the third grabs the tale and identifies it as a rope. The different versions of the Cyprus problem heard in the north, the south, and from international officials bore a certain similarity to this simple parable. As Anatol Rapoport describes, the “blindness of involvement” has enabled the parties to become so attached to their own narrative of the conflict and so oblivious to the beliefs of the “other” that it is hard to develop empathy and to look at the situation from a new perspective that might identify ways out of the

morass. (Rapoport 1960, pp. 259-272) As Krystle Kaul notes in her paper, although there is a foundation within the population for a unique and unifying identity as Cypriots, at present a common identity is not sufficiently recognized to exert a strong unifying influence. Cypriot identities have become so wrapped up with those of Greece and Turkey that it is difficult to recognize a single overarching and shared identity that might help the parties frame a “resolving formula for resolution.” (Zartman and Berman 1982, pp. 95-1090)

Indeed, these diverse identities have become entrenched during the 35 years since 1974 when the island became physically divided. Therefore, no one in the generation of Cypriots under age 40 has any direct memory of Greek and Turkish Cypriots living side-by-side. As Lydia Sizer indicates in her chapter, the system of education, both secular and religious, including especially textbooks, tends to reinforce these different narratives of the conflict, emphasizing each side’s own sense of victimization at the hands of the other. Rose McGovern further indicates how views of the Cyprus conflict have so trumped ideological differences within the political parties of both sides that the usual differences between “right” and “left” have been supplanted by a primary focus on the conflict with the “other.” Thus, political leaders on both sides might support divisive rather than conciliatory policies in order to remain politically relevant with their own constituencies. Mathias Huter as well identifies the significant role played by a nationalistic and ethnocentric mass media on both sides in perpetuating conflict, showing how the media have influenced public opinion in ways often inimical to finding creative solutions to the Cyprus problem. Ryan Marshall shows how the economic disparities that have grown over time between the two parts of the island have further exacerbated divisions and created difficult problems that would need to be overcome to reduce these discrepancies in a united Cyprus. In particular, the non-recognition of the TRNC has caused it to fall further behind the Republic of Cyprus economically and to cut off many potential avenues for economic development in the North, reinforcing its economic and political dependence on Turkey.

These conflicts, however, are not completely home grown, as Rajiv D’Cruz argues in his chapter. As a colonial power, he finds that the United Kingdom often emphasized differences between the two communities to advance its own goals of

control, particularly leading to the imposition of the 1960 constitution that incorporated a power-sharing arrangement perceived as highly objectionable to many Greek Cypriots. The Cold War interests of Great Britain and the United States to keep Cyprus from falling under Soviet domination, he suggests, led these two outside powers to acquiesce in the Turkish military intervention on the island in 1974 rather than undertaking serious diplomatic efforts to reverse it at the time. Finally, Sarah Johnston-Gardner notes that the physical separation of the island over 35 years has allowed two effective political entities to emerge, each with democratic governments that provide the rule of law for their citizens and reasonably effective administration of public policy within the territory each controls. This leads her to conclude that, if the current negotiation round fails, the international community should prepare for the logical consequence and next best alternative to a united Cyprus – a two state solution, which should not be viewed as impossible or as a failure. It offers benefits for both parties, as the present ambiguous status of the Turkish Republic of Northern Cyprus is not in either's best interest.

Several of the chapters focus on efforts to overcome these divisions based both on identity and material realities. Hak Lim Lee points out that many bi-communal exercises and activities have been organized to bring members of the two communities together and to try to overcome misperceptions and misunderstandings between them, largely under the auspices of both local and international NGOs. However, too often these efforts have involved the same relatively small sets of participants, most of whom were predisposed in favor of bi-communal reintegration in the first place, so that insufficient learning about the advantages of bi-communal cooperation has spread into the populations as a whole. Julia Romano emphasizes the significant cooperation that has taken place, often “below the radar screen,” between the two halves of the divided capital of Nicosia. The Nicosia Master Plan has guided long-term planning involving the active cooperation of city officials on both sides of the capital around issues to improve everyday living conditions, such as water supply, sewage disposal, eradication of pests, and other infrastructure projects. These demonstrate that cooperation is possible on issues that improve the everyday life of citizens and point to ways in which such cooperation might also offer lessons for resolution at the national level. Angela Mazer notes the necessity of expanding further confidence-building measures to overcome the

mistrust between the two parties and especially to assure both parties that a settlement will not lead to a reappearance of the violence that broke out in Cyprus between 1963 and 1974 or intervention in the affairs of Cyprus by military forces of either Greece or Turkey.

The dilemma that these long-term obstacles to resolution present is that they seriously complicate the current effort to reach a negotiated settlement between the parties. However, the failure to reach a political settlement soon would not only mean that the current political “window of opportunity” might be closed within a year or two, since as Rose McGovern observes, opposition parties tend to be more opposed to reconciliation than those currently in power, but the perpetuation of the division of Cyprus is likely to allow these different beliefs and practices to become even more entrenched. Therefore, a number of chapters in this volume point to ways in which the current negotiations might produce an acceptable formula for agreement in the near-term without requiring that all of the underlying sources of conflict be resolved in advance.

Brian Stout points to the key role of the mediator in assisting the current negotiations, especially to lessons learned by the UN from the rejection by Greek Cypriots of the Annan Plan in 2004. Thus he emphasizes the importance of a “facilitative” role on the part of the Special Representative of the UN Secretary General, in contrast to the more activist and “directive” strategy of Secretary General Kofi Annan and his special representative, which gave powers to the UN to act as an arbitrator where the parties failed to agree. Thus he emphasizes the importance of creating the impression among all citizens of Cyprus of ownership over any new agreement rather than a perception of a settlement imposed from outside. Along similar lines, Melissa Chadbourne emphasizes the delicate role that the European Union must play in these negotiations. She notes the extensive disillusionment in the North with the EU, which appeared to reward the Republic of Cyprus for its “no” vote on the Annan Plan with immediate membership in the EU. Thus, the EU must play a supportive role from the sidelines, while encouraging pro-agreement political leaders on both sides and showing its willingness to provide the necessary economic, political, and security assistance to assure the effective implementation of any agreement that might be reached.

Niv Elis examines the sensitive role of security guarantees, noting that a continuation of the 1960 Treaty of Guarantee for a united Cyprus within the EU would seem to be an anomaly, in addition to being totally unacceptable to Greek Cypriots. However, he notes that the security threats of renewed Turkish aggression are often exaggerated, whereas the fears on the part of Turkish Cypriots of being assimilated into an Hellenic Cyprus are real and cannot be ignored in any settlement. Therefore, some form of international guarantee supplied by the UN, by NATO, or perhaps eventually by the EU (but only if Turkey becomes a member) needs to be put into place to reassure Turkish Cypriots that their identity will not be endangered by a modification or termination of the 1960 Treaty of Guarantee. On balance, however, he concludes that the security dilemma is no longer as serious as it once was, due in part to changing circumstances on Cyprus, relations among the guarantor powers, and with current international norms and institutions that make a reoccurrence of the tragic and often violent events that took place between 1963 and 1974 unlikely. Katherine Herbst also notes that the presence of a large contingent of Turkish troops in the North appears to be the most serious obstacle to acceptance of a balanced settlement by citizens in the south. She thus argues that Turkey should unilaterally begin a scheduled withdrawal of its troops as a confidence-building measure, and that Greece and the Republic of Cyprus should reciprocate by removing their “freeze” on eight chapters of the EU *acquis communautaire* that is currently blocking negotiations for Turkish entry into the EU. Ultimately, she suggests, the best guarantee for security of all parties on Cyprus is full membership by a reunited Cyprus in an EU in which Turkey is also a full member.

Negotiations on new federal political institutions for a bi-zonal, bi-communal Cyprus appear to be among the most advanced at present, based upon a principle accepted by both parties in separate agreements as long ago as 1977 and 1979. However, Aart Geens warns in his chapter of the rather dismal record of bi-zonal states, using examples from the recent internal troubles in Belgium and well as the fragile bi-zonal solution in Bosnia-Herzegovina to show why such political arrangements may easily lead to partition. Thus he suggests an alternative formula for assuring power-sharing in a reunified bi-communal but territorially unified Cyprus, which might best be adopted in current negotiations. If that fails, however, it might be kept available if at a later time the

bi-zonal structure appears to be falling apart, especially after the fears and insecurities of Cyprus' sad history have begun to fade from memory when new, integrated political institutions may be more acceptable. Finally, Joshua Scharff indicates possible solutions to the issue of Turkish settlers who have arrived in Northern Cyprus since 1974. He suggests that the problem may not be as serious as often constructed in the political rhetoric, which frequently fails to distinguish adequately among different categories of settlers. He argues that those who have obtained TRNC citizenship within the laws of that region should be given a choice to remain or to return to Turkey with financial compensation. International law, often cited by both sides, is ambiguous in this case, suggesting that the settlements may have initially been illegal if actively promoted by Turkey, but the deportation of long-established settlers also contravenes international law. Thus, he argues that the issue should be resolved largely on a humanitarian rather than a legal basis. All other Turkish nationals residing in Cyprus on temporary visas should be allowed to remain only as long as their visas are valid, or in some cases visas might be prolonged to serve the needs of contemporary Cyprus for "guest workers" who are present on both sides of the island from many parts of the world.

Achieving agreement on these complex issues will not be easy, especially given the history of misunderstanding, mistrust and even anger that exists on Cyprus today that cannot be overcome rapidly. However, most of the participants in our study trip tend to believe that a political solution to the division of Cyprus in the short-run is the only basis on which a long-term resolution of the underlying issues of conflict can be achieved. Only through more active interactions among all the peoples of Cyprus within federal political institutions, political parties, civic organizations, educational institutions, sports, culture, and everyday life can a new Cypriot identity develop not in place of, but alongside an identity as Greek or Turkish Cypriot, as well as an even larger identity as part of the European community of nations. We came back from Cyprus impressed with the warmth and generosity of the Cypriot people and of the beauty of the island's diverse cultures. One thing that is clear to all of us is that the people of Cyprus deserve a better future than the past half century of conflict and hostile division has given them. In the end, taking the political risks necessary to achieve that better future depends upon the commitment and action in the interest of peace and reconciliation by all the peoples of

Cyprus and especially by their leaders, supported to the greatest extent possible by the entire international community.

List of Interviewees

Mr. Adonis Taliadoros, Press and Information Officer

Ms. Eleni Mavrou, Mayor of Nicosia at the Nicosia Town Hall

Mr. Yiorgos Christophides, Director of the Office of the Permanent Secretary of the Ministry of Foreign Affairs, Foreign Affairs Ministry

Mr. Petros Clerides, Attorney General

Mr. Xenophon Kallis, Director of Service for Missing Persons

Ambassador Erato Kozakou Markoulli, Former Minister of Foreign Affairs and Head of the working team on property

Mr. Miltos Miltiadou, Senior Officer of the Press and Information Office

Mr. Antros Gregoriou, Secretary of the International Public Relations EDEK Party

Ms Eleni Karaoli, Member of the international Public Relations of the EDEK Party

Mr. Charis Miliotis, Secretary of European Affairs of the EDEK Party

Dr. Ioannis A. Elliades, Chief Curator of the Byzantine Museum and Art Gallery of the Archbishopic Makarios III Foundation at the Byzantine Museum

Dr. Charalampos Chotzakoglou, the Hellenic Open University

Mr. Nikos Koutsou, Deputy President of the European Party (EVROKO) and Member of Parliament

Mr. Antros Kyprianou, Spokesman and Head of International Relations of AKEL.

Mr. Yiorgos Kolokasides, Deputy President of the Democratic Party (DIKO)

Mr. Fotes Fotlou, Spokesman of the Democratic Party (DIKO)

Mr. Yiorgos Perdikis, Secretary General of the Cyprus Green Party (OIKOLOGOI)

Ms. Androulla Kaminara, Head of Representation in Cyprus of the European Commission

Ms. Eleonora Gavrielides, Acting Director of the Press and Information Office

Prof. Joseph S. Joseph, Professor of International Relations and European Affairs, Director of the Jean Monnet Centre of Excellence at the University of Cyprus -

Lecture on “The EU and the Triangle of Cyprus, Turkey and Greece: Problems and Prospects”

Manolis Christophides, Member of the Political Bureau and Member of Parliament ,
DISY Party Headquarters

UNFICYP briefings at UN Headquarters; meet at Ledra Palace Hotel

Colonel Gerard Hughes – OBE Chief of Staff

Mr. Tim Alchin – Political Advisor to the Chief of Mission

Rear Admiral Mario Sánchez D. – Force Commander

Ms Kyoko Shiotani – Chief Civil Affairs Officer

Ms. Carla van Maris – Senior Police Advisor and Commander, UN Police

Ms. Ayul Gurel, Project Consultant, Peace Research Institute (Oslo) at PRIO Office

Remziye Şefik, Third Secretary, Ministry of Foreign Affairs of the TRNC

Mr. Serdar Denktash, Leader of Democrat Party

Asst. Prof. Ahmet Sözen, Eastern Mediterranean University

H.E Mr. Mehmet Ali Talat, President of TRNC

Dr. Bulent Kanol, Executive Director, The Management Centre of the Mediterranean

Mr. Alain Bothorel, Principal Administrator of EU Programme Team Task Force For
Turkish Cypriot Community

Ms. Alessandra Viezzer, Task Force Member at EU Office, Ataturk Medyani

Mr. Öntac Düzgün, Undersecretary of TRNC Prime Minister.

Mr. Hasan Taçoy, National Unity Party, Member of Parliament; Head of Lefkosa District
Branch

Dr. Kudret Ozersay, Chair of the Department of International Relations, Eastern
Mediterranean University

Emine Erk, Advocate, Turkish Cypriot Human Rights Foundation

Mr. Mustafa Abitoğlu, Coordinator, Turkish Cypriot Human Rights Foundation

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